



THE REPUBLIC OF KENYA

LAWS OF KENYA

THE CHILDREN ACT

NO. 8 OF 2001

Revised and published by the National Council for Law Reporting
with the authority of the Attorney-General as gazetted by the Government Printer

www.kenyalaw.org

Kenya

Children Act

Act No. 8 of 2001

Legislation as at 18 January 2019

Note: This Act was **repealed** on 2022-07-26 by [Children Act](#) (Act No. 29 of 2022).

By [Kenya Law](#) and [Laws.Africa](#). Share widely and freely.

www.kenyalaw.org | info@kenyalaw.org

FRBR URI: /akn/ke/act/2001/8/eng@2019-01-18

There is no copyright on the legislative content of this document.

This PDF copy is licensed under a Creative Commons Attribution NonCommercial ShareAlike 4.0 License ([CC BY-NC-SA 4.0](#)). This license enables reusers to distribute, remix, adapt, and build upon the material in any medium or format for noncommercial purposes only, and only so long as attribution is given to the creator. If you remix, adapt, or build upon the material, you must license the modified material under identical terms. CC BY-NC-SA includes the following elements:

- BY: credit must be given to the creator.
- NC: Only noncommercial uses of the work are permitted.
- SA: Adaptations must be shared under the same terms.

Share widely and freely.

Children Act (Act No. 8 of 2001)

Contents

Part I – PRELIMINARY	1
1. Short title	1
2. Interpretation	2
Part II – SAFEGUARDS FOR THE RIGHTS AND WELFARE OF THE CHILD	3
3. Realization of the rights of the child	3
4. Survival and best interests of the child	3
5. Non-discrimination	4
6. Right to parental care	4
7. Right to education	4
8. Right to religious education	4
9. Right to health care	4
10. Protection from child labour and armed conflict	5
11. Name and nationality	5
12. Disabled child	5
13. Protection from abuse, etc	5
14. Protection from harmful cultural rites, etc	5
15. Protection from sexual exploitation	5
16. Protection from drugs	6
17. Leisure and recreation	6
18. Torture and deprivation of liberty	6
19. Right to privacy	6
20. Penalties	6
20A. Application of No. 8 of 2010	6
21. Duties and responsibilities of a child	6
22. Enforcement of rights	7
Part III – PARENTAL RESPONSIBILITY	7
23. Definition of parental responsibility	7
24. Who has parental responsibility	8
25. Acquisition of parental responsibility by father	9
26. Parental responsibility agreement, etc	9
27. Transmission of parental responsibility	9
28. Extension of responsibility beyond eighteenth birthday	10
29. Regulations by Chief Justice	10

Part IV – – ADMINISTRATION OF CHILDREN'S SERVICES	10
30. Establishment of National Council for Children's Services	10
31. Composition of Council	11
32. Functions of the Council	11
33. Power of the Council	12
34. Co-option and committees	12
35. Regulations by the Council	12
36. Expenses	12
37. Appointment of Director, Deputy Directors and Children's Officers	13
38. Functions of Director	13
39. Penalty for obstruction	14
40. The role of local authorities It shall be the general duty of every local authority–	14
41. Appointed local authorities	15
42. Local authority welfare schemes	15
43. Delegation of powers and duties by appointed local authorities	15
44. Delegation of functions of county councils	15
45. Delegation to charitable children's institution	15
46. Powers of local authorities to incur expenditure in temporary care	15
Part V – CHILDREN'S INSTITUTIONS	15
47. Establishment of rehabilitation schools	16
48. Separate sections in the rehabilitation schools	16
49. Obligation of managers	16
50. Establishment of children's remand homes	17
51. Supervision of rehabilitation schools and children's remand homes	17
52. Leave of absence	17
53. Revocation of children's committal order	17
54. Transfers and supervision after release	17
55. Treatment of absconders and children of difficult character	17
56. Removal to health institution	18
57. Authority for confinement in children's remand homes, rehabilitation school and hospital	18
58. Definition of a charitable children's institution	18
59. Exceptions	18
60. Proof of registration	19
61. Institution set up by a person or unincorporated body of persons	19

62. Criteria for approval of programmes The Council shall provide the criteria for approval of child welfare programmes of charitable institutions.	19
63. Reception of children in a charitable children's institution	19
64. Duty to maintain a child in a charitable children's institution A charitable children's institution in which the child is received, shall provide the child with adequate care and protection for the period of his accommodation therein as provided in the criteria set by the Council.	19
65. Director to monitor progress of children	19
66. Appointment and powers of approved officers	20
67. Inspection of charitable children's institutions	20
68. Inspection committees	21
69. Duty to notify the Area Advisory Council	21
70. Review of programme The Director shall, at the end of twelve months beginning with the date of approval of a child welfare programme, and thereafter annually, review the programme in order to advise the Council on whether the programme should continue being in force or be cancelled.	21
71. Cancellation of a programme	21
72. Regulations The Minister may, in consultation with the Council, make regulations for the better carrying out of the provisions of this Part and in particular, such regulations may make provision for–	22
72A. Powers of Cabinet Secretary over charitable children institutions	22
72B. Caretaker Committee.	23
Part VI – – CHILDREN'S COURTS	23
73. Jurisdiction of Children's Court There shall be courts to be known as Children's Courts constituted in accordance with the provisions of this section for the purpose of–	23
74. Sitting of Children's Court A Children's Court shall sit in a different building or room, or at different times, from those in which sittings of courts other than Children's Courts are held, and no person shall be present at any sitting of a Children's Court except–	23
75. Power to clear court Where in any proceedings in relation to an offence against or by a child, or any conduct contrary to decency or morality, a person who, in the opinion of the court, is under eighteen years of age is called as a witness, the court may direct that all or any persons, not being members or officers of the court, or parties to the case or their advocates, shall be excluded from the court.	24
76. General principles with regard to proceedings in Children's Court	24
77. Legal aid	25
78. Reports	25
79. Appointment of a guardian ad litem A court before which a child is brought, and especially where that child is not represented by an advocate, may appoint a guardian ad litem for the purposes of the proceedings in question and to safeguard the interests of the child.	25
80. Appeals Unless otherwise provided under this Act, in any civil or criminal proceedings in a Children's Court, an appeal shall lie to the High Court and a further appeal to the Court of Appeal.	25
Part VII – – CUSTODY AND MAINTENANCE	25
81. Meaning of custody, care and control	25
82. Custody	26
83. Principles to be applied in making custody order	26

84. Restriction on removal of a child where applicant has provided home for three years	27
85. Return of child taken away in breach of section 80	27
86. Disputes between joint custodians If two persons have parental rights or duty vested in them jointly by a custody order but cannot agree on its exercise or performance, either of them may apply to the court, and the court may make such order regarding the exercise of the right or performance of the duty as it thinks fit.	27
87. Revocation of custody order	27
88. Interim custody orders	28
89. Agreement not to be invalid by reason of giving custody to mother No agreement made between the parents of a child, shall be held to be invalid by reason only of its providing that the father shall give legal custody or actual custody thereof to the mother:	28
90. Joint maintenance of children Unless the court otherwise directs, and subject to any financial contribution ordered to be made by any other person, the following presumptions shall apply with regard to the maintenance of a child—	28
91. Power to make maintenance order Any parent, guardian or custodian, of the child, may apply to the court to determine any matter relating to the maintenance of the child and to make an order that a specified person make such periodical or lump sum payment for the maintenance of a child, in this Act referred to as a "maintenance order," as the court may see fit:	29
92. Maintenance during matrimonial proceedings The court shall have power to make a maintenance order, whether or not proceedings for nullity, judicial separation, divorce or any other matrimonial proceedings have been filed by the parent of a child, or during proceedings or after a final decree is made in such proceedings:	29
93. Financial provisions The court may order the person against whom a maintenance order is made to make a financial provision for the child by—	29
94. Financial provisions by step-parents and father of child born out of wedlock	29
95. Power to order maintenance monies to be paid to person other than the applicant Whenever a maintenance order is made under this section the court may, at the time of making the order, or from time to time thereafter, on being satisfied that the person in whose favour the order is made—	30
96. Duration of financial provisions	30
97. Interim orders A court shall have power to make an interim maintenance order and in so doing may dispense with any notice that may be prescribed to be given to any person, if it is satisfied that it is in the best interests of the child so to do.	31
98. Other maintenance provisions A court shall have power to make an order and to give directions regarding any aspect of the maintenance of a child, including but not limited to, matters relating to the provision of education, medical care, housing and clothing for the child; and in this behalf may make an order for financial provisions for the child.	31
99. Power to impose conditions and to vary order The court shall have power to impose such conditions as it thinks fit to an order made under this section and shall have power to vary, modify or discharge any order made under section 98 with respect to the making of any financial provision, by altering the times of payments or by increasing or diminishing the amount payable or may temporarily suspend the order as to the whole or any part of the money paid and subsequently revive it wholly or in part as the court thinks fit.	31
100. Power to vary maintenance agreements Where the parents, guardians or custodians of a child, have entered into an agreement whether oral or written in respect of the maintenance of the child the court may, upon application, vary the terms of the agreement if it is satisfied that such variation is reasonable and in the best interests of the child.	31
101. Enforcement of maintenance orders and contribution orders	31

Part VIII – – GUARDIANSHIP	33
102. Appointment of guardian	33
103. Rights of surviving parent as to guardianship and power of court	33
104. Appointment of testamentary guardian	34
11. of the Law of Succession Act (Cap. 160), or an appointment made in the course of an oral will if it is made in accordance with section	34
9. of that Act.	34
105. Appointment of guardian by the court In addition to the powers of the court to appoint a guardian under subsection (5) of section 104 the court may appoint a guardian in the following circumstances–	35
106. Guardians revocation and disclaimer	35
107. Extension of appointment of guardian beyond child's eighteenth birthday	35
108. Disputes between guardians	36
109. Powers of guardian A guardian appointed under section 105 shall have the same powers over the estate and the person, or over the estate, as the case may be, of a child, as a guardian appointed by deed or will or otherwise under the Law of Succession Act	36
110. Neglect or misapplication of assets by guardians of the estate of the child Where a guardian of the estate of a child, whether or not that guardian is also a guardian of the person of the child, neglects to recover or safeguard, or misplaces any asset forming part of the estate of the child, or subjects the estate to loss or damage, he shall whether or not also guilty of an offence on that account, be liable to make good any loss or damage so occasioned.	36
111. Offence by guardians of the estate of a child Any guardian of the estate of a child who–	37
Section 102.	37
112. Rules The Chief Justice shall make rules of Court directing the manner in which applications to the court are to be made and generally providing for matters of procedure and incidental matters arising under this Part.	37
Part IX – – JUDICIAL ORDERS FOR THE PROTECTION OF CHILDREN	37
113. Power of court to make orders in certain proceedings	37
114. Orders which court may make The court may from time to time make any of the following orders in this Act referred to as "section 114 orders"–	38
115. Power of arrest Where a court makes an order under paragraphs (c), (d) and (g) of section 114, the court may attach a power of arrest to the order and the person named in the order shall be liable to arrest if he shall contravene any stipulation or condition contained in the order, whilst the order remains in force.	38
116. Penalty Any person who contravenes an order made under paragraphs (c), (d) and (g) of section 114 or who obstructs or unlawfully interferes with a person appointed by the court in the execution of his duties under an order made pursuant to subsections	38
117. Review, etc., of order The court may from time to time review, vary, suspend or discharge any order made under this Part or revive an order after it has been suspended or discharged.	38
Part X – – CHILDREN IN NEED OF CARE AND PROTECTION	39
118. Jurisdiction of the court A Children's Court shall have jurisdiction to make an order or give a judgment under this Part notwithstanding that any act, matter, thing or circumstances giving rise to such order or judgment did not occur or arise within the area of jurisdiction of the court.	39
119. When a child is in need of care and protection	39

120. Proceedings in respect of children in need of care and protection	40
Section 125.	40
121. Medical care	41
120. that a child is in need of medical care, he shall forthwith take the child to a registered health institution, and such health institution shall provide the appropriate treatment, care and necessary hospital accommodation for the child.	41
122. Determination as to child's home, etc.	41
123. Parent or guardian to be heard in any application	42
124. Power of Director to take over application The Director of Public Prosecutions may authorise the Director at any stage in the proceedings under this Part, whether before, during or after the making of any application, to take over and assume the conduct of any application or proceedings in respect of a child:	42
125. Power of court in respect of children in need of care and protection	42
126. Application of trusts for maintenance of children	43
127. Penalty for cruelty to and neglect of children	43
128. Warrants for search of children	44
129. Arrest without warrant A police officer may arrest without warrant any person who he has reason to believe has committed any offence under this Part or any other offence involving bodily injury to a child, if the police officer has reasonable ground for believing that the person will abscond, or if he does not know and is unable to immediately ascertain the person's name and address.	44
130. Supervision order The court may make an order (in this Act referred to as a "supervision order") placing the child under the supervision of a children's officer or an authorised officer whilst allowing the child to remain in the care and possession of his parent, guardian, custodian or any other person with whom the child is residing.	44
131. Preliminary inquiries	45
132. Care order and grounds thereof	45
133. Arrangements for access to children in care	47
134. Contents of care order Where a care order to a rehabilitation school has been made by a court against a child, on a finding of guilt of an offence, the committal order shall specify the grounds of the order and—	47
135. Transmission of order The Court making a care order to a rehabilitation school shall send such order together with a record in the prescribed form of such information regarding the child placed in care as the court thinks necessary, to the manager of the rehabilitation school.	48
136. Production of child Where a person authorised to escort a child to a rehabilitation school is unable to find or obtain possession of the child, the court may, if satisfied by information on oath that some person named in the information can produce the child, issue a summons requiring the person so named to attend at the court on a specified day and produce the child and, if the person so summoned fails without reasonable cause to attend, in addition to any other liability to which he may be subject under the provisions of any law including this Act, he commits an offence and is liable on conviction to a fine not exceeding fifty thousand shillings, or to imprisonment for a term not exceeding one year or to both.	48
137. Harboursing or concealing a child Where a child has been placed under care in a rehabilitation school any person who harbours or conceals him after the time fixed for him to enter the rehabilitation school commits an offence and is liable on conviction to imprisonment for a term not exceeding one year or a fine not exceeding fifty thousand shillings or to both.	48
138. Escape from institutions, etc A child who runs away from a fit person, charitable children's institution or appointed local authority to whose care the child has been entrusted under this Act, or from any person or	

institution with whom he has been placed by a charitable children's institution, or appointed local authority under any regulations made under this Act, may be apprehended without warrant and be brought before a Children's Court having jurisdiction in the place where he was residing immediately before he ran away, and that court may—	48
139. Charitable children's institutions and local authorities Whenever a child runs away from any person or institution with whom or with which he has been placed by a charitable children's institution or appointed local authority, as aforesaid, it shall be the duty of the secretary, clerk or other appropriate officer of such institution or authority, within forty-eight hours of such occurrence coming to his knowledge, to notify the Director thereof; and any secretary, clerk or other officer who contravenes the provisions of this subsection commits an offence and is liable on conviction to a fine not exceeding five thousand shillings or imprisonment for a term not exceeding three months or to both.	48
140. Escape from children's remand home or rehabilitation school	49
141. Assisting escape, etc.	49
142. Production of escaped child If a Children's Court is satisfied by information on oath that there are reasonable grounds for supposing that a child has run away or done any of the things specified in section 140, and that some other person named in the information can produce the child, the court may issue summons requiring that other person to attend at the court and produce the child and, if the person fails to do so without reasonable excuse, he commits an offence, and in addition to any other liability to which he may be subject under this Act, is liable on conviction to a fine not exceeding one hundred thousand shillings, or to imprisonment for a term not exceeding two years, or to both.	49
143. Presumption and determination of age	49
144. Contribution order	50
334. to 342 of the Criminal Procedure Code (Cap. 75) for the levying of fines imposed by a court in criminal proceedings, and the court shall be empowered to make an attachment order against the defaulter's salary or other source of income, subject always to any written law protecting pensions or other sources of income from attachment.	50
145. International reciprocity	51
146. Bonds The provisions of the Criminal Procedure Code (Cap. 75) with respect to bonds for good behaviour (including the provisions as to their enforcement) shall apply to bonds entered into under this Act.	51
Part XI – – FOSTER CARE PLACEMENT	51
147. Conditions for foster care placement	51
148. Persons qualified to foster children	52
149. Registration for foster care placement No person shall, for the purposes of fostering a child, retain a child in his care and possession whose parents, custodian or guardians cannot be readily identified, without first notifying the Director.	52
150. Agreement for maintenance of foster child	52
151. Penalty for contravening provisions of this Part A person who, without reasonable cause, contravenes the provisions of this Part commits an offence and is liable on conviction to a fine not exceeding twenty thousand shillings or of imprisonment to a term not exceeding two years or both.	52
152. Rules Foster care placement shall be made in accordance with the rules set out in the Fourth Schedule to this Act.	52
153. Amendment of rules The Chief Justice may amend the rules set out in the Fourth Schedule to this Act.	52
Part XII – – ADOPTION	53
154. Power to make adoption orders	53
155. Establishment of Adoption Committee	53

156. Preliminaries	53
157. Children who may be adopted	54
158. Adoption applicants	54
Section 248.	54
159. Power to dispense with consent	55
160. Guardian ad litem for the child	56
161. Interim orders	57
162. International adoptions An adoption order may be made in respect of a child upon the joint application of two spouses who are not Kenya citizens and not resident in Kenya (in this Act referred to as an "international adoption") if they–	58
163. Powers of the court	58
164. Power to appoint guardian	59
165. Adoption order in respect of children previously adopted	59
166. Parental responsibility when adoption is refused If the court refuses to make an adoption order, the court may make such order in respect of parental responsibilities for the child as the court may think fit.	59
167. Appeals Any person aggrieved by the making or refusal to make of an adoption order or an order pertaining to parental responsibility for a child may appeal therefrom in the same manner as if the application were a suit instituted under the Civil Procedure Act (Cap. 21).	59
168. Amendment of orders	59
169. Adopted children register	60
170. Registration of adoption orders	60
171. Rights and duties of parents and capacity to marry	61
172. Workmen's Compensation For the purposes of the Workman's Compensation Act (Cap. 236), a child whom a deceased workman has been authorised to adopt under the adoption order shall be deemed to be a member of the family of the workman, and an adopter shall be deemed to be the parent of a deceased child whom he has been authorised to adopt.	61
173. Orders and agreements in respect of child born outside marriage	61
174. Intestacies, wills and settlements	62
175. Provisions supplementary to section 174	62
176. Effect of overseas adoption	63
177. Restriction on making arrangements for adoption	63
178. Information to be confidential	65
179. Prohibition of certain payments	65
180. Restriction on advertisement	66
181. Offences under this Part Where any offence under any regulations made under this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of any director, manager, member of a committee, secretary or other officer of the body, he as well as the body corporate, shall be deemed to have committed that offence and shall be liable to be proceeded against and punished accordingly.	66

182. Regulations The Minister in consultation with the Council may make regulations for the better carrying out of the provisions and purposes of this Part, and without prejudice to the generality of the foregoing, for any of the following purposes—	66
183. Rules of court under this Part The Chief Justice may make rules of court directing the manner in which applications to court have to be made and generally providing for matter of procedure and incidental matters arising under this Part.	66
183A. The powers of Cabinet Secretary over adoption societies The Cabinet Secretary may, in writing, direct the Adoption Committee to decline registration or cancel the registration of an adoption society where it is established that —	66
Part XIII – – CHILD OFFENDERS	67
184. Jurisdiction of Children's Courts	67
185. Power to remit cases to Children's Court	67
186. Guarantees to a child accused of an offence Every child accused of having infringed any law shall—	67
187. Consideration of welfare	68
188. Friendly setting of Children's Court A Children's Court shall have a setting that is friendly to the child offender.	68
189. Words "conviction" and "sentence" not to be used of child The words "conviction" and "sentence" shall not be used in relation to a child dealt with by the Children's Court, and any reference in any written law to a person convicted, a conviction or a sentence shall, in the case of a child, be construed as including a reference to a person found guilty of an offence, a finding of guilt or an order upon such a finding, as the case may be.	68
190. Restriction on punishment	68
191. Methods of dealing with offenders	68
192. Mental treatment If it appears to the court on the evidence of a medical practitioner that a child requires or may benefit from mental treatment, the court when making a probation order against him, may require him to undergo mental treatment at the hand or under the direction of a medical practitioner for a period not exceeding twelve months, subject to review by the court, as a condition of the probation order.	69
193. Power to order parent to pay fines, etc	69
194. Proceedings in respect of offences committed by a child	69
Part XIV – – MISCELLANEOUS AND GENERAL PROVISIONS	70
195. Appeals to the Minister	70
196. General penalty A person convicted of an offence under this Act for which no other penalty is prescribed shall be liable to imprisonment for twelve months, or to a fine not exceeding twenty thousand shillings, or to both such imprisonment and such fine.	70
197. General power to make regulations Subject to the provisions of this Act, the Minister may make regulations—	70
197A. Committees The Cabinet Secretary may, from time to time by notice in the Gazette, establish and assign functions to such committees or working groups as may be necessary for the better performance of any function required to be performed under this Act.	70
198. Exemption The Minister may, from time to time, by order, either retrospectively from the passing of this Act or prospectively, exclude from the operation of all or any of the provisions of this Act the members of any race, tribe, religious group or sect in Kenya, or any part of such race, tribe, religious group or sect, or to whom the Minister may consider it impracticable or inexpedient to apply such provisions, and may also from time to time revoke any such order, but not so that the revocation shall have any retrospective effect.	70

199. Grants and expenses of the Minister There shall be paid out of moneys provided by Parliament—	70
200. Repeals	71
1. The Council shall have at least four meetings in one calendar year.	71
2. The Chairman shall preside at every meeting of the Council at which he is present, and in the absence of the Chairman from a meeting the members present shall elect one of their number who shall, with respect to that meeting and the business transacted thereat have all the powers of the Chairman.	71
3. The quorum for a meeting of the Council shall be seven.	71
4. At any meeting of the Council the Chairman shall have a casting as well as a deliberative vote and subject thereto, the decision of the majority of the members present and voting at the meeting of the Council shall be deemed to be the decision of the Council.	71
5. Subject to paragraph (2), no proceedings of the Council shall be invalid by reason of a vacancy among the members thereof.	71
6. The chairman may at any time of his own motion and shall within fourteen days of the receipt by him of a written request signed by at least three members convene a meeting of the Council.	71
7. All instruments made by, and all decisions of the Council shall be signified under the hand of the Chairman or the secretary.	71
8. Except as provided by this Schedule, the Council may regulate its own proceedings.	71
Part I – Provisions for the assumption by local authorities of the care of persons including	71
Paragraph (a)	71
Paragraph (b)	72
Paragraph (c)	72
Part II – – TREATMENT OF CHILDREN IN CARE OF LOCAL AUTHORITIES	72
1. Furtherance of the best interests of children in their care.	72
2. Provision for the accommodation and maintenance of children.	72
3. The establishment and maintenance of institutions or day nurseries.	72
4. The accommodation of children in voluntary homes including homes set up by voluntary children's institutions.	72
5. The provision of hostels and youth organisations.	72
6. The provision of financial assistance towards the expenses of maintenance, education or training of children.	72
Part III – – VOLUNTARY CHILDREN'S INSTITUTIONS	72
1. The appointment of voluntary children's institutions to act as agents of local authorities.	72
2. Provision for the after care of children formerly in the care of local authorities or voluntary children's institutions.	72
Part IV – – ADMINISTRATIVE AND FINANCIAL PROVISIONS	72
1. Establishment of a children's Committee.	72
2. Appointment of children's officers and appropriate staff.	72
3. Grants for training in child care.	72
4. Grants to voluntary children's institutions.	72

Part V – MISCELLANEOUS AND GENERAL	72
1. Provision of places of safety.	72
2. Any other provisions which may be approved by the Minister.	72
1. Offences under sections 140, 141, 142, 143, 144, 145, 146, 147, 148,	73
Section 149.	73
2. Offences under this Act.	73
3. Any other offences involving bodily injury.	73
1. These Rules may be cited as the Foster Care Placement Rules.	73
2. In these Rules–	73
3. Application to register as a foster parent A person who wishes to register as a foster parent shall complete the application form specified in Form 1 of the Schedule to these Rules and submit it to the Director directly or through the manager of a rehabilitation school or the manager of a voluntary children's institution who shall forward the application to the Director.	73
4. Procedure before placement	73
5. Religion	74
6. Cultural background	74
7. Registration of foster parent	74
8. Medical care	74
9. Power of inspection	75
10. Notification where child leaves Where a child leaves the care of any person who has possession of him under these Rules, the person shall, within three days, report to the Director, parent or guardian of the child.	75
11. Death	75
12. Records Every District Children's Office shall maintain a register of foster parents, in which shall be set out in respect of each fostering, a record set out in Forms 2 and	75
5. specified in the Schedule to these Rules.	75
13. Every District Children's Office shall report within one month after each fostering effected by it, the fact of the fostering and specifying the information in Form 5 specified in the Schedule to these Rules.	75
1. Citation These Rules may be cited as the Child Offenders' Rules.	75
2. Interpretation In these Rules "Probation Officer" means a probation officer as defined in the Probation of Offenders Act (Cap. 64)–	76
3. Application of Rules These Rules shall apply to the proceedings with respect to a child who is charged with an offence.	76
4. Arrest and charge of a child	76
5. Bail of arrested child Where a person apparently under the age of eighteen years is apprehended with or without a warrant and cannot be brought forthwith before a court, the police or officer to whom such person is brought shall inquire into the case, and may in any case, and unless–	76
6. Prevention of child associating with adult offenders	76
7. Power to clear court Where in any proceedings in relation to an offence against, or any conduct contrary to, decency or morality, a person who, in the opinion of the Court is under eighteen years of age is called as a	

witness, the Court may direct that all or any persons, not being members or officers of the Court, or parties to the case or their advocates, or persons otherwise directly concerned in the case, shall be excluded from the Court during the taking of the evidence of that witness.	77
8. Power to require attendance of parent Where a child is charged with any offence or is for any other reason brought before a court, his parent or guardian may in any case, and shall, if he can be found and resides within a reasonable distance, be required to attend at the Court before which the case is heard or determined during all stages of the proceedings, unless the Court is satisfied that it would be unreasonable to require such attendance.	77
9. Bail	77
10. Remand of child when bail is refused to remand home	77
11. Probation and Children's Officer's report	77
12. Duration of cases	78
1. The juvenile courts established by section 2 of the Children and Young Persons Act (Cap. 141) hereinafter referred to as "the repealed Children and Young Persons Act") shall be deemed to be the Children's Courts for the purpose the Act.	78
2. The juvenile remand homes established, and the approved schools approved and established as the case may be, under Part V of the repealed Children and Young Persons Act (Cap. 141) shall be deemed to be the children remand homes and approved schools for the purposes of the Act.	78
3. A person who immediately before the commencement of this Act is detained in a juvenile remand home or an approved school under the provisions of the repealed Children and Young Persons Act (Cap. 141) shall be deemed to be detained in a children remand home or approved school for the purposes of the Act.	78
4. Every person in whose care and possession a child is placed under the provisions of Part VI of the repealed Children and Young Persons Act (Cap. 141) shall within 90 days after the commencement of this Act apply for appointment as a foster parent under section 148.	78
5. The Chief Inspector and inspectors of children appointed under section 54 of the repealed Children and Young Persons Act (Cap. 141) shall be deemed to be the Director of Children's Services and Children's Officers, respectively, for the purposes of the Act.	79
6. The local authorities appointed by the Minister under section 58 of the repealed Children and Young Persons Act (Cap. 141) shall continue to be appointed local authority for the purposes of this Act.	79
7. A person who, immediately before the commencement of this Act is an approved officer under section 64 of the repealed Children and Young Persons Act (Cap.	79
Section 141.	79
8. The Adopted Children Register maintained by the Registrar-General under section 13 of the Adoption Act (hereinafter referred to as "the repealed Adoption Act") shall continue to be the Adopted Children's Register for the purposes of this Act.	79
Section 9.	79
23. of the repealed Adoption Act shall continue to be an adoption society for the purposes of this Act.	79
CHAPTER 50: Orders, Decorations and Medals (continuation)	80
SCHEDULE	97

CHILDREN ACT

NO. 8 OF 2001

Published in Kenya Gazette Vol. CIV—No. 2 on 11 January 2002

Assented to on 31 December 2001

Commenced on 1 March 2002 by [Children Act Commencement](#)

[Amended by [Statute Law \(Miscellaneous Amendments\) Act, 2012 \(Act No. 12 of 2012\)](#) on 12 July 2012]

[Amended by [Counter-Trafficking in Persons Act \(Cap. 61\)](#) on 1 October 2012]

[Amended by [Statute Law \(Miscellaneous Amendments\) Act, 2017 \(Act No. 11 of 2017\)](#) on 4 May 2017]

[Amended by [Statute Law \(Miscellaneous Amendments\) Act, 2018 \(Act No. 18 of 2018\)](#) on 18 January 2019]

[Repealed by [Children Act \(Act No. 29 of 2022\)](#) on 26 July 2022]

An Act of Parliament to make provision for parental responsibility, fostering, adoption, custody, maintenance, guardianship, care and protection of children; to make provision for the administration of children's institutions; to give effect to the principles of the Convention on the Rights of the Child and the African Charter on the Rights and Welfare of the Child and for connected purposes

Part I – PRELIMINARY

1. Short title

This Act may be cited as the Children Act, 2001.

2. Interpretation

In this Act, unless the context otherwise requires—

"Adoption Committee" means the Committee established under section 155;

"adoption order" means an adoption order under section 154 vesting the parental rights and duties relating to a child in the adopter;

"adoption society" means a society approved by the Adoption Committee under section 177;

"age" where actual age is not known means apparent age;

"appointed local authority" means a local authority appointed under section 41;

"approved officer" means a person appointed under section 38;

"Area Advisory Council" means a council established under section 32;

"authorised officer" means a police officer, an administrative officer, a children's officer, an approved officer, a chief appointed under the Chiefs' Act (Cap. 128), a labour officer, an officer of the national adoption society or any other officer authorised by the Director for the purposes of this Act;

"body of persons" means any body of persons whether incorporate or unincorporate;

"borstal institution" means a borstal institution established by section 3 of the Borstal Institutions Act (Cap. 92);

"child" means any human being under the age of eighteen years;

"child abuse" includes physical, sexual, psychological and mental injury;

"child of tender years" means a child under the age of ten years;

"children's remand home" means a remand home established under section 50 for the detention of children;

"Council" means the National Council for Children's Services established by section 30;

"Director" means the Director of Children's Services appointed under section 37;

"disabled child" means a child suffering from a physical or mental handicap which necessitates special care for the child;

"early marriage" means marriage or cohabitation with a child or any arrangement made for such marriage or cohabitation;

"education" means the giving of intellectual, moral, spiritual instruction or other training to a child;

"female circumcision" means the cutting and removal of part or all of the female genitalia and includes the practices of clitoridectomy, excision, infibulation or other practice involving the removal of part, or of the entire clitoris or labia minora of a female person;

"foster care placement" means the placement of a child with a person who is not the child's parent, relative or guardian and who is willing to undertake the care and maintenance of that child;

"foster parent" means a parent registered under this Act to receive and retain a child for the purpose of caring for and maintaining the child apart from the child's parents, guardian or relative;

"foster care placement" means the placement of a child with a person who is not the child's parent, relative or guardian and who is willing to undertake the care and maintenance of that child;

"guardian" in relation to a child includes any person who in the opinion of the court has charge or control of the child;

"home" in relation to a child means the place where the child's parent, guardian, relative or foster parent permanently resides, or if there is no parent, guardian or relative living and the child has no foster parent, the child's parent's or guardian's or relative's last permanent residence:

Provided that—

- (i) in the case of a parent, guardian or relative having, or having had more than one permanent place of residence, the parent, guardian or relative shall be presumed to be or to have been permanently resident at the place of such person's principal permanent residence; and

- (ii) where the court is unable to determine the home of any such child, the child shall be deemed for the purposes of this Act to have his home in the area of jurisdiction of the local authority in whose area he is found;

"medical practitioner" means a person registered as a medical practitioner under the Medical Practitioners' and Dentists' Act (Cap. 253);

"Minister" means the Minister for the time being entrusted with the Administration of this Act or such other Minister as may be expressly charged with any special matter which is otherwise dealt with under this Act;

"national adoption society" means the Child Welfare Society of Kenya established by the Child Welfare Society of Kenya Order, 2014;

"National Council of Non-Governmental Organisations" means the National Council of Non-Governmental Organisations established by section 23 of the Non-Governmental Organisations Co-ordination Act (No. 19 of 1990);

"nursery" means any institution or place at which for the time being, five or more children under the age of seven years are received and cared for regularly for reward;

"parent" means the mother or father of a child and includes any person who is liable by law to maintain a child or is entitled to his custody;

"place of safety" means any institution, hospital or other suitable place the occupier of which is willing to accept the temporary care of a child;

"private sector" means the non-public sector of the economy;

"rehabilitation school" means a rehabilitation school established under section 47;

"relative", in relation to a child, means any person related to the child, whether of the full blood, half blood or by affinity, and—

- (a) where an adoption order has been made in respect of the child or any other person under this Act, any person who would be a relative of the child within the meaning of this definition if the adopted person was the child of the adopter born inside marriage; or
- (b) where the child is born outside marriage and the father has acknowledged paternity and is contributing towards the maintenance of the child, the father of the child within the meaning of this definition if the child was the child of his mother and father born inside marriage;

"spouse", in relation to a wife of a polygamous marriage, means the wife applying for an adoption order either as the sole applicant or jointly with the husband or the wife into whose care a husband applying for an adoption order proposes to give the child.

[Act No. 18 of 2018, Sch.]

Part II – SAFEGUARDS FOR THE RIGHTS AND WELFARE OF THE CHILD

3. Realization of the rights of the child

The Government shall take steps to the maximum of its available resources with a view to achieving progressively the full realization of the rights of the child set out in this Part.

4. Survival and best interests of the child

- (1) Every child shall have an inherent right to life and it shall be the responsibility of the Government and the family to ensure the survival and development of the child.

- (2) In all actions concerning children, whether undertaken by public or private social welfare institutions, courts of law, administrative authorities or legislative bodies, the best interests of the child shall be a primary consideration.
- (3) All judicial and administrative institutions, and all persons acting in the name of these institutions, where they are exercising any powers conferred by this Act shall treat the interests of the child as the first and paramount consideration to the extent that this is consistent with adopting a course of action calculated to—
 - (a) safeguard and promote the rights and welfare of the child;
 - (b) conserve and promote the welfare of the child;
 - (c) secure for the child such guidance and correction as is necessary for the welfare of the child and in the public interest.
- (4) In any matters of procedure affecting a child, the child shall be accorded an opportunity to express his opinion, and that opinion shall be taken into account as may be appropriate taking into account the child's age and the degree of maturity.

5. Non-discrimination

No child shall be subjected to discrimination on the ground of origin, sex, religion, creed, custom, language, opinion, conscience, colour, birth, social, political, economic or other status, race, disability, tribe, residence or local connection.

6. Right to parental care

- (1) A child shall have a right to live with and to be cared for by his parents.
- (2) Subject to subsection (1), where the court or the Director determines in accordance with the law that it is in the best interests of the child to separate him from his parent, the best alternative care available shall be provided for the child.
- (3) Where a child is separated from his family without the leave of the court, the Government shall provide assistance for reunification of the child with his family.

7. Right to education

- (1) Every child shall be entitled to education the provision of which shall be the responsibility of the Government and the parents.
- (2) Every child shall be entitled to free basic education which shall be compulsory in accordance with Article 28 of the United Nations Convention on the Rights of the Child.

8. Right to religious education

- (1) Every child shall have a right to religious education subject to appropriate parental guidance.
- (2) The Minister shall make regulations giving effect to the rights of children from minority communities to give fulfillment to their culture and to practice their own language or religion.

9. Right to health care

Every child shall have a right to health and medical care the provision of which shall be the responsibility of the parents and the Government.

10. Protection from child labour and armed conflict

- (1) Every child shall be protected from economic exploitation and any work that is likely to be hazardous or to interfere with the child's education, or to be harmful to the child's health or physical, mental, spiritual, moral or social development.
- (2) No child shall take part in hostilities or be recruited in armed conflicts, and where armed conflict occurs, respect for and protection and care of children shall be maintained in accordance with the law.
- (3) It shall be the responsibility of the Government to provide protection, rehabilitation care, recovery and re-integration into normal social life for any child who may become a victim of armed conflict or natural disaster.
- (4) The Minister shall make regulations in respect of periods of work and legitimate establishments for such work by children above the age of sixteen years.
- (5) In this Act child labour refers to any situation where a child provides labour in exchange for payment and includes—
 - (a) any situation where a child provides labour as an assistant to another person and his labour is deemed to be the labour of that other person for the purposes of payment;
 - (b) any situation where a child's labour is used for gain by any individual or institution whether or not the child benefits directly or indirectly; and
 - (c) any situation where there is in existence a contract for services where the party providing the services is a child whether the person using the services does so directly or by agent.

11. Name and nationality

Every child shall have a right to a name and nationality and where a child is deprived of his identity the Government shall provide appropriate assistance and protection, with a view to establishing his identity.

12. Disabled child

A disabled child shall have the right to be treated with dignity, and to be accorded appropriate medical treatment, special care, education and training free of charge or at a reduced cost whenever possible.

13. Protection from abuse, etc

- (1) A child shall be entitled to protection from physical and psychological abuse, neglect and any other form of exploitation including sale, trafficking or abduction by any person.
- (2) Any child who becomes the victim of abuse, in the terms of subsection (1), shall be accorded appropriate treatment and rehabilitation in accordance with such regulations as the Minister may make.

14. Protection from harmful cultural rites, etc

No person shall subject a child to female circumcision, early marriage or other cultural rites, customs or traditional practices that are likely to negatively affect the child's life, health, social welfare, dignity or physical or psychological development.

15. Protection from sexual exploitation

A child shall be protected from sexual exploitation and use in prostitution, inducement or coercion to engage in any sexual activity, and exposure to obscene materials.

16. Protection from drugs

Every child shall be entitled to protection from the use of hallucinogens, narcotics, alcohol, tobacco products or psychotropic drugs and any other drugs that may be declared harmful by the Minister responsible for health and from being involved in their production, trafficking or distribution.

17. Leisure and recreation

A child shall be entitled to leisure, play and participation in cultural and artistic activities.

18. Torture and deprivation of liberty

- (1) No child shall be subjected to torture, cruel treatment or punishment, unlawful arrest or deprivation of liberty.
- (2) Notwithstanding the provisions of any other law, no child shall be subjected to capital punishment or to life imprisonment.
- (3) A child offender shall be separated from adults in custody.
- (4) A child who is arrested and detained shall be accorded legal and other assistance by the Government as well as contact with his family.

19. Right to privacy

Every child shall have the right to privacy subject to parental guidance.

20. Penalties

Notwithstanding penalties contained in any other law, where any person wilfully or as a consequence of culpable negligence infringes any of the rights of a child as specified in sections 5 to 19 such person shall be liable upon summary conviction to a term of imprisonment not exceeding twelve months, or to a fine not exceeding fifty thousand shillings or to both such imprisonment and fine.

20A. Application of No. 8 of 2010

- (1) The provisions of section 4 of the Counter-Trafficking in Persons Act, 2010 shall apply with regards to offences involving trafficking in children.
- (2) Any person convicted of an offence of trafficking in children shall be liable for punishment in accordance with the penalties imposed under section 4 of the Counter-Trafficking in Persons Act, 2010.

[Act No. 18 of 2018, Sch.]

21. Duties and responsibilities of a child

In the application of the provisions of this Act, and in any matter before a court of law concerning any child, due regard shall be had to the duties and responsibilities of a child to—

- (a) work for the cohesion of the family;
- (b) respect his parents, superiors and elders at all times and assist them in case of need;
- (c) serve his national community by placing his physical and intellectual abilities at its service;
- (d) preserve and strengthen social and national solidarity; and

- (e) preserve and strengthen the positive cultural values of his community in his relations with other members of that community:

Provided that in reckoning the requisite duty and responsibility of any individual child, due regard shall also be had to the age and ability of such child and to such limitations as are contained in this Act.

22. Enforcement of rights

- (1) Subject to subsection (2), if any person alleges that any of the provisions of sections 4 to 19 (inclusive) has been, is being or is likely to be contravened in relation to a child, then without prejudice to any other action with respect to the same matter which is lawfully available, that person may apply to the High Court for redress on behalf of the child.
- (2) The High Court shall hear and determine an application made by a person in pursuance of subsection (1) and may make such orders, issue such writs and give such directions as it may consider appropriate for the purpose of enforcing or securing the enforcement of any of the provisions of sections 4 to 19 (inclusive).
- (3) The Chief Justice may make rules with respect to the practice and procedure of the High Court in relation to the jurisdiction and powers conferred on it or under this section including rules with respect to the time within which applications may be brought and references shall be made to the High Court.

Part III – PARENTAL RESPONSIBILITY

23. Definition of parental responsibility

- (1) In this Act, "parental responsibility" means all the duties, rights, powers, responsibilities and authority which by law a parent of a child has in relation to the child and the child's property in a manner consistent with the evolving capacities of the child.
- (2) The duties referred to in subsection (1) include in particular—
 - (a) the duty to maintain the child and in particular to provide him with—
 - (i) adequate diet;
 - (ii) shelter;
 - (iii) clothing;
 - (iv) medical care including immunisation; and
 - (v) education and guidance;
 - (b) the duty to protect the child from neglect, discrimination and abuse;
 - (c) the right to—
 - (i) give parental guidance in religious, moral, social, cultural and other values;
 - (ii) determine the name of the child;
 - (iii) appoint a guardian in respect of the child;
 - (iv) receive, recover, administer and otherwise deal with the property of the child for the benefit and in the best interests of the child;
 - (v) arrange or restrict the emigration of the child from Kenya;
 - (vi) upon the death of the child, to arrange for the burial or cremation of the child.

- (3) The Minister may make regulations for the better discharge of parental responsibility by parents whose work conditions result in the separation from their children for prolonged periods.
- (4) The fact that a person has or does not have parental responsibility shall not affect—
 - (a) any obligation which such person may have in relation to the child (such as a statutory duty to maintain the child); or
 - (b) any rights which in the event of the child's death, such person (or any other person) may have in relation to the child's property.
- (5) A person who does not have parental responsibility for a particular child, but has care and control of the child may subject to the provisions of this Act, do what is reasonable in all the circumstances of the case for the purpose of safeguarding or promoting the child's welfare.

24. Who has parental responsibility

- (1) Where a child's father and mother were married to each other at the time of his birth, they shall have parental responsibility for the child and neither the father nor the mother of the child shall have a superior right or claim against the other in exercise of such parental responsibility.
- (2) Where a child's father and mother were not married to each other at the time of the child's birth and have subsequently married each other, they shall have parental responsibility for the child and neither the father nor the mother of the child shall have a superior right or claim against the other in the exercise of such parental responsibility.
- (3) Where a child's father and mother were not married to each other at the time of the child's birth and have not subsequently married each other—
 - (a) the mother shall have parental responsibility at the first instance;
 - (b) the father shall subsequently acquire parental responsibility for the child in accordance with the provisions of section 25.
- (4) More than one person may have parental responsibility for the same child at the same time.
- (5) A person who has parental responsibility for a child at any time shall not cease to have that responsibility for the child.
- (6) Where more than one person has parental responsibility for a child, each of them may act alone and without the other (or others) in that responsibility; but nothing in this Part shall be taken to affect the operation of any enactment which requires the consent of more than one person in a matter affecting the child.
- (7) The fact that a person has parental responsibility for a child may not entitle that person to act in any way which would be incompatible with any order made with respect to the child under this Act.
 - (a) A person who has parental responsibility for a child may not surrender or transfer any part of that responsibility to another but may arrange for some or all of it to be met by one or more persons acting on his behalf.
 - (b) The person with whom such arrangement is made may himself be a person who already has parental responsibility for the child concerned.
 - (c) The making of any such arrangement shall not affect any liability of the person making it which may arise from any failure to meet any part of such person's parental responsibility for the child concerned.

25. Acquisition of parental responsibility by father

- (1) Where a child's father and mother were not married at the time of his birth—
 - (a) the court may, on application of the father, order that he shall have parental responsibility for the child; or
 - (b) the father and mother may by agreement ("a parental responsibility agreement") provide for the father to have parental responsibility for the child.
- (2) Where a child's father and mother were not married to each other at the time of his birth but have subsequent to such birth cohabited for a period or periods which amount to not less than twelve months, or where the father has acknowledged paternity of the child or has maintained the child, he shall have acquired parental responsibility for the child, notwithstanding that a parental responsibility agreement has not been made by the mother and father of the child.

26. Parental responsibility agreement, etc

- (1) A parental responsibility agreement shall have effect for the purposes of this Act if it is made substantially in the form prescribed by the Chief Justice.
- (2) A parental responsibility agreement may only be brought to an end by an order of the court made on application by—
 - (a) any person who has parental responsibility for the child; or
 - (b) the child himself with the leave of the court.
- (3) The Court may only grant leave under subsection (2)(b) if it is satisfied that the child has sufficient understanding to make the proposed application.

27. Transmission of parental responsibility

- (1) Where the mother and father of a child were married to each other at the time of the birth of the child or have subsequently married each other—
 - (a) on the death of the mother the father shall exercise parental responsibility for the child either alone or together with any testamentary guardian appointed by the mother;
 - (b) on the death of the father, the mother if living shall exercise parental responsibility for the child either alone or together with any testamentary guardian appointed by the father;
 - (c) where both the mother and the father of the child are deceased, parental responsibility shall be exercised by—
 - (i) any testamentary guardian appointed by either of the parents; or
 - (ii) a guardian appointed by the court; or
 - (iii) the person in whose power a residence order was made prior to the death of the child's father and mother, and which order is still in force; or
 - (iv) a fit person appointed by the court; or
 - (v) in the absence of the persons specified in paragraphs (i), (ii), (iii) and (iv), a relative of the child.
- (2) Where the father and mother of the child were not married at the time of the birth of the child and have not subsequently married each other—
 - (a) on the death of the mother of the child, the father of the child, if he has acquired parental responsibility under the provisions of this Act, shall if he is still living, have parental

responsibility for the child either alone or with any testamentary guardian appointed by the mother or the relatives of the mother;

- (b) on the death of the father of a child who has acquired parental responsibility under the provisions of this Act, the mother of the child shall exercise parental responsibility in respect of the child either alone, or with any testamentary guardian appointed by the father;
- (c) the surviving mother or father of the child, as the case may be, shall be entitled to object to any testamentary guardian appointed by either of them acting and may apply to the court for the revocation of the appointment of the testamentary guardian and the relatives of the deceased mother or father of the child, may, if they consider the surviving father or mother of the child, as the case may be, to be unfit to exercise parental responsibility for the child, apply to the court to make such appropriate orders as shall be necessary in the circumstances of the case to safeguard the best interests of the child.

28. Extension of responsibility beyond eighteenth birthday

- (1) Parental responsibility in respect of a child may be extended by the court beyond the date of the child's eighteenth birthday if the court is satisfied upon application or of its own motion, that special circumstances exist with regard to the welfare of the child that would necessitate such extension being made:

Provided that the order may be applied for after the child's eighteenth birthday.

- (2) An application under this section may be made by—
 - (a) the parent or relative of a child;
 - (b) any person who has parental responsibility for the child;
 - (c) the Director;
 - (d) the child.

29. Regulations by Chief Justice

The Chief Justice shall make such regulations as shall be necessary for giving effect to any of the provisions of this Part.

Part IV – – ADMINISTRATION OF CHILDREN'S SERVICES

The National Council for Children's Services

30. Establishment of National Council for Children's Services

- (1) There is established a Council to be known as the National Council for Children's Services which shall be a body corporate with perpetual succession and a common seal.
- (2) The Council shall be capable in its corporate name of—
 - (a) suing and being sued;
 - (b) taking, purchasing or otherwise acquiring, holding, charging and disposing of movable and immovable property;
 - (c) borrowing and lending money;
 - (d) entering into contracts;
 - (e) receiving grants and gifts for child related projects; and

- (f) doing or performing all such other things or acts necessary for the proper performance of its functions under this Act which may lawfully be done or performed by a body corporate.

31. Composition of Council

- (1) The Council shall consist of—
 - (a) a chairperson appointed by the President, who shall be knowledgeable in, or has actively contributed to the promotion of the rights and welfare of children;
 - (b) the Principal Secretary responsible for matters relating to children or his representative;
 - (c) the Principal Secretary responsible for finance or his representative;
 - (d) the Principal Secretary responsible for Education or his representative;
 - (e) the Principal Secretary responsible for health or his representatives;
 - (f) the Attorney General or his representative;
 - (g) the Director children's Services;
 - (h) the following person appointed by the Cabinet Secretary—
 - (i) one representative from the non-governmental organization engaged in matters related to children activities;
 - (ii) one person representing faith based organisations; and
 - (i) the Chief Executive officer who shall be secretary to the Council.
- (2) The members of the Council appointed under subsection (1)(a) and (h) shall hold office for three years and may be nominated for a further final term of three years.
- (3) The conduct and regulation of the business and affairs of the Council shall be as provided for in the First Schedule.

[Act No. 12 of 2012, Sch., Act No. 11 of 2017, Sch.]

32. Functions of the Council

- (1) The object and purpose for which the Council is established is to exercise general supervision and control over the planning, financing and co-ordination of child rights and welfare activities and to advise the Government on all aspects thereof.
- (2) Without prejudice to the generality of subsection (1), the Council shall—
 - (a) design and formulate policy on the planning, financing and co- ordination of child welfare activities;
 - (b) determine priorities in the field of child welfare in relation to the socio- economic policies of the Government;
 - (c) plan, supervise and co-ordinate public education programmes on the welfare of children;
 - (d) facilitate donor funding of child welfare projects;
 - (e) co-ordinate and control the disbursement of all funding that may be received by the Council for child welfare projects;
 - (f) provide technical and other support services to agencies participating in child welfare programmes;
 - (g) prescribe training requirements and qualifications for authorised officers;

- (h) ensure the enhancement of the best interests of children among displaced or unaccompanied children held in care, whether in refugee camps or in any other institution;
- (i) ensure the full implementation of Kenya's international and regional obligations relating to children and facilitate the formulation of appropriate reports under such obligations;
- (j) participate in the formulation of policies on family employment and social security, that are designed to alleviate the hardships that impair the social welfare of children;
- (k) work towards the provision of social services essential to the welfare of families in general and children in particular;
- (l) consider and approve or disapprove child welfare programmes proposed by charitable children's institutions in accordance with section 69;
- (m) formulate strategies for the creation of public awareness in all matters touching on the rights and welfare of children;
- (n) set criteria for the establishment of children's institutions under this Act;
- (o) design programmes for the alleviation of the plight of children with special needs or requiring special attention;
- (p) establish panels of persons from whom guardians ad litem appointed by the court may be selected by the court to assist the Minister in carrying out his duties under this Act and in particular in the appointment of any officers prescribed under this Act, in the establishment of children's institutions and the formulation of any regulations that may be provided under this Act;
- (q) establish Area Advisory Councils to specialise in various matters affecting the rights and welfare of children;
- (r) create linkages and exchange programmes with other organisations locally and abroad;
- (s) endeavour to create an enabling environment for the effective implementation of this Act.

33. Power of the Council

The Council shall have power for the purpose of carrying out its functions, to do all such acts and things as appear to it to be requisite, advantageous or convenient for or in connection with the carrying out of its functions or incidental to their proper discharge and may carry out any activities in that behalf alone or in association with other persons or bodies.

34. Co-option and committees

The Council may co-opt members or regional representatives or appoint committees as it deems fit for the specialised aspects of its functions.

35. Regulations by the Council

The Council may, with the approval of the Minister, make regulations for the purpose of giving effect to the provisions of section 32.

36. Expenses

The expenses of the Council shall be defrayed out of moneys provided by Parliament or obtained from any other sources for that purpose.

The Director of Children's Services and Children's Officers

37. Appointment of Director, Deputy Directors and Children's Officers

- (1) The Minister shall appoint a Director of Children's Services and may also appoint one or more Deputy Directors of Children's Services and such number of senior children's officers and other officers as may be necessary to assist the Director in carrying out the purposes of this Act.
- (2) The Director may, subject to any regulations made by the Minister to the contrary, delegate to a Deputy Director or any children's officer appointed under subsection (1), or any person as the Minister shall deem fit, authority to exercise and perform any of the powers and duties conferred or imposed on the Director under this Act.
- (3) Children's officers shall perform the functions and exercise the powers conferred on them by this Act and shall, in addition, perform such duties as the Director may from time to time direct.

38. Functions of Director

- (1) The Director shall safeguard the welfare of children and shall in particular, assist in the establishment, promotion, co-ordination and supervision of services and facilities designed to advance the well being of children and their families.
- (2) Without prejudice to the generality of subsection (1) the Director shall—
 - (a) supervise children's officers and co-ordinate and regulate their work in the provision of children's welfare services;
 - (b) work in collaboration with relevant Government departments and public and private agencies to ensure the efficiency and effectiveness of all social programmes established in the interests of children;
 - (c) maintain up-to-date records and data on the management of children's services in Kenya, indicating the respective degrees of access to welfare amenities applicable to the various categories of children;
 - (d) provide the secretariat for the Council, and ensure that all decisions taken by the Council are fully processed and implemented;
 - (e) secure the conduct of investigations into cases of hardship affecting children throughout Kenya, and formulate, for the consideration of the Council, proposals for programmes to alleviate the hardships afflicting such children;
 - (f) give attention and provide assistance to the acute situations of children in hardship, including disabled children, street children, orphaned and destitute children, children who abuse drugs, children who are sexually abused and children who are affected by domestic violence, and formulate programmes for the consideration by the Council, for the alleviation of the plight of such children;
 - (g) make such enquiries and investigations and provide such reports and assessments as may be required by any court or for the enforcement of any order made by a court under this Act;
 - (h) provide all necessary assistance to the judicial process, to the intent that court orders in relation to children which require supporting, social and administrative arrangements may achieve fulfillment;
 - (i) safeguard the welfare of any child or children placed under care, by virtue of a care order or an interim order;
 - (j) provide assistance and procure accommodation for any child not in proper custody, any child who is abandoned or any child who is in need of refuge or safety;
 - (k) trace the parents or guardians of any lost or abandoned child, or return a lost or abandoned child to his lawful place of residence;

- (l) intervene on behalf of any child who is in need of care and protection and is in danger of imminent injury or harm, where possible by securing the removal of such child to a place of safety;
 - (m) mediate, in so far as permitted under this Act, in family disputes involving children, and their parents, guardians or other persons who have parental responsibility in respect of the children, and promote family reconciliation;
 - (n) make arrangements for the assessment of children placed under care and provide counselling, guidance and other support services for children and their families;
 - (o) provide care, guidance and other assistance and treatment for children who have been arrested or remanded in police custody or in children's remand homes, and assist children through court proceedings and children's hearings;
 - (p) supervise all children's rehabilitation centres, children's homes and remand homes and safeguard and promote the welfare of any children admitted therein;
 - (q) provide quarterly reports on the management of children's rehabilitation centres, children's homes and remand homes;
 - (r) safeguard the welfare of children in foster care;
 - (s) perform any functions prescribed in this Act, or as may be prescribed by any regulations made by the Minister.
- (3) The Director shall have power, for the purpose of carrying out his functions, to do all such acts and things as appear to him to be requisite, advantageous or convenient for or in connection with the carrying out of his functions or incidental to their proper discharge and may carry out any activities in that behalf alone or in association with any other person or institution.
- (4) Without prejudice to the generality of subsection (3), the Director shall have power to—
- (a) appoint and supervise approved officers and foster parents;
 - (b) call for information from any individual or institution for the purpose of safeguarding the interests of children in accordance with this Act;
 - (c) take over arrangements of proceedings before any public institution or court, involving children, being conducted by a different person as may be authorised under the law.

39. Penalty for obstruction

A person who obstructs the Director or a children's officer in the execution of his duties or powers under this Act commits an offence and is liable on conviction to a fine not exceeding one hundred thousand shillings, or to imprisonment for a term of twelve months in default, or to both.

The Role of Local Authorities

40. The role of local authorities It shall be the general duty of every local authority—

- (a) to safeguard and promote the rights and welfare of children within its jurisdiction;
- (b) to promote the good up-bringing of children by their families, through the establishment of suitable family-oriented programmes, and through the creation of a department to deal with the rights and welfare of children, public awareness and the co-ordination of relevant programme support initiatives from different social sub-sectors.

41. Appointed local authorities

The Director may from time to time, appoint a local authority for the purposes of this Act and a local authority so appointed shall, subject to the provisions of section 43, perform the duties imposed and have the powers conferred upon appointed local authorities under this Act.

42. Local authority welfare schemes

A local authority either by itself or jointly with other local authorities shall make welfare schemes for children embracing any or all of the items set out in the Second Schedule to this Act and the Director may by order appoint such local authority or joint local authorities to be an appointed local authority for the purposes and to the extent set out in such schemes.

43. Delegation of powers and duties by appointed local authorities

- (1) Where any powers or duties are by this Act conferred or imposed on an appointed local authority, those powers and duties shall—
 - (a) in the case of a child who has his home in a municipality or within a township, be powers and duties of the municipal council;
 - (b) in a county outside a municipality or township, the powers and duties of the county council.
- (2) Where, for any district, there is, for the time being, no appointed local authority having jurisdiction therein, the Minister may with the concurrence of the Treasury, by order appoint the District Commissioner of the district to have the functions of an appointed local authority under this Part, and have the powers imposed and conferred upon appointed local authorities by this Act in respect of all children having their homes within the district.

44. Delegation of functions of county councils

- (1) A county council which is an appointed local authority may, with the concurrence of the Council, delegate a county division, with or without restrictions or conditions, any of its functions as an appointed local authority.
- (2) Where functions are delegated to the council of a county division under this section, such council, in the discharge of those functions, shall act as agent for the county council.

45. Delegation to charitable children's institution

An appointed local authority may, with the approval of the Director, delegate its powers and duties relating to the investigations under section 120(12)(d) to a charitable children's institution or an approved officer.

46. Powers of local authorities to incur expenditure in temporary care

Any local authority, whether an appointed local authority or not, and any District Commissioner may incur expenditure in or about the temporary care of any child in need of care including his maintenance in a place of safety or in the return of any such child to his parent or guardian or to the area of the appointed local authority, if any, notwithstanding that in the case of an appointed local authority such a child has not been committed to its care under the provisions of this Act.

Part V – CHILDREN'S INSTITUTIONS**Rehabilitation - Schools and Remand Homes**

47. Establishment of rehabilitation schools

- (1) The Minister may establish such number of rehabilitation schools (hereinafter referred to as "rehabilitation school") as he may consider necessary to provide accommodation and facilities for the care and protection of children.
- (2) The manager of any institution which is suitable for the reception, maintenance, training and rehabilitation of children ordered to be sent to a rehabilitation school under this Act may apply to the Minister to approve the institution for that purpose and the Minister may, by notice in the *Gazette* declare the institution to be a rehabilitation school and issue a certificate of approval to the manager.
- (3) If at any time the Minister is dissatisfied with the condition or management of a rehabilitation school he may—
 - (i) subject the manager to disciplinary proceedings; or
 - (ii) request him in writing to show cause why the certificate of approval should not be withdrawn, and upon the expiration of the notice to show cause, if the manager has not responded, the certificate of approval shall be deemed to have been withdrawn and the school shall cease to be a rehabilitation school:

Provided that the Minister, instead of withdrawing the certificate of approval, may by notice served on the manager of the school, prohibit further admission of persons to the school for such time as may be specified in the notice until the notice is revoked.

- (4) If the Minister is satisfied or considers the continuation of a rehabilitation school to be unnecessary, he may give to the manager not less than six months notice in writing of his intention to withdraw the certificate of approval, and upon the expiration of the notice the certificate of approval shall be deemed to have been withdrawn and the school shall cease to be a rehabilitation school.
- (5) The manager of a rehabilitation school may, after giving not less than six months' notice in writing to the Minister of his intention so to do, surrender the certificate of approval of the school, and upon the expiration of the notice (unless the notice is previously withdrawn) the certificate shall be deemed to have been surrendered and the rehabilitation school shall cease to be approved.
- (6) No child shall be received into a rehabilitation school under the provisions of this Act after notice has been given of intention to withdraw or surrender the certificate of approval, but obligations of the manager with respect to children under his care at the date of the notice shall continue until the withdrawal or surrender takes effect.
- (7) The Minister shall cause any notice of intention to withdraw or surrender a certificate of approval to be published in the *Gazette*.

48. Separate sections in the rehabilitation schools

A rehabilitation school shall have separate sections for children of different sexes, and age categories, and separate sections for children offenders and children in need of care and protection.

49. Obligation of managers

The manager of a rehabilitation school shall be bound to accept every child who is duly sent or transferred to the school or otherwise committed to his care, unless—

- (a) the school is an institution for persons of a different religion or of a different sex from that of the child whom it is proposed to send or transfer there; or
- (b) the manager of the school satisfies the Minister that it is undesirable that any more children should be admitted to the school or otherwise committed to the manager's care.

50. Establishment of children's remand homes

- (1) The Minister may establish such children's remand homes as he considers necessary.
- (2) The manager of any government institution other than a prison may enter into an agreement for the use of that institution or any part thereof as a children's remand home on such terms as may be agreed between such manager and the Minister.

51. Supervision of rehabilitation schools and children's remand homes

The Director shall be responsible for the supervision of all rehabilitation schools and children's remand homes and for this purpose shall periodically visit them or cause them to be visited.

52. Leave of absence

The manager of a rehabilitation school may, with the authority of the Director, grant leave of absence to any child staying in that rehabilitation school for such period and on such conditions as he may deem fit and may at any time terminate such leave and direct the child to return to the school.

53. Revocation of children's committal order

- (1) If at any time during the period of a child's stay at a rehabilitation school the Director is satisfied that such child should not remain subject to the applicable committal order, he may refer the matter to the Children's Court for revocation of the committal order.
- (2) A Children's Court may at any time, on its own motion or on the application of any person, revoke an order committing a child to a rehabilitation school, but before doing so it shall call for all the relevant records of the court which made the order, and all relevant records of any court which may previously have considered an application under this section.
- (3) Notwithstanding anything in this Act, an order committing a child to a rehabilitation school shall not remain in force beyond the date on which the child attains the age of eighteen years, nor shall any such order remain in force for longer than three years at a time except by order of the court.
- (4) On an application for an order under subsection (2) or subsection (3) the manager of the rehabilitation school where the child is, shall cause the child to be brought before the court, unless the court otherwise orders.

54. Transfers and supervision after release

- (1) The Director may at any time order a child to be transferred from one rehabilitation school to another, but the period of his rehabilitative care shall not be increased thereby.
- (2) A child committed to a rehabilitation school shall, after the expiration of the prescribed period of his stay, be under the supervision of such person as the Director shall appoint, for a period of two years, or until he attains the age of twenty- one years whichever shall be the shorter period.

55. Treatment of absconders and children of difficult character

- (1) Where the Director is of the opinion that a child committed to a rehabilitation school is a persistent absconder, is of difficult character or is exercising inappropriate influence on the other children in the school, he may apply to the children's court having jurisdiction in the place where the school is situated—
 - (a) to have the period of committal increased by a period not exceeding six months, if the child is of or below the age of sixteen years; or
 - (b) to have the child sent to a borstal institution, if the child is above the age of sixteen years; or

- (c) to have the child provided with appropriate medical treatment or professional counselling, if the child's conduct is attributable to drug abuse, or if the child is of unsound mind or is suffering from a mental illness.
- (2) The parents of the child or any person who has parental responsibility for the child shall be notified of, and afforded an opportunity to be heard in, any proceedings instituted under this section, unless the court is satisfied that such persons cannot be found or cannot reasonably be expected to attend the proceedings.
- (3) The expenses incurred in committing a child under this section shall be borne by the State:
Provided that a child whose period of committal is increased or who is sent to a borstal institution shall be provided with appropriate professional assistance.

56. Removal to health institution

- (1) In the case of serious illness of a child staying in a children's remand home or a rehabilitation school the manager, on the advice of a medical officer or medical practitioner, may make an order for his removal to a health institution.
- (2) Whenever the medical officer in charge of a health institution considers that the health of a child removed to a hospital under the provisions of this section no longer requires treatment therein, he shall notify the manager of the remand home or rehabilitation school from which he was removed to hospital, who shall thereupon cause such a child to be returned to the school if he is still liable to be kept therein.
- (3) Every reasonable precaution shall be taken by the medical officer in charge of the health institution to prevent the escape of any child who is hospitalised therein under this section:

Provided that nothing shall be done under the authority of this section which in the opinion of the medical officer in charge of the health institution is likely to be prejudicial to the health of the child concerned.

57. Authority for confinement in children's remand homes, rehabilitation school and hospital

The order committing a child to custody in a children's remand home or ordering him to be sent to a rehabilitation school shall be sufficient authority for his confinement in that place in accordance with the tenor thereof, or in a health institution under section 56, and a child while confined and while being conveyed to or from a children's remand home or a rehabilitation school to or from a health institution, as the case may be, shall be deemed to be in lawful custody.

Charitable Children's Institutions

58. Definition of a charitable children's institution

In this Part a "charitable children's institution" means a home or institution which has been established by a person, corporate or unincorporate, a religious organisation or a non-governmental organisation and has been granted approval by the Council to manage a programme for the care, protection, rehabilitation or control of children.

59. Exceptions

A charitable children's institution shall not include—

- (a) a rehabilitation school established by the Minister under section 47;
- (b) a school within the meaning of the Education Act (Cap. 211);
- (c) a borstal institution;

- (d) any health institution;
- (e) a children's day care centre, nursery or other similar establishment;
- (f) a temporary place of safety established under regulations made under this Act:

Provided that nothing in this section shall prevent a charitable children's institution from providing medical care, education or training for children accommodated therein, if the provision of such services has been approved by the Council.

[Act No. 18 of 2018, Sch.]

60. Proof of registration

A non-governmental organisation or a religious organisation which establishes a charitable children's institution shall be required to show proof of the registration of the organisation under a recognised system of registration of private institutions before applying for approval to implement a child welfare programme.

61. Institution set up by a person or unincorporated body of persons

Any person or unincorporated body of persons who or which establishes a charitable institution for the care, protection, rehabilitation or control of children shall be required to furnish the Director with a list of the trustees of the institution before applying for approval to implement a child welfare programme.

62. Criteria for approval of programmes The Council shall provide the criteria for approval of child welfare programmes of charitable institutions.

63. Reception of children in a charitable children's institution

- (1) A child shall be received in the care of a charitable children's institution if—
 - (a) in an emergency situation, the child is taken to the institution by an authorised officer or any person who has reasonable cause to believe that the child is in need of care and protection;
 - (b) he is referred to the institution by way of an interim care order or a care order.
- (2) A child who is received by a charitable children's institution in accordance with subsection (1)(a) shall be brought before a court without delay unless—
 - (a) his guardian or parent applies to the Director for his release;
 - (b) he is held in accordance with section 120(2);
 - (c) it is not in the best interest of the child to do so.

64. Duty to maintain a child in a charitable children's institution A charitable children's institution in which the child is received, shall provide the child with adequate care and protection for the period of his accommodation therein as provided in the criteria set by the Council.

65. Director to monitor progress of children

- (1) The Director shall monitor the progress of a child admitted into a charitable children's institution, until the child is discharged therefrom or until the expiry of a care order made in respect of the child.
- (2) The Director shall ensure that the child is periodically visited and interviewed by an officer authorised by him.

66. Appointment and powers of approved officers

- (1) A charitable children's institution may, with the approval of the Director, by notice in the *Gazette*, appoint one or more persons to be approved officers, to further the purposes of the institution which relate to the care, protection and control of children:

Provided that no approved officer shall enter upon the exercise of his functions as such in the area of any appointed local authority without the concurrence of such authority.

- (2) The appointment of an approved officer may be revoked by the Director on the recommendation of the charitable children's institution and any such revocation shall be published in the *Gazette*.
- (3) Approved officers shall have such powers as the Director may prescribe.

67. Inspection of charitable children's institutions

- (1) The Director may authorise an officer to inspect a charitable children's institution, or any other premises which he has cause to believe, are being used to accommodate children who are in need of care and protection.
- (2) Any authorised officer acting in accordance with subsection (1) may at all reasonable times, enter, after producing, if asked to do so, some duly authenticated document showing that he is so authorised to enter, any charitable children's institution or premises aforesaid and shall in particular—
 - (a) interview any child in the institution or premises;
 - (b) require the production of an annual report and any records required to be kept in accordance with the regulations made under section 72;
 - (c) inspect the conditions and facilities provided by the institution or managers of the premises;
 - (d) prepare and submit a report to the Director outlining his findings and recommendations.
- (3)
 - (a) A refusal to allow any authorised officer referred to in subsection (2) to enter a charitable children's institution or such premises as are mentioned in subsection (1) to inspect or interview any person in the institution or premises, shall be deemed to be a reasonable cause to suspect that a child in the institution or the premises is being neglected or abused in a manner which causes the child to be in need of care and protection.
 - (b) Any person who unlawfully refuses to allow an authorised officer referred to in subsection (2) to enter a charitable children's institution or such premises as are mentioned in subsection (1), or who interferes in any way with the work of such officer or fails to produce any report or records, or conceals any facility within such institution or premises, commits an offence and is liable to imprisonment for a term not exceeding twelve months or to a fine not exceeding Kenya shillings fifty thousand or to both.
- (4) Upon receipt of an inspection report the Director may in addition to taking other remedial measures as may be prescribed by the Minister, require a charitable children's institution to appoint a new management and institute appropriate remedial measures:

Provided that the Director may in consultation with the Area Advisory Council appoint a manager to manage the institution for a period not exceeding two months in order to institute remedial measures.
- (5) The functions and powers of the authorised officer appointed under this section shall be supplementary to and not in derogation of the functions and powers conferred on an inspection committee appointed under section 68.

68. Inspection committees

- (1) The Minister may appoint an inspection committee to inspect any rehabilitation school, children's remand home or charitable children's institution.
- (2) The committee appointed under subsection (1) shall comprise not more than five persons and shall exercise and perform, subject to any directions given by the Minister, the powers and functions specified in the Eighth Schedule.
- (3) Recommendations of the committee shall be reported to the Minister and shall, subject to any directions given by the Minister, be implemented by the Director.
- (4) The Director shall, within six months of the submission of a report by the committee to the Minister, report to the Council on the action taken to implement any recommendations contained in the report.

69. Duty to notify the Area Advisory Council

- (1) Any charitable children's institution which intends to implement a child welfare programme shall notify the Area Advisory Council and shall provide full information on the mode of operation and the specific objects of the programme.
- (2) The Area Advisory Council shall submit to the Director particulars of the proposed child welfare programme with recommendations.
- (3) The Director shall place before the Council all information on the proposed child welfare programme supplied by virtue of subsection (2), and the Council may approve or disapprove such programme or part of it taking into account the best interests of children.
- (4) Where the Council disapproves a programme or part of a programme by virtue of subsection (2), any person or organisation who proceeds with it or with the part that is disapproved shall be liable to a fine not exceeding twenty thousand shillings and to an additional one thousand shillings for each day that the disapproved programme remains in operation.

70. Review of programme The Director shall, at the end of twelve months beginning with the date of approval of a child welfare programme, and thereafter annually, review the programme in order to advise the Council on whether the programme should continue being in force or be cancelled.**71. Cancellation of a programme**

- (1) The Council, upon the recommendation of the Director, may cancel a programme undertaken by a charitable children's institution on the grounds that—
 - (a) the institution is unfit for the care, protection and control of children; or
 - (b) the children admitted into the institution are suffering or are likely to suffer harm; or
 - (c) the manager of the institution has contravened any of the regulations made under this Act:Provided that the Council shall give fifteen days notice of the proposed cancellation.
- (2) Any person aggrieved by the Council's decision made in accordance with subsection (1) may appeal to the Minister whose decision shall be final.
- (3) When a cancellation under this section takes effect, the Director shall, subject to any directions of the Minister, take such remedial measures as may be necessary to protect the children accommodated in the home.

- (4) The Director may, under subsection (3)—
 - (a) remove any child or children from the home;
 - (b) procure the closure of the home;
 - (c) institute disciplinary measures against the manager of the home; or
 - (d) take such other action as may be necessary for the protection of the children.

72. Regulations The Minister may, in consultation with the Council, make regulations for the better carrying out of the provisions of this Part and in particular, such regulations may make provision for—

- (a) the requirements of and procedure for approval of children's welfare programmes;
- (b) the management of remand homes, rehabilitation schools, and charitable children's institutions;
- (c) requirements as to the accommodation, staff and equipment to be provided in charitable children's institutions;
- (d) the qualifications of managers;
- (e) the training and remuneration of persons employed in children's remand homes, and rehabilitation schools;
- (f) the criteria to be applied to limit the number of children who may be accommodated in charitable children's institutions;
- (g) the education and training of children in charitable children's institutions;
- (h) religious instruction to children in charitable children's institutions appropriate to the religious persuasion to which they belong;
- (i) requirements as to arrangements for medical care (including psychiatric and dental health) and for the prevention of infectious and contagious diseases in charitable children's institutions;
- (j) special care for children with disabilities and children with chronic ailments;
- (k) requirements as to the keeping of records and giving of notices in respect of children received in charitable children's institutions;
- (l) the conduct of reviews under section 70;
- (m) the conduct of inspections of charitable children's institutions;
- (n) corrective measures which should be imposed by the Director after inspection of a charitable children's institution and penalties for non-compliance therewith;
- (o) appeals against decisions made under this Part.

72A. Powers of Cabinet Secretary over charitable children institutions

- (1) Notwithstanding any other provision of this Part, the Cabinet Secretary may direct the Council to cancel the registration of, or to close down, a charitable children institution where —
 - (a) the lives of children in such institution are in danger or where their continued stay therein is likely to endanger their wellbeing;
 - (b) the institution or a person involved in the management of such institution is unfit to provide care or protection to the children;
 - (c) it has been established that the institution does not serve the best interest of the children therein; or

- (d) such institution, is in contravention of the Constitution, the Convention on Rights of the Child, the African Charter on the Rights and Welfare of the Child or any other law or international treaties or conventions to which Kenya is a party.
- (2) The Cabinet Secretary may pursuant to subsection (1) order the suspension of the registration of new charitable children institutions.

[Act No. 18 of 2018, Sch.]

72B. Caretaker Committee.

Where the Cabinet Secretary makes a directive under section 72A (1), the Cabinet Secretary shall appoint a Committee of suitably qualified persons to oversee the process of closure and the relocation of the children in the concerned institution.

[Act No. 18 of 2018, Sch.]

Part VI – CHILDREN’S COURTS

73. Jurisdiction of Children’s Court There shall be courts to be known as Children’s Courts constituted in accordance with the provisions of this section for the purpose of—

- (a) conducting civil proceedings on matters set out under Parts III, V, VII, VIII, IX, X, XI and XIII;
- (b) hearing any charge against a child, other than a charge of murder or a charge in which the child is charged together with a person or persons of or above the age of eighteen years;
- (c) hearing a charge against any person accused of an offence under this Act;
- (d) exercising any other jurisdiction conferred by this or any other written law:

Provided that—

- (i) reference to subordinate courts of any class, in the First Schedule to the Criminal Procedure Code (Cap. 75), shall include a Children’s Court;
- (ii) the Chief Justice may, by notice in the *Gazette*, appoint a magistrate to preside over cases involving children in respect of any area of the country;
- (iii) where in the course of any proceedings in a Children’s Court it appears to the court that the person charged, or to whom the proceedings relate, is over eighteen years of age, or where in the course of any proceedings in any court other than a Children’s Court it appears to the court that the person charged or to whom the proceedings relate, is under eighteen years of age, nothing in this section shall prevent the court, if it thinks fit, from proceeding with the hearing and determination of the case;
- (iv) where any conviction or sentence made or passed by a court other than a Children’s Court is appealed against or is brought before the High Court for confirmation or revision and it appears that the person convicted was at the time of the commission of the offence under eighteen years of age, the High Court shall have power to substitute for the conviction a finding of guilty in accordance with section 196 and substitute for the sentence an order under section 125(2) of this Act.

74. Sitting of Children’s Court A Children’s Court shall sit in a different building or room, or at different times, from those in which sittings of courts other than Children’s Courts are held, and no person shall be present at any sitting of a Children’s Court except—

- (a) members and officers of the court;

- (b) parties to the case before the court, their advocates and witnesses and other persons directly concerned in the case;
- (c) parents or guardians of any child brought before the court;
- (d) bona fide registered representatives of newspapers or news agencies;
- (e) such other persons as the court may specially authorise to be present.

75. Power to clear court Where in any proceedings in relation to an offence against or by a child, or any conduct contrary to decency or morality, a person who, in the opinion of the court, is under eighteen years of age is called as a witness, the court may direct that all or any persons, not being members or officers of the court, or parties to the case or their advocates, shall be excluded from the court.

76. General principles with regard to proceedings in Children's Court

- (1) Subject to section 4 where a court is considering whether or not to make one or more orders under this Act with respect to a child it shall not make the order or any other orders unless it considers that doing so would be more beneficial to the welfare of the child than making no order at all.
- (2) In any proceedings in which an issue on the upbringing of a child arises, the court shall have regard to the general principle that any delay in determining the question is likely to be prejudicial to the welfare of the child.
- (3) Where the court is considering whether or not to make an order with regard to a child, it shall have particular regard to the following matters—
 - (a) The ascertainable feelings and wishes of the child concerned with reference to the child's age and understanding;
 - (b) the child's physical, emotional and educational needs and in particular, where the child has a disability, the ability of any person or institution to provide any special care or medical attention that may be required for the child;
 - (c) the likely effect on the child of any change in circumstances;
 - (d) the child's age, sex, religious persuasion and cultural background;
 - (e) any harm the child may have suffered, or is at risk of suffering;
 - (f) the ability of the parent, or any other person in relation to whom the court considers the question to be relevant, to provide for and care for the child;
 - (g) the customs and practices of the community to which the child belongs;
 - (h) the child's exposure to, or use of drugs or other psychotropic substances and, in particular, whether the child is addicted to the same, and the ability of any person or institution to provide any special care or medical attention that may be required for the child;
 - (i) the range of powers available to the court under this Act.
- (4) The court may, if it considers it imperative for the proper determination of any matter in issue before it, of its own motion or upon application, call any expert witness it shall deem appropriate to provide assistance to the court, and the expenses of any such witness shall be determined by the court and shall be defrayed out of moneys provided by Parliament.
- (5) In any proceedings concerning a child, whether instituted under this Act or under any written law, a child's name, identity, home or last place of residence or school shall not, nor shall the particulars of the child's parents or relatives, any photograph or any depiction or caricature of the child, be published or revealed, whether in any publication or report (including any law report) or otherwise.

- (6) Any person who contravenes the provisions of subsection (5) commits an offence and shall on conviction be liable to a fine not less than one hundred thousand shillings or to imprisonment for a term not less than one year or to both, and in the case of a body corporate, a fine of not less than one million shillings.

[Act No. 8 of 2010, 2nd Sch.]

77. Legal aid

- (1) Where a child is brought before a court in proceedings under this Act or any other written law, the court may, where the child is unrepresented, order that the child be granted legal representation.
- (2) Any expenses incurred in relation to the legal representation of a child under subsection (1) shall be defrayed out of monies provided by Parliament.

78. Reports

- (1) A court while considering any question with respect to a child under this Act, may require to have presented to it a report, either oral or written as the court may direct, on such matters relating to the child as the court may consider necessary;
- and the court may direct that such report be prepared by such person or persons as the court may designate.
- (2) Regardless of any enactment or rule of law which would otherwise prevent it from doing so, the court may take into account—
- (a) any statement contained in the report; or
 - (b) any evidence given in respect of the matters referred to in the report, in so far as the statement or evidence is, in the opinion of the court, relevant to the question which it is considering.

79. Appointment of a guardian ad litem A court before which a child is brought, and especially where that child is not represented by an advocate, may appoint a guardian ad litem for the purposes of the proceedings in question and to safeguard the interests of the child.

80. Appeals Unless otherwise provided under this Act, in any civil or criminal proceedings in a Children's Court, an appeal shall lie to the High Court and a further appeal to the Court of Appeal.

Part VII – – CUSTODY AND MAINTENANCE

81. Meaning of custody, care and control

- (1) In this Part unless the context otherwise requires—
- (a) "custody" with respect to a child, means so much of the parental rights and duties as relate to the possession of the child;
 - (b) "care and control" means actual possession of a child, whether or not that possession is shared with one or more persons;
 - (c) "legal custody" means so much of the parental rights and duties in relation to possession of a child as are conferred upon a person by a custody order;

- (d) "actual custody" means the actual possession of a child, whether or not that possession is shared with one or more persons.
- (2) Where a person, not having legal custody of a child, has care and control of the child, he shall be under a duty to safeguard the interests and welfare of that child.
- (3) Where a person, not having legal custody of a child, has actual custody he shall be deemed to have care and charge of the child and shall be under a duty to take all reasonable steps to safeguard the interests and welfare of that child.
- (4) In this Act, unless the context otherwise requires, reference to the person under whom a child has his home refers to the person who, disregarding absence of the child at a hospital or boarding school and any other temporary absence, has care and control of that child.

82. Custody

- (1) A court may, on the application of one or more persons qualified under subsection (3) of this section, make an order vesting the custody of a child in the applicant or, as the case may be, in one or more of the applicants.
- (2) An order under subsection (1) may be referred to as a custody order, and the person to whom custody of the child is awarded is referred to as the custodian of the child.
- (3) Custody of a child may be granted to the following persons—
 - (a) a parent;
 - (b) a guardian;
 - (c) any person who applies with the consent of a parent or guardian of a child and has had actual custody of the child for three months preceding the making of the application;
 - (d) any person who, while not falling within paragraph (a), (b) or (c), can show cause, having regard to section 83, why an order should be made awarding that person custody of the child.

83. Principles to be applied in making custody order

- (1) In determining whether or not a custody order should be made in favour of the applicant, the court shall have regard to—
 - (a) the conduct and wishes of the parent or guardian of the child;
 - (b) the ascertainable wishes of the relatives of the child;
 - (c) the ascertainable wishes of any foster parent, or any person who has had actual custody of the child and under whom the child has made his home in the last three years preceding the application;
 - (d) the ascertainable wishes of the child;
 - (e) whether the child has suffered any harm or is likely to suffer any harm if the order is not made;
 - (f) the customs of the community to which the child belongs;
 - (g) the religious persuasion of the child;
 - (h) whether a care order, or a supervision order, or a personal protection order, or an exclusion order has been made in relation to the child concerned and whether those orders remain in force;
 - (i) the circumstances of any sibling of the child concerned, and of any other children of the home, if any;

- (j) the best interest of the child.
- (2) Where a custody order is made giving custody of a child to one party to a marriage, or in the case of joint guardians to one guardian, or in the case of a child born out of wedlock to one of the parents, the court may order that the person not awarded custody shall nevertheless have all or any rights and duties in relation to a child, other than the right of possession, jointly with the person who is given custody of the child.
- (3) In any case where a decree for judicial separation or a decree, either nisi or absolute for divorce, is pronounced, and the court pronouncing the decree either nisi or absolute finds the parent by reason of whose misconduct the decree is made to be unfit to have the legal custody of the child or children of the marriage, the parent so declared to be unfit shall not, upon the death of the other parent, be entitled to legal custody of the child except with the leave of the court.

84. Restriction on removal of a child where applicant has provided home for three years

- (1) Where an application for a custody order in respect of a child made by the person with whom the child has, at the time the application is made, had his home for a period, whether continuous or not, of three years, no person shall be entitled, against the will of the applicant, to remove the child from the applicant's custody except with the leave of the court.
- (2) Any person who contravenes subsection (1) commits an offence and shall be liable on summary conviction to imprisonment for a term not exceeding three months or a fine not exceeding ten thousand shillings or to both.

85. Return of child taken away in breach of section 80

- (1) A court may, on the application of a person from whom a child has been removed in breach of section 84, order the person who has so removed the child to return the child to the applicant and where the child has been removed from the jurisdiction of the court or the Republic of Kenya, make a wardship order or a production order on such conditions as the court may deem appropriate in the circumstances.
- (2) A court may, on the application of a person who has reasonable grounds for believing that another person is intending to remove a child from the applicant's custody in breach of section 84, by order direct that other person not to remove the child from the applicant.
- (3) Where a court is satisfied by information on oath that there are reasonable grounds for believing that a child to whom an order under subsection (1) relates is in the premises specified in the information, the court may issue a search warrant authorising a police officer to search the premises; and if the police officer acting in pursuance of a warrant under this section finds the child, he shall return the child to the person whose application the order under subsection (1) was made.
- (4) Whenever a court makes a custody order with respect to a child it shall, in addition, give such directions as to any rights of access to the child, and with regard to the maintenance of the child as the court may deem fit.

86. Disputes between joint custodians If two persons have parental rights or duty vested in them jointly by a custody order but cannot agree on its exercise or performance, either of them may apply to the court, and the court may make such order regarding the exercise of the right or performance of the duty as it thinks fit.

87. Revocation of custody order

- (1) A court may, on application, revoke a custody order, provided that before doing so it shall make an order as to who is to have custody of the child thereafter or an appropriate section 114 order.

- (2) The Court shall not proceed to hear an application made for the revocation of a custody order where a previous such application made by the same person has been refused by that or any other court unless—
 - (a) in refusing the previous application the court directed that this subsection should not apply; or
 - (b) it appears to the court that because of a change in circumstances or for any other reason it is proper to proceed with the application.
- (3) The custodian of a child may apply to the court for the revocation of any order made with regard to access to the child, or with respect to the maintenance of the child.
- (4) Any other person on whose application an order in respect of access or maintenance was made, or who was required by such an order to contribute towards the maintenance of the child, may apply to a court for the revocation or variation of that order.
- (5) Any order in relation to access or maintenance in respect of a child who is subject of a custody order shall not cease to have effect on the revocation of a custody order unless otherwise directed by the court.
- (6) A custody order made in respect of a child, and any order in respect of access or maintenance of a child who is the subject of a custody order, shall cease to have effect when the child attains the age of eighteen years:

Provided that the court shall have power, upon application being made, to extend a custody, access or maintenance order beyond the child's eighteenth birthday, for such period as it shall deem fit.

88. Interim custody orders

- (1) The court shall have power to make interim custody orders and may from time to time review, suspend or vary such orders.
- (2) An interim custody order shall not be made in respect of a period exceeding twelve months.

89. Agreement not to be invalid by reason of giving custody to mother No agreement made between the parents of a child, shall be held to be invalid by reason only of its providing that the father shall give legal custody or actual custody thereof to the mother:

Provided that the court shall not enforce any such agreement if it is of the opinion that it will not be for the benefit of the child to give effect thereto.

Maintenance of Children

90. Joint maintenance of children Unless the court otherwise directs, and subject to any financial contribution ordered to be made by any other person, the following presumptions shall apply with regard to the maintenance of a child—

- (a) Where the parents of a child were married to each other at the time of the birth of the child and are both living, the duty to maintain a child shall be their joint responsibility;
- (b) where two or more guardians of the child have been appointed, the duty to maintain the child shall be the joint responsibility of all guardians, whether acting in conjunction with the parents of the child or not;
- (c) where two or more custodians have been appointed in respect of a child it shall be the joint responsibility of all custodians to maintain the child;

- (d) where a residence order is made in favour of more than one person, it shall be the duty of those persons to jointly maintain the child;
- (e) where the mother and father of a child were not married to each other at the time of birth of the child and have not subsequently married, but the father of the child has acquired parental responsibility for the child, it shall be the joint responsibility of the mother and father of the child to maintain that child.

91. Power to make maintenance order Any parent, guardian or custodian, of the child, may apply to the court to determine any matter relating to the maintenance of the child and to make an order that a specified person make such periodical or lump sum payment for the maintenance of a child, in this Act referred to as a "maintenance order," as the court may see fit:

Provided that—

- (a) on the making, varying, or discharging of a residence, guardianship or custody order, the court may make a maintenance order for a child even though no application has been made by any person;
- (b) a person who has attained the age of eighteen years may, with the leave of the court, apply to the court for a maintenance order to be made in his favour in the following circumstances—
 - (i) The person is or will be involved in education and training which will extend beyond the person's eighteenth birthday; or
 - (ii) the person is disabled and requires specialised care which will extend beyond the person's eighteenth birthday; or
 - (iii) the person is suffering from an illness or ailment and will require medical care which will extend beyond the person's eighteenth birthday; or
 - (iv) other special circumstances exist which would warrant the making of the order.

92. Maintenance during matrimonial proceedings The court shall have power to make a maintenance order, whether or not proceedings for nullity, judicial separation, divorce or any other matrimonial proceedings have been filed by the parent of a child, or during proceedings or after a final decree is made in such proceedings:

Provided always that once proceedings for the maintenance of a child have been commenced under this Act or any other Act, no subsequent or other proceedings with respect to the maintenance of that child may be commenced under any other Act without the leave of the court.

93. Financial provisions The court may order the person against whom a maintenance order is made to make a financial provision for the child by—

- (i) periodical payments; or
- (ii) such lump sum payment as the court shall deem fit, to the person in whose favour the order is made or to any other person appointed by the Court.

94. Financial provisions by step-parents and father of child born out of wedlock

- (1) The Court may order financial provision to be made by a parent for a child including a child of the other parent who has been accepted as a child of the family and in deciding to make such an order

the court shall have regard to the circumstances of the case and without prejudice to the generality of the foregoing, shall be guided by the following considerations—

- (a) The income or earning capacity, property and other financial resources which the parties or any other person in whose favour the court proposes to make an order, have or are likely to have in the foreseeable future;
- (b) the financial needs, obligations, or responsibilities which each party has or is likely to have in the foreseeable future;
- (c) the financial needs of the child and the child's current circumstances;
- (d) the income or earning capacity, if any, property and other financial resources of the child;
- (e) any physical or mental disabilities, illness or medical condition of the child;
- (f) the manner in which the child is being or was expected to be educated or trained;
- (g) the circumstances of any of the child's siblings;
- (h) the customs, practices and religion of the parties and the child;
- (i) whether the respondent has assumed responsibility for the maintenance of the child and if so, the extent to which and the basis on which he has assumed that responsibility and the length of the period during which he has met that responsibility;
- (j) whether the respondent assumed responsibility for the maintenance of the child knowing the child was not his child, or knowing that he was not legally married to the mother of the child;
- (k) the liability of any other person to maintain the child;
- (l) the liability of that person to maintain other children.

95. Power to order maintenance monies to be paid to person other than the applicant
Whenever a maintenance order is made under this section the court may, at the time of making the order, or from time to time thereafter, on being satisfied that the person in whose favour the order is made—

- (a) is not a fit or proper person to receive any maintenance monies specified in the order in respect of a child; or
- (b) has left the jurisdiction of the court for an indefinite period, or is dead, or is incapacitated or has become of unsound mind, or has been imprisoned or has been declared bankrupt; or
- (c) has misappropriated, misapplied or mismanaged any maintenance monies paid to him for the benefit of the child, appoint any other person whom it considers fit and responsible to receive and administer any maintenance monies required to be paid under a maintenance order, or order the person required to make a payment of the maintenance monies under this section to secure the whole or any part of it by vesting the sums or any other property and subject thereto in trust for the child.

96. Duration of financial provisions

- (1) A maintenance order requiring that a financial provision in respect of a child be paid by periodical payments may commence on the date of the application or such later date as the court may direct, but will not remain in force beyond the child's eighteenth birthday, subject to the provisions of section 91.
- (2) An order for periodical payment shall be reviewed by the court upon the death of the person who is liable to make the payment.

- 97. Interim orders** A court shall have power to make an interim maintenance order and in so doing may dispense with any notice that may be prescribed to be given to any person, if it is satisfied that it is in the best interests of the child so to do.
- 98. Other maintenance provisions** A court shall have power to make an order and to give directions regarding any aspect of the maintenance of a child, including but not limited to, matters relating to the provision of education, medical care, housing and clothing for the child; and in this behalf may make an order for financial provisions for the child.
- 99. Power to impose conditions and to vary order** The court shall have power to impose such conditions as it thinks fit to an order made under this section and shall have power to vary, modify or discharge any order made under section 98 with respect to the making of any financial provision, by altering the times of payments or by increasing or diminishing the amount payable or may temporarily suspend the order as to the whole or any part of the money paid and subsequently revive it wholly or in part as the court thinks fit.
- 100. Power to vary maintenance agreements** Where the parents, guardians or custodians of a child, have entered into an agreement whether oral or written in respect of the maintenance of the child the court may, upon application, vary the terms of the agreement if it is satisfied that such variation is reasonable and in the best interests of the child.

Enforcement of Maintenance Orders and Contribution Orders

101. Enforcement of maintenance orders and contribution orders

- (1) Any person, including the child in whose favour a maintenance order has been made pursuant to section 91, may apply to the court for the enforcement of the order under this section, if the person against whom the order is made has failed to comply with any provision contained in a maintenance order or has defaulted in any payment specified by the order, for the recovery of any arrears with regard to any financial provision stipulated in the order.
- (2) Where a contribution order has been made under section 144 of this Act, a person or an institution in whose favour the order has been made may apply to the court under this section for the enforcement of the order and for the recovery of any arrears from the person required to make a contribution to the maintenance of the child.
- (3) Unless otherwise directed by the court, notice of proceedings under this section shall be served on the respondent who may be summoned or arrested on a warrant issued by the court.
- (4) Prior to the making of an order under this section, the court may hold an enquiry as to the means of the respondent who shall, whenever possible, be present and where such enquiry is held the court may direct that—
 - (a) enquiries be made as to the means of the respondent by such person as the court may direct; or
 - (b) the respondent's income, assets and liabilities be searched to establish such information as the court may require to make an order under this section; or
 - (c) a statement of means from the respondent's employer, or auditors or from such other person as the court shall direct, be availed to the court.

- (5) Where the court is satisfied that the respondent has failed to make payment of any financial provision under a maintenance order or a contribution order, the court may—
- (a) order that any arrears in respect of any maintenance monies or contribution monies as the case may be, be paid forthwith, or by instalments or within such other period as shall be specified by the court;
 - (b) order the remission of the arrears, but the court shall not make an order of this nature without prior notice to the child, or the person or institution as the case may be, in favour of whom the maintenance order or contribution order has been made and without allowing them a reasonable opportunity to make representations;
 - (c) issue a warrant for distress on the respondent's property forthwith or postpone the issue of the warrant until such time as the court may direct, or on such conditions as the court may deem fit and order the attachment of the respondent's earnings including any pension payable to the defaulter if the court is satisfied that—
 - (i) the failure to make payment was due to the wilful refusal or culpable neglect of the respondent; and
 - (ii) the respondent is gainfully employed or is engaged in some business enterprise or undertaking or owns property from which he derives an income:

Provided that the court shall not, unless special circumstances exist, make an order for the attachment of the respondent's earnings in an amount which shall exceed more than 45% of the respondent's annual income in any period of twelve months;

- (d) order the detention, attachment, preservation or inspection of any property of the respondent and, for all or any of the purposes aforesaid, authorise such person, as the court may deem fit, to enter upon any land or building in which the respondent has an interest whether in the possession or control of the defaulter or not;
 - (e) subject to the rights of a bona fide purchaser for value without notice, set aside any disposition of any property belonging to the respondent from which any income has occurred and on an application, the court may make orders for the re-sale of the said property to any person and may direct the proceeds of such sale to be applied to the settlement of any arrears of maintenance monies and to the payment of future maintenance monies for the child concerned;
 - (f) restrain by way of an injunction the disposition, wastage or damage of any property belonging to the respondent.
- (6) The court shall not make an order under subsection (5) paragraph (c), (d),
- (e) or (f) unless satisfied that—
 - (a) the respondent has wilfully and deliberately concealed or misled the court or any person appointed or directed to carry out enquiries under subsection (4) of this section as to the true nature and extent of his earnings or income; or
 - (b) the respondent, with the intent to obstruct or delay the execution of any order that may be passed against him under this section or with the object of reducing his means to provide maintenance for the child
-
- (i) is about to dispose of most or the whole of his property; or
 - (ii) is about to remove the whole or any part of his property from the local limits of the jurisdiction of the court; or
 - (iii) is about to abscond or leave the local limits of the jurisdiction of the court.

- (7) The court shall have power under this section to issue a warrant committing the respondent to imprisonment for a period of not less than five days nor more than four weeks:

Provided that the court shall not issue a warrant for imprisonment unless it is satisfied that—

- (a) the respondent has persistently and wilfully refused or neglected to make payment of all or any part of the monies ordered to be paid under a maintenance order or a contribution order without reasonable cause;
 - (b) the respondent is present at the hearing;
 - (c) an order for attachment of earning would not be appropriate;
 - (d) it has enquired into the cause of the default and is satisfied that such default was due to the respondent's wilful refusal or culpable neglect.
- (8) The issue of the warrant may be postponed on such terms as the court may think fit but if postponed, it may not be issued without further notice being given if requested by the defaulter, and a further review by the court.
- (9) The court shall have power to vary, modify or discharge any order made under this section.

Part VIII – – GUARDIANSHIP

102. Appointment of guardian

- (1) For the avoidance of doubt, in this Part, "guardian" means a person appointed by will or deed by a parent of the child or by an order of the court to assume parental responsibility for the child upon the death of the parent of the child either alone or in conjunction with the surviving parent of the child or the father of a child born out of wedlock who has acquired parental responsibility for the child in accordance with the provisions of this Act.
- (2) A guardian may be appointed in respect of any child who is resident in Kenya whether or not the child was born in Kenya or is a Kenyan citizen.
- (3) A guardian appointed under this Act need not be a Kenyan citizen or resident in Kenya.
- (4) A guardian may be appointed in respect of the person or the estate of the child or both.
- (5) Where a guardian is appointed only in respect of the estate of the child, he need not have actual custody of the child but he shall have—
 - (a) the power and responsibility to administer the estate of the child and in particular to receive and recover and invest the property of the child in his own name for the benefit of the child;
 - (b) the duty to take all reasonable steps to safeguard the estate of the child from loss or damage;
 - (c) the duty to produce and avail accounts in respect of the child's estate to the parent or custodian of the child or to such other person as the court may direct, or to the court, as the case may be, on every anniversary of the date of his appointment;
 - (d) to produce any account or inventory in respect of the child's estate when required to do so by the court.

103. Rights of surviving parent as to guardianship and power of court

- (1) On the death of the father of a child, the mother if surviving shall, subject to the provisions of this Act, be the guardian of the child and when no guardian has been appointed by the father or the guardian appointed by the father is dead or refuses to act, the court may appoint a guardian to act jointly with the mother.

- (2) On the death of the mother of a child, the father, if surviving, shall be the guardian of the child either alone or jointly with any guardian appointed by the mother or if the guardian appointed by the mother is dead or refuses to act, the court may appoint a guardian to act jointly with the father.

104. Appointment of testamentary guardian

- (1) Either parent of a child may, by will or deed, appoint any person to be the guardian of the child after that parent's death.
- (2) A guardian of a child may by will or deed appoint another individual to take his place as the guardian of the child in the event of his death.
- (3) Any appointment made under subsection (1) or (2) shall not have effect unless—
- (a) in the case of an appointment by deed, the deed is dated and is signed by the person making the appointment and in the presence of two witnesses;
 - (b) in the case of an appointment made by a written will, it is made, executed and attested in accordance with the provisions of section

11. of the Law of Succession Act (Cap. 160), or an appointment made in the course of an oral will if it is made in accordance with section

9. of that Act.

- (4) A guardian so appointed shall act jointly with the surviving parent of the child as long as that parent remains alive, unless the parent objects to his so acting.
- (5) If the surviving parent objects to such joint guardianship, or if the guardian appointed considers that the parent is unfit to have legal custody of the child, the guardian or parent of the child may apply to the court which may—
- (a) refuse to make any order in which case the parent shall remain the sole guardian; or
 - (b) make an order that the guardian shall act jointly with the parent; or
 - (c) make an order appointing a relative of the child or a person who is willing to so act, a guardian of the child, to act jointly with the parent or guardian or both of them; or
 - (d) make an order that the guardian shall be the sole guardian of the child, in which case the court shall make such order regarding the custody of the child and the rights of contact thereto of his parent and relatives, having regard to the welfare of the child as it may think fit, and further order that the parent shall pay the guardian a financial provision towards the maintenance of the child having regard to the means of the parent, as the court may consider reasonable:

Provided that the court shall not appoint the guardian, sole guardian for the child if he is not a relative of the child, unless exceptional circumstances exist with regard to the welfare of the child.

- (6) Where guardians are appointed by both parents, the guardians so appointed shall, after the death of the surviving parent, act jointly.
- (7) If under subsection (5) a guardian has been appointed by the court to act jointly with the surviving parent, he shall continue to act as guardian after the death of the parent, but if the surviving parent has appointed a guardian, the guardian appointed by the court shall act jointly with the guardian appointed by the parent.
- (8) Any person, not being a parent of a child, in whose favour an existing custody order or a residence order in respect of a child has been made, or to whom the care of a child has been entrusted by virtue of being a fit person under this Act, shall act jointly with the surviving parent of a child or with his guardian:

Provided that the surviving parent or the guardian shall be entitled to apply to court for an order giving effect to some other arrangement.

105. Appointment of guardian by the court In addition to the powers of the court to appoint a guardian under subsection (5) of section 104 the court may appoint a guardian in the following circumstances—

- (a) On the application of any individual, where the child's parents are no longer living, or cannot be found and the child has no guardian and no other person having parental responsibility for him;
- (b) on the application of any individual, where the child is a displaced child within the meaning of section 119 of this Act.

106. Guardians revocation and disclaimer

- (1) An appointment under section 104 revokes an earlier appointment
(including one made in an unrevoked will or codicil) made by the same person in respect of the same child, unless it is clear (whether as the result of an express provision in the later appointment or by necessary implication) that the purpose of the later appointment is to appoint an additional guardian.
- (2) An appointment under section 104 (including one made in an unrevoked will or codicil) is revoked if the person who made the appointment revokes it by a dated instrument which is signed—
 - (a) by him; or
 - (b) at his direction, in his presence and in the presence of two witnesses who each attest to the signature.
- (3) For the avoidance of doubt, an appointment under section 104 is revoked if the will or codicil is revoked.
- (4) A person who is appointed a guardian under section 104 or 105 may disclaim his appointment by an instrument signed by him and made within reasonable time of his first knowing that the appointment has taken effect.
- (5) Where regulations are made by the Chief Justice prescribing the manner in which such disclaimer must be recorded, no such disclaimer shall have effect unless it is recorded in the prescribed manner.
- (6) Any appointment of a guardian may be brought to an end at any time by order of the court on the application of—
 - (a) any parent or guardian; or
 - (b) the child concerned, with the leave of the court; or
 - (c) a relative of the child, in any proceedings if the court considers that it should be brought to an end even though no application has been made.
- (7) Where a court revokes an appointment of guardian the court shall prior to doing so, ascertain who would have guardianship or legal custody of the child if, on the revocation of the appointment of the guardian, no further order was made.

107. Extension of appointment of guardian beyond child's eighteenth birthday

- (1) The appointment of a guardian shall be determined upon the child attaining the age of eighteen years, unless exceptional circumstances exist that would require a court to make an order that the appointment be extended.

- (2) The exceptional circumstances referred to in subsection (1) are that the child suffers from a mental or physical disability or from an illness that will render him incapable of maintaining himself, or of managing his own affairs and his property without the assistance of a guardian after his eighteenth birthday or such other exceptional circumstances with regard to the child as the court may deem proper to warrant the making of an order under this section.
- (3) Where an order is made under subsection (1), it shall be made prior to the child's eighteenth birthday and may be made on an application by—
 - (i) the child; or
 - (ii) the parent or guardian of the child; or
 - (iii) a relative of the child; or
 - (iv) the Director:

Provided that no order shall be made without the consent of the child, if he is capable of giving such consent, and of the guardian whose appointment is required to be extended.

- (4) A court making an order under this section may attach such conditions as to the duration of the order and containing directions as to how it shall be carried out, imposing such other conditions that must be complied with and with such incidental, supplemental or consequential provisions as the court thinks fit.
- (5) A court shall have power to vary, modify or revoke any order made under this section after the child's eighteenth birthday, on the application of any of the persons named in subsection (3), or where the child marries after his eighteenth birthday, his spouse.

108. Disputes between guardians

- (1) Where two or more persons act as joint guardians to a child, or where the surviving parent and a guardian act jointly and they are unable to agree on any question affecting the welfare of the child, any of them may apply to the court for its direction, and the court may make orders regarding the matters of difference as it may think proper.
- (2) A relative of the child, or the child, or the Director, or a person who has parental responsibility for the child, or a person who has been authorised to act jointly with a guardian under sections 104 and 105, may with the leave of the court, apply to the court for its directions or settlement of any question affecting the welfare of the child arising from or connected with the exercise of the guardian's parental responsibility with respect to the child, and the court may make such order regarding the matters in contention as it may think proper.

109. Powers of guardian A guardian appointed under section 105 shall have the same powers over the estate and the person, or over the estate, as the case may be, of a child, as a guardian appointed by deed or will or otherwise under the Law of Succession Act

(Cap. 160).

110. Neglect or misapplication of assets by guardians of the estate of the child Where a guardian of the estate of a child, whether or not that guardian is also a guardian of the person of the child, neglects to recover or safeguard, or misplaces any asset forming part of the estate of the child, or subjects the estate to loss or damage, he shall whether or not also guilty of an offence on that account, be liable to make good any loss or damage so occasioned.

111. Offence by guardians of the estate of a child Any guardian of the estate of a child who
—

- (a) wilfully or recklessly neglects to receive and safeguard any asset forming part of the estate, misapplies any such asset or subjects any such asset to loss, waste or damage; or
- (b) wilfully fails to produce to the court, or the parent or guardian of the child any account or inventory required by the provisions of section

102.

; or

- (c) wilfully or recklessly produces any such inventory or account which is false in any material particular, shall be guilty of an offence and shall be liable to a fine not exceeding fifty thousand shillings or to imprisonment for a term not exceeding one year or to both such fine and imprisonment.

112. Rules The Chief Justice shall make rules of Court directing the manner in which applications to the court are to be made and generally providing for matters of procedure and incidental matters arising under this Part.**Part IX – – JUDICIAL ORDERS FOR THE PROTECTION OF CHILDREN****113. Power of court to make orders in certain proceedings**

- (1) The court may make any order mentioned in this Part in any proceedings concerning the welfare and upbringing of a child instituted under this Act or under any other written law.
- (2) Persons qualified to apply for an order under this Part for the protection of a child include—
 - (a) the child;
 - (b) the parent, guardian or custodian of the child;
 - (c) a relative of the child;
 - (d) the Director; and
 - (e) an authorised officer:

Provided that a qualified person may apply for more than one order at the same time, but the court shall not make more than one order in response to the application if to do so would be detrimental to the interest of a child, or if the desired effect of the orders sought by the applicant may be achieved by making only one order.

- (3) The court may make an order under this Part—
 - (a) containing directions as to how it should be carried out; and/or
 - (b) imposing conditions that must be complied with; and/or
 - (c) defining its duration; and/or
 - (d) attaching such supplementary or consequential provisions as the court may think fit.
- (4) An application for an order under this Part may be made separately or as part of any proceedings under this Act.
- (5) Subject to the provisions of this Act, any order made under this Part shall cease to have effect upon the child attaining the age of eighteen years.

114. Orders which court may make The court may from time to time make any of the following orders in this Act referred to as "section 114 orders"—

- (a) An "access order", which shall require the person with whom the child is residing to allow the child to visit, or to stay periodically with the person named in the order, or to allow such person to have such other contact with the child as may be directed by the court:

Provided that an access order made under this section shall not be made in relation to a child in respect of whom a care order has been made under this Part, but access to the child concerned may be obtained upon an application made under section 133;

- (b) a "residence order", which shall require a child to reside with a person named in the order and/or determine the arrangements to be made to facilitate the residence of the child with the person named in the order;
- (c) an "exclusion order" requiring a person who has used violence or threatened to use violence against a child, whether or not that person permanently resides with the child, to depart from the home in which the child is residing or to restrain the person from entering the home or a specified part of the home or from a specified area in which the home is included, or to restrain any other person from taking the child to the person against whom the child needs protection for such period as the court may specify;
- (d) a "child assessment order" requiring a child to be investigated or evaluated by a person appointed by the court to assist the court in determining any matter concerning the welfare and upbringing of the child;
- (e) a "family assistance order" requiring a person appointed by the court to provide such advice, counselling and guidance to a child, his parents or custodian or guardians, the child's relatives, or any person who has care and control of the child or with whom the child is residing, as the court may specify;
- (f) a "wardship order" requiring that a child be placed under the protection and custody of the court;
- (g) a "production order" requiring any person who is harbouring, concealing or otherwise unlawfully detaining a child, or who intends to remove a child from Kenya or from the local limits of the jurisdiction of the court, to disclose any information regarding the whereabouts of the child and/or to produce the child before the court and/or restraining the person from removing the child from the jurisdiction of the court for such period as the court may specify.

115. Power of arrest Where a court makes an order under paragraphs (c), (d) and (g) of section 114, the court may attach a power of arrest to the order and the person named in the order shall be liable to arrest if he shall contravene any stipulation or condition contained in the order, whilst the order remains in force.

116. Penalty Any person who contravenes an order made under paragraphs (c), (d) and (g) of section 114 or who obstructs or unlawfully interferes with a person appointed by the court in the execution of his duties under an order made pursuant to subsections

- (e) and (f) of section 114, commits an offence and shall be liable upon conviction to a fine not exceeding fifty thousand shillings or to imprisonment for a period not exceeding six months, or to both.

117. Review, etc., of order The court may from time to time review, vary, suspend or discharge any order made under this Part or revive an order after it has been suspended or discharged.

Part X – – CHILDREN IN NEED OF CARE AND PROTECTION

118. Jurisdiction of the court A Children's Court shall have jurisdiction to make an order or give a judgment under this Part notwithstanding that any act, matter, thing or circumstances giving rise to such order or judgment did not occur or arise within the area of jurisdiction of the court.

119. When a child is in need of care and protection

(1) For the purposes of this Act, a child is in need of care and protection—

- (a) who has no parent or guardian, or has been abandoned by his parent or guardian, or is destitute; or
- (b) who is found begging or receiving alms; or
- (c) who has no parent or the parent has been imprisoned; or
- (d) whose parents or guardian find difficulty in parenting; or
- (e) whose parent or guardian does not, or is unable or unfit to exercise proper care and guardianship; or
- (f) who is truant or is falling into bad associations; or
- (g) who is prevented from receiving education; or
- (h) who, being a female, is subjected or is likely to be subjected to female circumcision or early marriage or to customs and practices prejudicial to the child's life, education and health; or
- (i) who is being kept in any premises which, in the opinion of a medical officer, are overcrowded, unsanitary or dangerous; or
- (j) who is exposed to domestic violence; or
- (k) who is pregnant; or
- (l) who is terminally ill, or whose parent is terminally ill; or
- (m) who is disabled and is being unlawfully confined or ill treated; or
- (n) who has been sexually abused or is likely to be exposed to sexual abuse and exploitation including prostitution and pornography; or
- (o) who is engaged in any work likely to harm his health, education, mental or moral development; or
- (p) who is displaced as a consequence of war, civil disturbances or natural disasters; or
- (q) who is exposed to any circumstances likely to interfere with his physical, mental and social development; or
- (r) if any of the offences mentioned in the Third Schedule to this Act has been committed against him or if he is a member of the same household as a child against whom any such offence has been committed, or is a member of the same household as a person who has been convicted of such an offence against a child; or
- (s) who is engaged in the use of, or trafficking of drugs or any other substance that may be declared harmful by the Minister responsible for Health.

(2) A child apprehended under this section shall be placed in separate facilities from a child offenders' facilities.

- (3) The provisions of this section shall be in addition to, and not in derogation of, those of the Penal Code (Cap. 63) in relation to offences involving children, or the Employment Act (Cap. 226) in relation to safeguards for working children.

120. Proceedings in respect of children in need of care and protection

- (1) Any person who has reasonable cause to believe that a child is in need of care and protection may report the matter to the nearest authorised officer.
- (2) Any child in need of care and protection may take refuge in a place of safety.
- (3) Any authorised officer may take to a place of safety any child who is about to be brought before a court as being in need of care and protection, and a child so taken to a place of safety, or who has taken refuge in a place of safety, may be accommodated there until he can be brought before a court.
- (4) Any authorised officer having reasonable grounds for believing that a child is in need of care and protection may apprehend him without warrant, and in such a case shall without delay bring him before a Children's Court; and a children's officer shall bring before a court any child who appears to such officer to be in need of care and protection unless proceedings are about to be taken by any other person.
- (5) Where an application is to be made to a court for an order under section 125 of this Act and the child is not in a place of safety, the court may issue a summons requiring him to be brought before the court, and thereupon the provisions of subsection (3) of that section shall apply for enabling the court to make an interim order for the temporary accommodation of the child in a place of safety or for his temporary committal to the care of a fit person.
- (6) Where a court makes an order under subsection (5) it may make such other orders as it deems necessary for the establishment of contact between the child and his parent, or between the child and any person who has parental responsibility for him and for the enforcement of the order.
- (7) Where a child is taken to a place of safety by an authorised officer without reference to the court, the parent or guardian or any person who has parental responsibility in respect of the child may apply to the Director for the release of the child from the place of safety into his care:
- Provided that if the Director refuses an application under this subsection he shall notify the applicant in writing of the decision and the reasons therefor.
- (8) Any applicant who is aggrieved by the decision of the Director under subsection (6) may apply to the court for the discharge of the child from the place of safety concerned into the care of such applicant.
- (9) Where under the provisions of this section a child is taken to or ordered to be taken to a place of safety, the person who so takes him or, as the case may be, the person bringing him before the court, shall forthwith send a notice to the court specifying the grounds on which the child is to be brought before the court, and shall send particulars to his parent or guardian or such other person who has parental responsibility over the child requiring such person to attend at the court before which the child will appear.
- (10) Where any application is to be made to a court for an order under section

125.

, the person intending to make the application shall forthwith notify the Director or his representative, of the name and address of the child and the day and hour when, and the nature of the grounds on which, he is to be brought before the court.

- (11) The Director having received a notice under subsection (9), shall make such investigations and render available to the court such information as to the home, circumstances, age, health, character and general antecedents of the child or as may be necessary to assist the court.

- (12) When it appears to an appointed local authority or a charitable children's institution that a child in its area is in need of care and protection and that its intervention is necessary, the local authority or charitable children's institution shall receive such child into its care and need not bring him before a court immediately:

Provided that—

- (a) the local authority or charitable children's institution shall notify the Director within seven days of receiving the child into its care;
 - (b) the child shall be brought before a court within three months;
 - (c) a monthly report is rendered to the Director of all children received and held;
 - (d) all cases are investigated by the local authority, or charitable children's institution;
 - (e) the local authority or charitable children's institution shall not retain the child in its care if his parent or guardian seeks to assume the care of the child;
 - (f) the local authority, or charitable children's institution shall, when it appears to be in the interests of the child, endeavour to secure that the care of the child is assumed by a parent or guardian or a person who has parental responsibility for the child by a relative or friend who should, if possible, be of the same religion, race, tribe or clan as the child.
- (13) A local authority or charitable children's institution which receives a child into its care under the provisions of this section shall be entitled to recover the cost of maintenance of such child from his parent, guardian or the person who has responsibility for the child.

121. Medical care

- (1) If it appears to an authorised officer exercising powers under section

120. that a child is in need of medical care, he shall forthwith take the child to a registered health institution, and such health institution shall provide the appropriate treatment, care and necessary hospital accommodation for the child.

- (2) Where a child is accommodated in any health institution for in-patient care the authorised officer who took the child shall forthwith notify the child's parent, or guardian, or any person who has parental responsibility for the child concerned, or the Director or his representative.
- (3) Where it appears to any health institution or medical practitioner that any of the offences mentioned in the Third Schedule to this Act have been committed against a child, the health institution or medical practitioner shall forthwith take such measures as shall be necessary to record and preserve any information with regard to the condition of the child in the manner that may be prescribed by the Minister in regulations made under this Part.
- (4) Any expenses incurred in connection with the medical treatment or hospital accommodation of a child under this section shall be defrayed out of public funds.

122. Determination as to child's home, etc.

Whenever a child is brought before a court as being in need of care and protection and the court determines that he has his home or, as the case may be, has been found within the area of jurisdiction of a particular local authority, such determination shall for the purposes of this Act, be final and conclusive:

Provided that a court may, whenever it thinks it convenient so to do, remit any such case to another Children's Court to be dealt with by that court, without prejudice, however, to the provisions of section 43.

123. Parent or guardian to be heard in any application

- (1) Where a child is brought before a court as being in need of care and protection, the court shall allow his parent or guardian or the person who has parental responsibility for such child to be heard on any application made in relation to the child.
- (2) Where the parent or guardian cannot be found or cannot, in the opinion of the court, be reasonably required to attend, the court may allow any relative or any other responsible person who knows or is known to the parents or any relative of the child to take the place of the parent or guardian for the purposes of this section.

124. Power of Director to take over application The Director of Public Prosecutions may authorise the Director at any stage in the proceedings under this Part, whether before, during or after the making of any application, to take over and assume the conduct of any application or proceedings in respect of a child:

Provided that the Director of Public Prosecutions shall not be entitled to terminate any proceedings over which he has authorised the Director to assume control under this section without the leave of the court.

[Act No. 12 of 2012, Sch.]

125. Power of court in respect of children in need of care and protection

- (1) A court before which any child in need of care and protection is brought may require an authorised officer or any other person to give a report or advise on any aspect of the proceedings.
- (2) If a court is satisfied that a child brought before it is in need of care and protection it may—
 - (a) order that such child be returned to his parent or guardian or the person who has parental responsibility for him;
 - (b) order such child's parent or guardian, or person who has parental responsibility for him to execute a bond with or without sureties to exercise proper care and guardianship;
 - (c) where it is satisfied that it is in the best interests of the child, commit such child to a rehabilitation school suitable to his needs and attainments after the court has ascertained that there is a vacancy at the school; or
 - (d) without making any other order, or in addition to making an order under this section, make an order under Part IX; or
 - (e) if the child is a victim of armed conflict, civil disturbance or natural disaster make an order requiring the Director to take the necessary steps to ensure that the child is provided with care, and where possible, is reunited with his family; or
 - (f) if the child is disabled, make an order which requires the Director to take the necessary steps to ensure that the child is provided with care commensurate with his special needs; or
 - (g) if the child is subjected to early marriage, make an order rendering such marriage null and void ab initio and requiring the child to be placed under the care of a fit person and to return to school; or
 - (h) where it is satisfied that the child has been engaged in drug abuse and that it is in the child's best interest to do so, by order commit him to a drug rehabilitation centre for treatment, or order that the child be accorded professional counselling.
- (3) A parent who is ordered to exercise proper care and guardianship under subsection (2)(b) shall also be required to seek the assistance of a professional counsellor.
- (4) The court may from time to time, of its own motion or on the application of any person, review, vary or revoke any order made under this section.

- (5) The court may order that a child shall remain in the custody of an appointed local authority, a charitable children's institution or a fit person until the age of eighteen years or such lesser age as the court may decide.
- (6) If a court before which a child is brought is unable to decide whether any order, or what order ought to be made in respect of the child, it may make such interim order as it thinks fit for the child's accommodation in a place of safety not being a police station, or for his committal to the care of a fit person whether a relative or not who is willing to undertake the care of the child.
- (7) An interim order under subsection (1) shall not remain in force for more than fourteen days, but if at the expiration of that period the court deems it expedient so to do, it may continue to make further interim orders.

126. Application of trusts for maintenance of children

- (1) Where a child is, by an order of the court made under this Part, removed from the care of any person, and that person is entitled under any trust to receive any sum of money in respect of the child's maintenance, the court may order the whole or any part of the sums so payable under the trust to be paid to the person, children's voluntary institution or appointed local authority to whose care the child is committed, to be applied for his benefit in such manner as the court, having regard to the terms of the trust, may direct.
- (2) A person making default in complying with an order of the court made under this section shall be punished in the prescribed manner, or if no punishment is prescribed, may at the discretion of the court be ordered to pay a sum not exceeding two hundred shillings for every day during which such person is in default, or to be imprisoned or dealt with under section 144(5) until the default has been remedied.
- (3) An appeal shall lie to the High Court from an order made under this section.

127. Penalty for cruelty to and neglect of children

- (1) Any person who having parental responsibility, custody, charge or care of any child and who—
 - (a) wilfully assaults, ill-treats, abandons, or exposes, in any manner likely to cause him unnecessary suffering or injury to health (including injury or loss of sight, hearing, limb or organ of the body, and any mental derangement); or
 - (b) by any act or omission, knowingly or wilfully causes that child to become, or contributes to his becoming, in need of care and protection, commits an offence and is liable on conviction to a fine not exceeding two hundred thousand shillings, or to imprisonment for a term not exceeding five years, or to both:

Provided that the court at any time in the course of proceedings for an offence under this subsection, may direct that the person charged shall be charged with and tried for an offence under the Penal Code (Cap. 63), if the court is of the opinion that the acts or omissions of the person charged are of a serious or aggravated nature.

- (2) For the purposes of this section, a person having parental responsibility, custody, charge or care of a child shall be deemed to have neglected such child in a manner likely to cause injury to his health if the person concerned has failed to provide adequate food, clothing, education, immunisation, shelter and medical care.
- (3) Any person charged under this section may be charged before the same court as that before which is brought as being in need of protection or discipline and at the same time and both issues shall be tried simultaneously and the same court shall sentence the person charged, if convicted, and make an order under section 125 if the child is found to be in need of care and protection.

- (4) A person may be convicted of an offence under this section notwithstanding that actual suffering or injury to health, or the likelihood of actual suffering or injury to health, of the child was obviated by the action of another person, or the child in question has died.
- (5) Nothing in this section shall affect the right of any parent or other person having the lawful control or charge of a child to administer reasonable punishment on him.

128. Warrants for search of children

- (1) If it appears to a magistrate on information laid by at least two persons who, in the opinion of the magistrate are acting in the interests of a child, that there is reasonable cause to suspect—
 - (a) that one of the offences specified in the Third Schedule has been or is about to be committed against a child; or
 - (b) that a child is in need of care and protection, the magistrate may issue a warrant authorising any police officer of or above the rank of Inspector and named therein to search for the child, and, if it appears to such police officer that any offence as aforesaid has been or is being or is about to be committed against the child or that he is in need of care and protection, to take him to and accommodate him in a place of safety until he can be brought before a court.
- (2) Any police officer of or above the rank of Inspector authorised by warrant under this section to search for any child may enter (if need be by force) any house, building or other place specified in the warrant, and, subject as aforesaid, may remove the child therefrom.
- (3) A police officer executing a warrant under this section shall take with him any person laying or joining in laying information who desires to accompany the officer, unless the magistrate issuing the warrant otherwise directs, and may also, if such magistrate so directs, be accompanied by a medical practitioner.
- (4) It shall not be necessary in any information or warrant under this section to name the child.
- (5) A magistrate issuing a warrant under this section may by the same warrant cause any person accused of an offence against the child to be apprehended and brought before a court, and proceedings to be taken against such person according to law.
- (6) A refusal to allow the Director, a children's officer or an approved officer to enter any place or dwelling in the exercise of his powers under this Act shall for the purposes of subsection (1) of this section be deemed to be a reasonable cause to suspect that a child therein is in need of care and protection.
- (7) The provisions of this section shall be in addition to, and not in derogation of those of the Criminal Procedure Code (Cap. 75) in relation to entry of premises and arrest of persons.

129. Arrest without warrant A police officer may arrest without warrant any person who he has reason to believe has committed any offence under this Part or any other offence involving bodily injury to a child, if the police officer has reasonable ground for believing that the person will abscond, or if he does not know and is unable to immediately ascertain the person's name and address.

Supervision and Care Orders

130. Supervision order The court may make an order (in this Act referred to as a "supervision order") placing the child under the supervision of a children's officer or an authorised officer whilst allowing the child to remain in the care and possession of his parent, guardian, custodian or any other person with whom the child is residing.

131. Preliminary inquiries

- (1) Prior to making a supervision order the court shall procure that—
 - (a) such enquiries or investigations as may be prescribed by the rules made under this Part are carried out and in particular that a welfare report is availed to the court; and
 - (b) written notice of the proceedings is given to the parent, guardians, custodian or any other person with whom the child is residing.
- (2) A supervision order shall not remain in force for a period exceeding twelve months, but the court may upon the application of the supervisor vary, discharge, or extend the order for a further period as it shall deem expedient, having regard to the best interests of the child:

Provided that the court shall not make an order extending a supervision order unless notice of the relevant application has been given to the parents, or guardians of the child or any other person having parental responsibility in respect of the child, who may be heard on the application.
- (3) A court may make an interim supervision order, either on application or of its own motion—
 - (a) where it has reason to believe that the circumstances of the child concerned require that an order be made pending the submission of a welfare report prepared in accordance with subsection (1); or
 - (b) upon adjourning an application for a supervision order; or
 - (c) upon the making of orders for the assessment of the child under section 113.
- (4) Where an interim order is made, it shall not remain in force for a period exceeding eight weeks, but at the expiration of that period the court if it deems it expedient so to do, may continue to make further interim orders.
- (5) A court which has made a supervision order or an interim supervision order may vary or discharge the same upon the application of—
 - (a) the child with the leave of the court;
 - (b) the parents or custodian of the child or any person with parental responsibility in respect of the child; or
 - (c) the supervisor; or
 - (d) any person with whom the child is living in so far as the order imposes a requirement that directly affects that person.
- (6) Where a child in respect of whom any order is made under this section attains the age of eighteen years the order shall automatically be discharged.

132. Care order and grounds thereof

- (1) In this Part a "care order" means an order entrusting the care, control and possession of the child to a person not being the parent, guardian or custodian of the child or to an appointed local authority or an institution appointed by the court.
- (2) A court may make a care order in respect of a child only if it is satisfied that—
 - (a) all possible alternative methods for assisting the child have been unsuccessful and that it is in the best interests of the child to make the order; or

- (b) the child concerned is suffering or is likely to suffer significant harm, and that the harm, or probability of harm is attributed to—
 - (i) the care given to the child, or likely to be given to the child if the order were not made, not being what it would be reasonable to expect a parent to give the child;
 - (ii) the child is beyond the control of his parent, guardian or other person who has parental responsibility in respect of the child;
 - (c) the danger to which the child is exposed is so severe as to require his immediate removal from the place where he is residing.
- (3) Where a court makes a care order or an interim care order in respect of any child, the court may include in the order such conditions, restrictions and directions as it shall deem fit, as to the enforcement of the order by any person or as to the conduct of the child or any person named in the order.
- (4) The court making a care order shall as far as shall be practicable entrust the care of the child to a person or institution which professes the same religion as the child.
- (5) Where a child is disabled, the court shall as far as practicable entrust the care of the child to a person or institution that is suitably placed to cater for the needs of the child.
- (6) Every care order shall be in writing and shall contain a declaration as to age and religion of the child concerned and may be made in his absence with the consent of the person or institution into whose care the child has been entrusted.
- (7) The court making a care order shall cause to be delivered to the person or institution entrusted with the care of the child, a record in the prescribed form containing such information regarding the child concerned as the court thinks necessary.
- (8) Every care order shall be made so as to commit a child to such care until he attains the age of eighteen or for such shorter period as the court thinks fit:
- Provided that the court, on making a care order, shall make such further orders or directions requiring the Director or his representative to supervise the mode of compliance with such orders and to make such recommendations as the Director or his representative shall consider relevant to the court in respect of the order, including applying for the variation or discharge of the order.
- (9) Upon the making of a care order under this section, it shall be the duty of the Director or his representative to supervise and monitor the care provided to the child concerned by the person or institution to whom or to which the child is committed under the order, and to periodically assess the condition and circumstances of the child.
- (10) A court may on application or of its own motion, make an interim care order—
- (a) if it has reasonable grounds for believing that the circumstances of the child are as mentioned in subsection (1) of this section; or
 - (b) upon the adjournment of an application for a care order; or upon making orders as to the assessment of a child under section 113.
- (11) An interim order made under subsection (10) shall not remain in force for a period exceeding eight weeks, but if at the expiry of the period the court deems it expedient so to do, it may extend the order for a further period of four weeks.
- (12) A care order or interim care order may be discharged by—
- (a) the making of an adoption order in respect of the child, if the care order was not made in respect of the child by reason of the child having been found to be guilty of a criminal offence under Part XII;
 - (b) the making of a residence order in respect of the child;

- (c) the making of a supervision order in respect of the child.

Notwithstanding the foregoing provisions of this subsection, the court shall have power on the application of the child, the Director or the parents or guardian of the child, or any other person who has parental responsibility in respect of the child to vary or discharge the care order or interim order on such terms as it thinks fit and including replacing the care order with a supervision order.

- (13) The court shall have power, where it considers that it would be for the benefit of a child, to authorise a foster parent or a voluntary children's institution, to whose care a child has been committed, to arrange for the child's emigration from Kenya, but the court shall not authorise such arrangements unless the child and his parents or guardian or any other person who has parental responsibility for the child, consent:

Provided that where the parents or guardians cannot be found after diligent and reasonable enquiry, the Director may give such consent.

133. Arrangements for access to children in care

- (1) Prior to making a care order, the court shall consider the arrangements the Director has made or proposes to make for affording any individual contact with the child during the term of a care order, and shall invite the parties to the proceedings to comment on the said arrangements and or to make such applications for contact in the manner prescribed in subsection (4).
- (2) Unless a court otherwise directs or it is determined that such contact would be detrimental to the best interests of the child, there shall be a rebuttable presumption of reasonable contact between the child and—
 - (a) the child's parent or guardian;
 - (b) any person who has parental responsibility in respect of the child;
 - (c) the relatives of the child;
 - (d) such other person as the court shall direct.
- (3) Where the court makes an access order under this section it shall determine the frequency and duration of access to the child subject to such conditions as the court may consider appropriate.
- (4) The Director or the child, with the leave of the court, may apply to the court for refusal of access to any individual and upon such application the court, if satisfied that such contact between the child and any individual should be refused shall make an order authorising the Director to refuse to allow contact between the child and the person named in the order.
- (5) A court making a contact order under this section shall have power to vary, suspend or discharge the order or revive the order after it has been discharged on such terms as it shall deem fit; but no contact order shall remain in force beyond the child's eighteenth birthday or after the date of a discharge of a care order.

134. Contents of care order Where a care order to a rehabilitation school has been made by a court against a child, on a finding of guilt of an offence, the committal order shall specify the grounds of the order and—

- (a) contain a declaration as to the age and religion of the child;
- (b) specify the rehabilitation school to which he is to be sent;
- (c) specify the person or authority that is to convey the child to the school;
- (d) contain directions as to any special care or treatment required for the child;
- (e) contain directions as to access arrangements for the child by his parent, guardian or relative; and

- (f) specify details of any contribution order made against the parents or the guardian of the child and the dates upon which accounts shall be supplied to them.

135. Transmission of order The Court making a care order to a rehabilitation school shall send such order together with a record in the prescribed form of such information regarding the child placed in care as the court thinks necessary, to the manager of the rehabilitation school.

136. Production of child Where a person authorised to escort a child to a rehabilitation school is unable to find or obtain possession of the child, the court may, if satisfied by information on oath that some person named in the information can produce the child, issue a summons requiring the person so named to attend at the court on a specified day and produce the child and, if the person so summoned fails without reasonable cause to attend, in addition to any other liability to which he may be subject under the provisions of any law including this Act, he commits an offence and is liable on conviction to a fine not exceeding fifty thousand shillings, or to imprisonment for a term not exceeding one year or to both.

137. Harboursing or concealing a child Where a child has been placed under care in a rehabilitation school any person who harbours or conceals him after the time fixed for him to enter the rehabilitation school commits an offence and is liable on conviction to imprisonment for a term not exceeding one year or a fine not exceeding fifty thousand shillings or to both.

Escapees

138. Escape from institutions, etc A child who runs away from a fit person, charitable children's institution or appointed local authority to whose care the child has been entrusted under this Act, or from any person or institution with whom he has been placed by a charitable children's institution, or appointed local authority under any regulations made under this Act, may be apprehended without warrant and be brought before a Children's Court having jurisdiction in the place where he was residing immediately before he ran away, and that court may—

- (i) order that the child be returned to where he ran away from; or
- (ii) place him under the care of some other person or charitable children's institution; or
- (iii) order him to be sent to a rehabilitation school; or
- (iv) make any order which a court may make under section 125; or
- (v) make an order requiring the child to undergo professional counselling.

139. Charitable children's institutions and local authorities Whenever a child runs away from any person or institution with whom or with which he has been placed by a charitable children's institution or appointed local authority, as aforesaid, it shall be the duty of the secretary, clerk or other appropriate officer of such institution or authority, within forty-eight hours of such occurrence coming to his knowledge, to notify the Director thereof; and any secretary, clerk or other officer who contravenes the provisions of this subsection commits an offence and is liable on conviction to a fine not exceeding five thousand shillings or imprisonment for a term not exceeding three months or to both.

140. Escape from children's remand home or rehabilitation school

- (1) Any child who escapes from a children's remand home or while being conveyed thereto or therefrom, may be apprehended without warrant and dealt with in accordance with section 138.
- (2) Any child who has been committed to a rehabilitation school and who—
 - (a) escapes from such school or from any hospital, home or institution in which he is receiving medical or other treatment, or while being conveyed to or from any such place; or
 - (b) being absent from such school on leave of absence or on licence, runs away from the person in whose charge the child has been placed or fails to return to the school upon the expiration of his leave or upon the revocation of his licence, may be apprehended without warrant and shall be brought before a court having jurisdiction where the school is situated to be dealt with under the provisions of section 138.
- (3) Where a child is brought back to a rehabilitation school under subsection
- (2), the period of his committal shall be increased over and above any increase ordered by court, by a period equal to the period during which he was at large and should have been at the school.

141. Assisting escape, etc.

Any person who knowingly—

- (a) assists or induces a child—
 - (i) to run away from a fit person, a charitable children's institution or appointed local authority to whose care the child has been committed, or from any person or institution with whom or with which he has been placed by a charitable children's institution or an approved appointed local authority under or by virtue of this Act or any regulations made thereunder; or
 - (ii) to do any of the things specified in section 140(2); or
- (b) harbours or conceals a child who has so run away or has done any such things as aforesaid; or
- (c) prevents such a child from returning, or induces such a child not to return, to the care of the person to whom he has been committed, or to any place in which he should be, commits an offence and is liable on conviction to imprisonment for a term not exceeding one year, or to a fine of fifty thousand shillings, or to both.

142. Production of escaped child If a Children's Court is satisfied by information on oath that there are reasonable grounds for supposing that a child has run away or done any of the things specified in section 140, and that some other person named in the information can produce the child, the court may issue summons requiring that other person to attend at the court and produce the child and, if the person fails to do so without reasonable excuse, he commits an offence, and in addition to any other liability to which he may be subject under this Act, is liable on conviction to a fine not exceeding one hundred thousand shillings, or to imprisonment for a term not exceeding two years, or to both.

Miscellaneous Provisions on Protection of Children

143. Presumption and determination of age

- (1) Where a person, whether charged with an offence or not, is brought before any court otherwise than for the purpose of giving evidence, and it appears to the court that such person is under eighteen years of age, the Court shall make due inquiry as to the age of that person and for that purpose shall

take such evidence, including medical evidence, as it may require, but an order or judgment of the court shall not be invalidated by any subsequent proof that the age of that person has not been correctly stated to the court, and the age presumed or declared by the court to be the age of the person so brought before it shall, for the purposes of this Act and of all proceedings thereunder, be deemed to be the true age of the person.

- (2) A certificate purporting to be signed by a medical practitioner as to the age of a person under eighteen years of age shall be evidence thereof and shall be receivable by a court without proof of signature unless the court otherwise directs.

144. Contribution order

- (1) A court making an order placing a child under the care of a rehabilitation school may also, at the same time or subsequently, make an order (hereinafter referred to as a "contribution order") requiring either or both of the parents or the guardian to contribute such sums for such periods as the court shall think fit towards the maintenance of the child concerned.
- (2) The contribution order shall name the person to whom the sums are to be paid.
- (3) A contribution order may be made on the complaint or application of a person, to whose care the child has been, or the manager of the rehabilitation school to which the child has been ordered to be sent, and may require that contributions shall be made from the date of the order placing the child under care;

and every sum contributed in accordance with the order shall be applied to or towards his maintenance.

- (4) A court which has made a contribution order under this section may at any time vary, suspend or rescind the order, or revive the order after it has been rescinded, but no contribution order shall be made, varied, suspended, rescinded, or revived unless the court is satisfied that the person liable to make payments under the order and the person, or manager of the rehabilitation school to whom such payments are due, or are to become due, has received due notification of the complaint or application and had an opportunity to appear before the court on the hearing thereof.
- (5) Arrears of contribution shall be recovered in the manner provided in sections

334. to 342 of the Criminal Procedure Code (Cap. 75) for the levying of fines imposed by a court in criminal proceedings, and the court shall be empowered to make an attachment order against the defaulter's salary or other source of income, subject always to any written law protecting pensions or other sources of income from attachment.

- (6) A person against whom a contribution order has been made shall, if he changes his address, forthwith give notice thereof to the person entitled to receive the contribution, and if he fails to do so shall be guilty of an offence and liable to a fine not exceeding five thousand shillings or imprisonment for a term not exceeding one month or to both.
- (7) Any institution or person who receives payment of any moneys under a contribution order shall keep proper accounts in respect of such moneys and shall furnish the parents or guardian liable to make such payments with accounts in respect of the same on a quarterly basis, or in respect of such lesser period as the court may direct, throughout the duration of the order.
- (8) Any person who fails to comply with the provisions of subsection (7) commits an offence and shall upon conviction be liable to a fine not exceeding one hundred thousand shillings, or to imprisonment for a period not exceeding five years, or to both.

145. International reciprocity

- (1) It shall be lawful for the Minister, with the approval of the National Assembly, to enter into an agreement with the government of any other country or territory on such terms and conditions as he may think fit, whereby a child who has been ordered by a court under the provisions of this Act to be sent to a rehabilitation school or other institution or committed to the care of a fit person, may be received into that country or territory and then placed in a rehabilitation school or other institution approved under the relevant legislation of that country or territory or received into the care of a fit person or returned to his parent or guardian.
- (2) Any child who has been ordered under the provisions of this Act to be placed in a rehabilitation school or any other institution, or committed to the care of a person, may, while still subject to such order, by warrant signed by the Minister, be removed from custody of such an institution or person into any other country or territory with which an agreement has been concluded under subsection (1), and placed in a rehabilitation school or other institution, placed in the care of a fit person, or of his parent or guardian, in accordance with the law in force in the country or territory authorising such placement until the expiration of the order or until such child is sooner released according to law.
- (3) An order of a court of a country or territory with which an agreement has been entered into in accordance with the provisions of subsection (2) which could lawfully have been made by a court in Kenya if the person had been within its jurisdiction, shall upon the person being received in Kenya have the same effect and be enforceable as if the order had been made by a court in Kenya.

146. Bonds The provisions of the Criminal Procedure Code (Cap. 75) with respect to bonds for good behaviour (including the provisions as to their enforcement) shall apply to bonds entered into under this Act.**Part XI – – FOSTER CARE PLACEMENT****147. Conditions for foster care placement**

- (1) Where a child has, by virtue of a care order, been committed to a rehabilitation school or to a charitable children's institution, the Director in conjunction with the manager of the institution may place the child with a foster parent, for such period as the Director may from time to time authorise:

Provided that a child in relation to whom a care order has been made by reason of having been found guilty of a criminal offence, shall not be placed with a foster parent without the leave of the court.
- (2) When a child has been placed in the care of a foster parent, it shall be the duty of the manager of the institution to which the child was first committed under a care order to supervise and assess the condition of the child periodically and to take such steps as shall be necessary to safeguard the welfare of the child.
- (3) A foster parent in whose care a child is committed shall, while the child remains in his care, have the same responsibilities in respect of the child's maintenance as if he were the parent of the child.
- (4) The provisions of this Part shall cease to have effect in relation to a child—
 - (a) upon the discharge of the care order;
 - (b) upon the expiry of the period specified by the Director for the duration of the foster placement of the child;
 - (c) upon the child attaining the age of eighteen years.

- (5) Notwithstanding any other provision of this Act, the national adoption society may place any child it finds to be in need of care and protection in foster care under this Act.

[Act No. 18 of 2018, Sch.]

148. Persons qualified to foster children

- (1) Any of the following persons may apply to be appointed a foster parent or foster parents—
- (a) Spouses of a marriage;
 - (b) a single woman not below the age of twenty-five years;
 - (c) a single man not below the age of twenty-five years.
- (2) No single man may qualify to foster a female child and no single woman may qualify to foster a male child under this Part.
- (3) No person shall be appointed to be a foster parent unless the person is resident in the Republic of Kenya and has been so resident for a period of at least twelve months.
- (4) A foster parent shall not remove a child from the jurisdiction of the Republic of Kenya without the leave of the court and such leave shall only be granted upon exceptional circumstances being shown.
- (5) Where such leave is granted, the court shall impose such conditions and restrictions as it shall deem appropriate having regard to the best interests of the child.

149. Registration for foster care placement No person shall, for the purposes of fostering a child, retain a child in his care and possession whose parents, custodian or guardians cannot be readily identified, without first notifying the Director.

150. Agreement for maintenance of foster child

- (1) The Director may, on the request of the foster parent or the parent or guardian of a child, arrange an agreement between the foster parent and the parent or guardian of a child placed in foster care, stipulating the maintenance payable for the child's care.
- (2) Any maintenance agreement may be enforceable by the Director in the like manner as a maintenance order under section 101.

151. Penalty for contravening provisions of this Part A person who, without reasonable cause, contravenes the provisions of this Part commits an offence and is liable on conviction to a fine not exceeding twenty thousand shillings or of imprisonment to a term not exceeding two years or both.

152. Rules Foster care placement shall be made in accordance with the rules set out in the Fourth Schedule to this Act.

153. Amendment of rules The Chief Justice may amend the rules set out in the Fourth Schedule to this Act.

Part XII – – ADOPTION

154. Power to make adoption orders

- (1) Subject to this Act, the High Court may upon an application made to it in the prescribed form make an order (in this Act referred to as "adoption order") authorising an applicant to adopt a child.
- (2) All proceedings under this Part shall be heard and determined in chambers and the identity of the child and the applicants shall be kept confidential.

155. Establishment of Adoption Committee

- (1) The Minister shall establish a committee to be known as the Adoption Committee which shall comprise the members set out in the Ninth Schedule.
- (1A) The Committee may, with the approval of the Cabinet Secretary, co-opt into its membership not more than two persons whose knowledge and experience it considers necessary for the better performance of its functions under this Act.
- (2) The functions of the Committee shall be—
 - (a) formulating the governing policy in matters of adoption;
 - (b) effecting liaison between adoption societies, the Government and Non-Governmental Organisations;
 - (c) considering and proposing names of officers who may serve as guardians ad litem;
 - (d) monitoring adoption activities in the country; and
 - (e) such other functions as are conferred on the Committee by this Act.
- (3) The conduct and regulation of the affairs of the Committee shall be as prescribed by the Minister, but subject thereto, the Committee shall regulate its own proceedings.

[Act No. 18 of 2018, Sch.]

Pre-requisites for Adoption

156. Preliminaries

- (1) No arrangement shall be commenced for the adoption of a child unless the child is at least six weeks old and has been declared free for adoption by the national adoption society or any other registered adoption society in accordance with this rules prescribed in that behalf.
- (2) It shall not be lawful for any person whether being a parent or guardian of a child or otherwise, or for an adoption society by whom arrangements for adoption of a child are made, to place a child into the care and possession or control of a person who proposes to adopt him, if an adoption order in respect of the child cannot be lawfully made in favour of that person.
- (3) Any person who contravenes the provisions of this section shall be guilty of an offence and liable to imprisonment for a term not exceeding six months or to a fine not exceeding ten thousand shillings or to both.
- (4) The Cabinet Secretary may issue a moratorium on inter-country and residents adoptions where there is sufficient evidence to support the opinion that such adoptions or processes leading up to such adoptions are likely to be in contravention of the Constitution or any other law, or any international treaties or conventions to which Kenya is a party.
- (4A) Notwithstanding any other provision of this Part, the moratorium issued before the enactment of subsection (4) shall be deemed to have been issued under this section.

[Act No. 11 of 2017, Sch., Act No. 18 of 2018, Sch.]

157. Children who may be adopted

- (1) Any child who is resident within Kenya may be adopted whether or not the child is a Kenyan citizen, or was or was not born in Kenya:

Provided that no application for an adoption order, shall be made in respect of a child unless the child concerned has been in the continuous care and control of the applicant within the Republic for a period of three consecutive months preceding the filing of the application and both the child and the applicant or applicants, as the case may be evaluated and assessed by the national adoption society or any other registered adoption society in Kenya.

- (2) Any person who contravenes the provision of subsection (1) of this section shall be guilty of an offence and liable to imprisonment for a term not exceeding one year or to a fine not exceeding twenty thousand shillings or to both such imprisonment and such fine.

[Act No. 18 of 2018, Sch.]

158. Adoption applicants

- (1) An adoption order may be made upon the application of a sole applicant or jointly by two spouses where the applicant or at least one of the joint applicants—
- (a) has attained the age of twenty-five years and is at least twenty-one years older than the child but has not attained the age of sixty-five years; or
 - (b) is a relative of the child; or
 - (c) is the mother or father of the child.
- (2) An adoption order shall not be made in favour of the following persons unless the court is satisfied that there are special circumstances that justify the making of an adoption order—
- (a) A sole male applicant in respect of a female child;
 - (b) a sole female applicant in respect of a male child;
 - (c) an applicant or joint applicants who has or both have attained the age of sixty-five years;
 - (d) a sole foreign female applicant.
- (3) An adoption order shall not be made if the applicant or, in the case of joint applicants, both or any of them—
- (a) is not of sound mind within the meaning of the Mental Health Act (Cap.

248.

);

- (b) has been charged and convicted by a court of competent jurisdiction for any of the offences set out in the Third Schedule to this Act or similar offences;
- (c) is a homosexual;
- (d) in the case of joint applicants, if they are not married to each other;
- (e) is a sole foreign male applicant:

Provided that the court may refuse to make an adoption order in respect of any person or persons if it is satisfied for any reason that it would not be in the best interests of the welfare of the child to do so.

- (4) Subject to section 159 an adoption application shall be accompanied by the following written consents to the making of an adoption order in respect of any child—
- (a) the consent of every person who is a parent or guardian of the child or who is liable by virtue of any order or agreement to contribute to the maintenance of the child;
 - (b) in the case of a child born out of wedlock whose mother is a child, with the consent of the parents or guardian of the mother of the child;
 - (c) in the case of a child born out of wedlock whose father has acquired parental responsibility in respect of the child under the provisions of this Act, with the consent of the father;
 - (d) on the application of one of the spouses, with the consent of the other spouse;
 - (e) in the case of two spouses who are not Kenyan citizens and who are not resident in Kenya, with the consent of the court of competent jurisdiction or of a government authority situated in the country where both or one of the spouses is ordinarily resident, permitting the spouses to adopt a foreign child;
 - (f) in the case of a child who has attained the age of 14 years, with the consent of the child.

159. Power to dispense with consent

- (1) The court may dispense with any consent required under paragraphs (a), (b), and (c) of subsection (4) of section 158 if it is satisfied that—
- (a) in the case of the parents or guardian of the child, that he has abandoned, neglected, persistently failed to maintain or persistently ill-treated the child:

Provided that—

- (i) abandonment may be presumed if the child appears to have been abandoned at birth or if the person or institution having care and possession of the child has neither seen nor heard from a parent or guardian of the child for a period of at least six months;
 - (ii) persistent failure to maintain may be presumed where despite demands made, no parent or guardian has contributed to the maintenance of the infant for a period of at least six consecutive months and such failure is not due to indulgence;
 - (b) in the case of a person liable by virtue of an order or agreement to contribute to the maintenance of the child, that he has persistently neglected or refuses to so contribute;
 - (c) in any case, except in respect of the consents required under paragraphs (e) and (f) of subsection (4) of section 158 that the person whose consent is required cannot be found or is incapable of giving his consent or that his consent has been unreasonably withheld.
- (2) The court may dispense with the consent of the spouse of the applicant for an adoption order if satisfied that the person whose consent is to be dispensed with, cannot be found or is incapable of giving consent, or that the spouses have separated or divorced and are living apart and that such separation is likely to be permanent.
- (3) The consent of any person to the making of an adoption order in pursuance of an application may be given (either unconditionally or subject to conditions with respect to the religious persuasion in which the infant is to be brought up) without knowing the identity of the applicant for the order; and where the consent so given by any person is subsequently withdrawn on the grounds only that he does not know the identity of the applicant, his consent shall be deemed for the purposes of this section to have been unreasonably withheld.

- (4) In considering whether or not to dispense with the consent of any person to the making of an adoption order, or whether to grant leave or refuse leave under the provisions of subsections (1) and (2) of this section, the court shall regard the interests of the child as paramount and subject thereto, shall consider firstly the interests of the parents, guardians or relatives of the child and secondly the interests of the applicants.
- (5) Any person's consent to the making of an adoption order, may be withdrawn prior to the filing of the application without the leave of the court and with the leave of the court any time after the filing of the application for the adoption order but prior to the making of the order:

Provided that the court may at the request of the person withdrawing the consent keep his name and identity confidential.
- (6) Where any person whose consent to the making of the adoption order is required by section 158 does not attend the proceedings for the purposes of giving it, then subject to the provisions of subsection (7) of this section a document in the prescribed form and attested by a person of such class as may be prescribed signifying his consent to the making of such order shall, if the person in whose favour the order is to be made is named in the document or (where the identity of the person is not known to the consenting party) is distinguished therein in the prescribed manner, be admissible as evidence of that consent, whether the document is executed before or after the commencement of the proceedings.
- (7) Any document, whether executed in or outside Kenya, shall be admissible without further proof of the signature of the person by whom it was executed, and for the purposes of this subsection a document purporting to be attested as aforesaid, shall be deemed to be so attested and executed on the date and at the place specified therein unless the contrary is proved.
- (8) A document signifying the consent of the mother of the child, shall not be admissible under this section unless—
 - (a) the child is at least six weeks old on the date of the execution of the document;
 - (b) the document is attested by a person of the class prescribed for the purposes of subsection (2).

Guardian ad litem

160. Guardian ad litem for the child

- (1) For the purposes of any application for an adoption order, the court shall upon the application of the applicant or of its own motion, appoint a guardian ad litem for the child pending the hearing and determination of the adoption application.
- (2) It shall be the duty of the guardian ad litem to—
 - (a) safeguard the interests of the child pending the determination of the adoption proceedings;
 - (b) investigate and apprise the court as to the circumstances pertinent to the adoption of the child in the prescribed manner;
 - (c) make recommendations as to the propriety of making any interim orders or an adoption order in respect of the child;
 - (d) intervene on behalf of the child and arrange for the care of the child in the event of the withdrawal of any consent prescribed by this Act;
 - (e) undertake such duties as the court may from time to time direct or as may be prescribed by the rules made under this Part.
- (3) Where arrangements for the adoption of any child have been made by an adoption society, neither the society nor any member thereof, shall be appointed guardian ad litem of that child for the purposes of its adoption.

- (4) The appointment of a guardian ad litem shall expire upon the making of a final order by the court under this Part unless the court, having regard to the interests of the child, extends the period of the appointment.
- (5) Without prejudice to the generality of subsection (4), where an appeal is lodged against a final order by the court under this Part, the court shall have power to extend the appointment of a guardian ad litem until the date of the determination of the appeal.

Interim Orders

161. Interim orders

- (1) Whilst an application for an adoption order is pending in court—
 - (a) any person who has given his consent to the adoption shall not be entitled, except with the leave of the court, to remove the child concerned from the care and control of the applicant;
 - (b) the applicant who has received a child into his care for the purposes of an adoption shall not without the leave of the court remove the child from Kenya and where an application is made for such leave, the court may only make an order if it is satisfied that—
 - (i) exceptional circumstances in relation to the health, welfare and safety of the child exist;
 - (ii) the written consent of the parents or guardian of the child (if they are living or can be found) to the removal of the child from Kenya has been obtained; and
 - (iii) a welfare report has been made by parents or the guardian of the child (if they are living or can be found) to the removal of the child from Kenya has been obtained; and
 - (c) where a court makes an order under this paragraph the court shall make a wardship order in respect of the child and shall cause the applicant to execute a security bond with or without sureties requiring that the child be returned to Kenya by the applicant within such period as may be specified by the court and may make such other arrangements as it shall deem fit to secure the return of the child to Kenya;
 - (d) any person who fails without any reasonable or justifiable cause to return a child to Kenya within the period specified by an order issued under this section shall be guilty of an offence and liable to imprisonment for a term not exceeding three years, or to a fine not exceeding two hundred thousand shillings, or to both.
- (2) The court may, upon the application of the applicant or an adoption society or the parent or guardian of the infant or the appointed guardian ad litem, or of its own motion, make such interim orders as appear just in respect to the legal custody, maintenance, access, education, residence, safety, or welfare of the child generally and parental responsibility in respect of the child, and may direct that such proceedings be taken for placing the child under the protection of the court.
- (3) All such consents as are required for an adoption order shall be necessary for an interim order but subject to a like power on the part of the court to dispense with any such consent.
- (4) An interim order shall not be made in any case where the making of an adoption order would be unlawful.
- (5) An interim order shall not be deemed to be an adoption order within the meaning of this Act.

International Adoptions

162. International adoptions An adoption order may be made in respect of a child upon the joint application of two spouses who are not Kenya citizens and not resident in Kenya (in this Act referred to as an "international adoption") if they—

- (a) have obtained the consents specified in paragraph (e) of subsection (4) of section 158; and
- (b) have satisfied the court that the country where they ordinarily reside and where they expect to reside with the child immediately after the making of the adoption order will respect and recognise the adoption order and will grant resident status to the child; and
- (c) have been authorised and recommended as persons who are suitable

(including being morally fit and financially capable) to adopt a foreign child by a competent government authority or court of competent jurisdiction in the country where they expect to reside with the child immediately after the making of the adoption order.

Powers of the Court on Adoption Application

163. Powers of the court

- (1) The court before making an adoption order shall be satisfied—
 - (a) that every person whose consent is necessary under this Part, and whose consent is not dispensed with, has consented to and understands the nature and effect of the adoption order for which the application is made, and in particular in the case of a parent, understands that the effect of the adoption order will be permanently to deprive him or her of his or her parental rights;
 - (b) that the order if made will be in the best interests of the child, due consideration being for this purpose given to the wishes of the child, having regard to the age and understanding of the child, and to the ability of the applicant to maintain and educate the child;
 - (c) that the applicant has not received or agreed to receive, and that no person had made or given or agreed to make or give to the applicant, any payment or other reward in consideration of the adoption;
 - (d) that any person whose consent is dispensed with on the grounds of incapacity is still incapable of giving consent at the date of making the order;
 - (e) where the applicant is not a relative of the child, that reasonable steps have been taken to inform the relatives of the child of the proposed adoption and no relative able to accept the care of the child has expressed willingness to do so; and
 - (f) that both the applicant and the child have been assessed and evaluated by an adoption society in accordance with the regulations made by the Minister and such report has been availed to the court.
- (2) The court may impose such terms and conditions as it may think fit and, without prejudice to the generality of the foregoing, it may—
 - (a) require the adopter by bond or otherwise to make for the child such provision as in the opinion of the court just and expedient;
 - (b) order that the child shall not be removed from the jurisdiction of the court without the consent of the court for such period as the court may specify;
 - (c) require the adopter to accept supervision by and advice from an adoption society specified by the court for such period as the court may specify;

- (d) where the consent to the making of an adoption order is conditioned upon the child being brought up in a particular religious persuasion, require the infant to be brought up in that persuasion;
- (e) require the adopter to furnish such security by bond or otherwise as the court may think fit for the due performance of any condition that the court may impose;
- (f) where the adopter is not a resident of Kenya or a citizen of Kenya, require him to avail such periodical reports from a court or competent authority in the adopter's country of residence for such period as the court may specify.

[Act No. 18 of 2018, Sch.]

164. Power to appoint guardian

- (1) The court at the time of making an adoption order may, upon the application of the adopter, or of its own motion, or in the case of applicants for an international adoption, shall appoint any person approved by the adopter and whose prior consent thereto has been given in writing to be the guardian of the child in the event of the adopter, or both of the adopters where two spouses have applied for the adoption order, dying or becoming incapacitated before the child is of full age.
- (2) The court may, at any time before the child is of full age, on the application of the adopter, or of the guardian appointed under subsection (1) or of the child, revoke such appointment and appoint any other person to be the guardian of the child.

165. Adoption order in respect of children previously adopted

- (1) An adoption order or an interim adoption order, may be made in respect of a child who has already been the subject of an adoption order under this Act or under any other Act or Ordinance for the time being in force in any country in the Commonwealth.
- (2) In relation to an application for an adoption order in respect of such a child, the adopter or adopters under the previous or last adoption order shall be deemed to be the parent or the parents of the child for all purposes of this Part.

166. Parental responsibility when adoption is refused If the court refuses to make an adoption order, the court may make such order in respect of parental responsibilities for the child as the court may think fit.

167. Appeals Any person aggrieved by the making or refusal to make of an adoption order or an order pertaining to parental responsibility for a child may appeal therefrom in the same manner as if the application were a suit instituted under the Civil Procedure Act (Cap. 21).

168. Amendment of orders

- (1) The court by which an adoption order has been made under the Adoption Act (Cap. 143) (now repealed) may, on the application of the adopter amend the order by the correction of any defect in the particulars contained therein; and where an adoption order is so amended, the court shall cause the amendment to be communicated in the prescribed manner to the Registrar-General who shall cause the Adopted Children Register to be amended accordingly.
- (2) Where the adoption order was made before the commencement of this Act, the power of the court under subsection (1) shall include power to amend the order—
 - (a) by the insertion of the country of birth of the adopted person; or

- (b) where the order does not specify a precise date as the date of the adopted person's birth, by the insertion of the date which appears to the court to be the probable date of such birth, and the provisions of that subsection shall have effect accordingly.
- (3) Where an adoption order is quashed or an appeal against an adoption order is allowed, the court which made the order shall give directions to the Registrar- General to cancel any entry in the Register of Births and any entry in the Adopted Children Register which was effected in pursuance of the order.
- (4) A copy of, or extract from, and entry in any register being an entry the making of which is cancelled under this section, shall be deemed to be an accurate copy or extract and only if both the marking and the cancellation are omitted therefrom.

Registration of Adoption Orders

169. Adopted children register

- (1) The Registrar-General shall maintain a register, to be called the "Adopted Children Register", in which shall be made such entries as may be directed to be made therein by adoption orders, but no other entries shall be made therein.
- (2) A certified copy of an entry in the Adopted Children Register, if purporting to be sealed or stamped with the seal of the Registrar-General's Office, shall without any further or other proof of that entry, be received as evidence of the adoption to which it relates, and, where the entry contains a record of the date of the birth or the country of birth of the adopted person, shall also be received as aforesaid as evidence of the date or country in all respects as if the copy was a certified copy of an entry in the Registry of Births.
- (3) The Registrar-General shall cause an index of the Adopted Children Register to be made and every person shall be entitled to search that index and to have a certified copy of an entry in the Adopted Children Register upon payment of such fee as may be prescribed.
- (4) The Registrar-General shall, in addition to the Adopted Children Register and the index thereof, keep such other registers and books, and make such entries therein, as may be necessary to record and make traceable the connection between any entry in the Register of Births which has been marked "Adopted" and any corresponding entry in the Adopted Children Register, but such other register or books shall not be, nor shall any index thereof be, open to public inspection or search, except under the order of a court of competent jurisdiction, shall the Registrar General supply any person who requests information with respect to his own adoption, with any information contained in or with any copy or extract from any such registers or books.

170. Registration of adoption orders

- (1) Every adoption order made by the court shall contain a direction to the Registrar-General to make an entry in the Adopted Children Register in the prescribed form.
- (2) For the purposes of compliance with the requirements of subsection (1)—
 - (a) where the precise date of the child's birth is not proved to the satisfaction of the court, the court shall determine the probable date of his birth and the date so determined shall be specified in the order as the date of his birth; and
 - (b) where the country of birth of the child is not proved to the satisfaction of the court, the particulars of that country may, notwithstanding anything in that subsection, be omitted from the order and from the entry in the Adopted Children Register.
- (3) Where upon an application to the court for an adoption order in respect of a child not being a child who has previously been the subject of an adoption order made by the court under this Act or the Adoption Act (Cap. 143) (now repealed), there is proof to the satisfaction of the court of the identity of the child to whom an entry in the Register of Births relates, any adoption order made in

pursuance of the application shall contain a direction to the Registrar-General to cause the entry in the Register of Births to be marked with the word "Adopted".

- (4) Where an adoption order is made by the court in respect of a child who has previously been the subject of an adoption order made by such court under this Act or the Adoption Act (Cap. 143) (now repealed), the order shall contain a direction to the Registrar-General to be marked with the word "Re-adopted".
- (5) Where an adoption order is made by the court, the court shall cause the order to be communicated in the prescribed manner to the Registrar-General, and upon receipt of such communication, the Registrar-General shall cause compliance to be made with the directions contained in the order both with regard to marking an entry in the Register of Births with the word "Adopted" and in regard to making the appropriate entry in the Adopted Children Register.

Effect of Adoption Order

171. Rights and duties of parents and capacity to marry

- (1) Upon an adoption order being made, all rights, duties, obligations and liabilities of the parents or guardians of the child in relation to the future custody, maintenance and education of the child, including all rights to appoint a guardian and to consent or give notice of dissent to marriage, shall be extinguished, and all such rights, duties, obligations and liabilities shall vest in and be exercisable by and enforceable against the adopter as if the child were a child born to the adopter inside marriage and in respect of the matters aforesaid the child shall stand to the adopter as a child inside marriage.
- (2) In any case where two spouses are the adopters, the spouses shall in respect of the matters aforesaid, and for the purpose of the jurisdiction of any court to make orders as to the legal custody and maintenance of and right of contact with children, stand to each other and to the child in the same relation as they would have stood if they had been the lawful father and mother of the child and the child shall stand to them in the same relation as to a lawful father and mother respectively.
- (3) For the purpose of any written law relating to marriage for the time being in force in Kenya, an adopter and the person whom he has been authorised to adopt under an adoption order shall be deemed to be within the prohibited degrees of consanguinity; and the provisions of this subject shall continue to have effect notwithstanding that some person other than the adopter is authorised by a subsequent order to adopt the same child.

172. Workmen's Compensation For the purposes of the Workman's Compensation Act (Cap. 236), a child whom a deceased workman has been authorised to adopt under the adoption order shall be deemed to be a member of the family of the workman, and an adopter shall be deemed to be the parent of a deceased child whom he has been authorised to adopt.

173. Orders and agreements in respect of child born outside marriage

- (1) Where an adoption order is made in respect of a child born outside marriage then subject to this section, any order, decree or agreement whereby the father of the child is required or has undertaken to make payments specifically for the benefit of the child shall cease to have effect, but without prejudice to the recovery of any arrears which are due under the decree, order or agreement at the date of the adoption order.
- (2) Where a child to whom any such order, decree or agreement as aforesaid relates is adopted by his mother and the mother is a single mother, the order, decree or agreement shall not cease to have effect by virtue of subsection (1) upon the making of the adoption order, but shall cease to have effect if she subsequently marries.
- (3) Where an adoption order is made in respect of a child committed to the care of foster parents, a voluntary children's institution or a children's institution or a rehabilitation school by a care order

in force under this Act, the care order shall cease to have effect; and in any case any contribution order made in respect to the child shall cease to have effect, but without prejudice to the recovery of any arrears which are due under the order at the date of the adoption order.

174. Intestacies, wills and settlements

- (1) Where, at any time after the making of an adoption order, the adopter or the adopted person or any other person dies intestate in respect of any movable or immovable property (other than property subject to an entailed interest under a disposition made before the date of the adoption order), that property shall devolve in all respects as if the adopted person were the child of the adopter born inside marriage and were not the child of any other person.
- (2) In any disposition of movable or immovable property made, whether by instrument inter vivos or will (including codicil), at the date of an adoption order—
 - (a) any reference (whether express or implied) to the child or children of the adopter shall, unless the contrary intention appears, be construed as, or as including, a reference to the adopted person;
 - (b) any reference (whether express or implied) to the child or children of the adopted person's natural parents or either of them shall, unless the contrary intention appears, be construed as not being or as not including, a reference to the adopted person; and
 - (c) any reference (whether express or implied) to a person related to the adopted person in any degree shall, unless the contrary intention appears, be construed as a reference to the person who would be related to him in that degree if he were the child of the adopter born inside marriage and were not the child of any other person.
- (3) Where under any disposition any movable or immovable property or any interest in such property is limited (whether subject to any proceedings limitation or charge or not) in such a way that it would, apart from this section, devolve (as nearly as the law permits) along with a dignity or title or honour, whether or not the disposition contains an express reference to the dignity or title or honour and whether or not the property may in some event become severed therefrom, nothing in this section shall operate to sever the property or any interest therein from the dignity, but the property or interest shall devolve in all respect as if this section had not been enacted.

175. Provisions supplementary to section 174

- (1) For the purpose of the application of any written law for the time in force in Kenya relating to the devolution of any property in accordance with section 174 and for purposes of the construction of any such disposition as is mentioned in that section, an adopted person shall be deemed to be related to any other person being the child or adopted child of the adopter or (in the case of a joint adoption) of either of the adopters—
 - (a) where he or she was adopted by two spouses jointly and that the other person is the child or adopted child of both of them, as brother and sister of the whole blood; and
 - (b) in any other case, as brother and sister of the half blood.
- (2) Notwithstanding any rule of law, a disposition made by will or codicil executed before the date of an adoption order shall not be treated, for the purposes of section 174, as made after that date by reason only that the will or codicil is confirmed by a codicil executed after that date.
- (3) Notwithstanding anything in section 174, trustees or personal representatives may convey or distribute any movable or immovable property to or among the persons entitled thereto without having ascertained that no adoption order has been made by virtue of which any person is or may be entitled to any interest therein, and shall not be liable to any such person of whose claim they have not had notice at the time of the conveyance or distribution; but nothing in this subsection shall prejudice the right of any such person to follow the property, or any property representing

it, into the hands of any person, other than a purchaser for value without notice, who may have received it.

- (4) Where an adoption order is made in respect of a person who has previously been adopted, the previous adoption shall be disregarded for the purposes of section 174 in relation to the devolution of any property on the death of a person dying intestate after the date of the subsequent adoption order and in relation to any disposition of property made after that date.

176. Effect of overseas adoption

- (1) Where a person has been adopted (whether before or after the commencement of this Act) in any place and the adoption is one to which this section applies, then, for the purposes of this Act and all other written laws, the adoption shall have the same effect as an adoption order validly made under this Act, and shall have no other effect.
- (2) Subsection (1) shall apply to an adoption in any place outside Kenya, if—
 - (a) the adoption order was made by any court of law in the Commonwealth and any court of competent jurisdiction in any other country;
 - (b) in consequence of the adoption, according to the law of that country, a right superior to that of any natural parent of the adopted person in respect of the custody of the person; and
 - (c) in consequence of the adoption, the adopter had, immediately following the adoption, according to the law of that country, a right superior or equal to that of any natural parent in respect of any property of the adopted person which was capable of passing to the parent or any property of the person dying intestate without other next- of-kin, and domiciled in that place where the adoption was made and a national of the country which had jurisdiction in respect of that place, but not otherwise.
- (3) An adoption order made overseas in favour of an adopter who is resident in Kenya shall be lodged in the court within the period and in the manner specified by the rules made by the Chief Justice.

Adoption Societies

177. Restriction on making arrangements for adoption

- (1) No body of persons shall make any arrangements for the adoption of a child under the provisions of this Act unless such body is the national adoption society or any other body registered as an adoption society under this Part.
- (2) An application for registration of an adoption society under this Act shall be made to the Director in the manner prescribed by this Act.
- (3) Where an application is made, the Director shall refer the matter to the Adoption Committee which may—
 - (a) accept the application for registration;
 - (b) refuse the application for registration on the ground that—
 - (i) a person taking part in the management or control of the society or a member of the society has been convicted of an offence under this Part, or of a breach of any regulations made under this Part;
 - (ii) it would not be in the public interest to approve the same, having regard to the number of adoption societies already approved and functioning in the particular locality.
- (4) Where an application for registration is refused, no further application for registration of the adoption society may be made under this section within a period of six months beginning with the date when the applicant is notified of such refusal.

- (5) Where the Adoption Committee approves and accepts the registration of an adoption society, it shall issue a Certificate of Registration in the prescribed form and shall at the end of the period of twelve months beginning with the date of registration and annually thereafter, review the registration of the adoption society for the purpose of determining whether the registration should continue being in force or be cancelled.
- (6) An appeal against the decision of the Adoption Committee in refusing or cancelling the registration of an adoption society shall be made in the prescribed manner to the Minister whose decision upon the hearing and determination of the appeal shall be final.
- (7) The functions of an adoption society shall be—
 - (a) to make such inquiries and investigations and to cause such reports as shall be prescribed or as the court may direct, to be obtained for the purpose of ensuring so far as may be possible, the suitability of a child for adoption;
 - (b) to examine and interview any prospective applicant for an adoption order and to make such inquiries and investigations and to cause such reports as shall be prescribed, to be obtained or as the court may direct; for the purpose of ensuring so far as may be possible, the suitability of the applicant for the making of an adoption;
 - (c) to ensure that the parent or guardian of the child concerned understands the effect in relation to his rights as a parent or guardian, of the making of an adoption order in respect of the child, and in this regard and whenever possible to procure any consents to the adoption from the persons specified under section 158(4);
 - (d) where the child in respect of whom arrangements for adoption are to be made appears to have been abandoned, to ensure that as far as possible all necessary steps are taken to trace the parents or relatives of the child;
 - (e) subject to its having the facilities to do so, to take care and possession of any child whose parent or guardian is desirous of causing the child to be adopted, pending arrangements for adoption;
 - (f) when appointed by the court to act as guardian ad litem in any adoption proceedings to nominate a member or officer of the society to so act;
 - (g) in so far as the funds at its disposal permit, to make provision for the care and supervision of children who have been placed by their parents or guardians at the disposition of the society;
 - (h) to maintain a register and records in respect of all or any children in respect of whom arrangements for adoption have been made by the society, and the names and particulars of any applicants for adoption or of the adopters; and
 - (i) to perform such other duties as may be prescribed.
- (9) Any corporate body of persons or any person who takes part in the management or control of an unregistered body of persons, which makes arrangements for the adoption of a child in contravention of subsection (1) commits an offence.
- (10) Any corporate body which commits an offence under this section shall be liable on conviction to a fine not exceeding one hundred thousand shillings.
- (11) Any person who takes part in the management or control of a corporate body of persons which is guilty of an offence under this section shall be liable to imprisonment for a term not exceeding one year, or to a fine not exceeding one hundred thousand shillings or to both.
- (12) In any proceedings under this section, proof of the things done or of words written, spoken or published (whether or not in the presence of any party to the proceedings) by any person taking part in the management or control of a body of persons, or in making arrangements for the adoption of children on behalf of the body, shall be admissible as evidence of the purpose for which that body exists.

[Act No. 18 of 2018, Sch.]

General Provisions on Adoption

178. Information to be confidential

- (1) Every member or officer of an adoption society and every person having any official duty under or being employed in the administration of this Act, shall regard and deal with all documents and information relating to the adoption or proposed adoption of any child, or to any such child, or to the parent or guardian of such child, or to the proposed adopter of such child, as secret and confidential.
- (2) Every person having possession or control over any such documents or information who at any time communicates any such information or anything contained in any such comments to any person—
 - (a) other than the court, the Adoption Committee, the Minister, the Registrar-General or any other member or officer of the society; or
 - (b) an advocate representing the applicant or the guardian ad litem appointed under this Part;
 - (c) otherwise than for the purposes of this Act, commits an offence and is liable on conviction to imprisonment for a term not exceeding one year, or to a fine not exceeding twenty thousand shillings, or to both:

Provided that nothing contained in this section shall apply to the communication of any document or information in good faith in the interest or intended interest of such child as aforesaid or of the parent or guardian of, or proposed adopter of, the child.

- (3) No officer or member of an adoption society, and no person having any official duty or being employed in the administration of this Part, shall be required to produce before any court any such document as aforesaid, or to divulge or communicate to any court any such information as aforesaid except as may be necessary for the purpose of carrying into effect the provisions of this Part, or in order to bring or assist in the course of a prosecution for any offence under this Part.
- (4) The Minister may by order exempt any person by name or office from the provisions of this section.

179. Prohibition of certain payments

- (1) Subject to subsection (2)—
 - (a) any adopter or any parent or guardian of a child who receives any payment or other reward in consideration of the adoption of a child under this Act; or
 - (b) any person who—
 - (i) makes or gives or agrees to give to any adopter or any parent or guardian of the child any payment or other reward in consideration of the adoption of any child under this Act; or
 - (ii) makes arrangement for the adoption of a child and receives or makes or gives any payment or other reward in connection with the making of the arrangements, commits an offence and is liable on conviction to imprisonment for a term not exceeding twenty years or to a fine not exceeding twenty million shilling or to both.
- (2) Subsection (1) shall not apply—
 - (a) to any payment the making or receipt of which is sanctioned by the court to which an application for an adoption order in respect of a child is made; or
 - (b) deleted by Act No.18 of 2018, Sch.;
 - (c) deleted by Act No.18 of 2018, Sch.;

- (d) deleted by Act No.18 of 2018, Sch.;
- (e) deleted by Act No.18 of 2018, Sch.;
- (f) to any fee prescribed by the Minister to be payable to an adoption society in the conduct of any functions under this Act.

[Act No. 18 of 2018, Sch.]

180. Restriction on advertisement

- (1) It shall not be lawful for any advertisement to be published indicating—
 - (a) that the parent or guardian of a child desires to cause the child to be adopted; or
 - (b) that a person desires to adopt a child; or
 - (c) that any person (not being an adoption society) is willing to make arrangements for the adoption of a child.
- (2) Any person who causes to be published or knowingly publishes an advertisement in contravention of this section commits an offence and is liable on conviction to a fine not exceeding ten thousand shillings.

181. Offences under this Part Where any offence under any regulations made under this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of any director, manager, member of a committee, secretary or other officer of the body, he as well as the body corporate, shall be deemed to have committed that offence and shall be liable to be proceeded against and punished accordingly.

182. Regulations The Minister in consultation with the Council may make regulations for the better carrying out of the provisions and purposes of this Part, and without prejudice to the generality of the foregoing, for any of the following purposes—

- (a) for regulating and maintaining supervision over the activities of adoption societies and persons or bodies of persons purporting to assist in making arrangements for the adoption of children; or
- (b) for regulating the making of international adoptions and prescribing safeguards therefor; or
- (c) for prescribing the manner in which arrangements for adoption shall be conducted; or
- (d) for prescribing any matter authorised or required to be prescribed under this Part.

183. Rules of court under this Part The Chief Justice may make rules of court directing the manner in which applications to court have to be made and generally providing for matter of procedure and incidental matters arising under this Part.

183A. The powers of Cabinet Secretary over adoption societies The Cabinet Secretary may, in writing, direct the Adoption Committee to decline registration or cancel the registration of an adoption society where it is established that —

- (a) the operations of such adoption society are against the best interests of the child;
- (b) such adoption society is no longer necessary; or

- (c) the operations of such adoption society are in contravention of the Constitution or any other law or any international treaty or convention to which Kenya is a party.

[Act No. 18 of 2018, Sch.]

Part XIII – – CHILD OFFENDERS

184. Jurisdiction of Children's Courts

- (1) Notwithstanding the provisions of Parts II and VII of the Criminal Procedure Code (Cap. 75), a Children's Court may try a child for any offence except for—
 - (a) the offence of murder; or
 - (b) an offence with which the child is charged together with a person or persons of or above the age of eighteen years.
- (2) References to subordinate courts of any class, in the First Schedule to the Criminal Procedure Code (Cap. 75), include a Children's Court.

185. Power to remit cases to Children's Court

- (1) Subject to any rules or directions made or issued by the Chief Justice, where it appears to a court, other than a Children's Court, at any stage of the proceedings that a child is charged before it with an offence other than murder and is not charged together with a person or persons of or above the age of eighteen years, the court may, and where within the area of a subordinate court's jurisdiction there is established a Children's Court having jurisdiction, the subordinate court shall remit the case to a Children's Court:

Provided that nothing in this subsection shall be construed as preventing a court, if it considers in the circumstances (including the stage reached in the proceedings) that it is proper so to do, from proceeding with the hearing and determination of the charge.

- (2) Where in accordance with the provisions of subsection (1) of this section, a case is remitted to a Children's Court after a finding that the child charged is guilty of the offence, the Children's Court to which the case has been remitted may deal with the offender in any way in which it might have dealt with him if he had been tried and found guilty by that court.
- (3) No appeal shall lie against an order of remission made under this section, but nothing in this section shall affect any right of appeal against the verdict or finding on which such an order is founded, and if a child has been found guilty by the High Court and his case remitted to a Children's Court for an order under section 191 of this Act, he may appeal against such findings to the Court of Appeal.
- (4) A court by which an order remitting a case to a Children's Court is made under this section may give such directions as appear to be necessary with respect to the custody of the offender or for his release on bail or bond until he can be brought before the Children's Court, and shall cause to be transmitted to the clerk of the Children's Court a certificate setting out the nature of the offence and stating the stage reached in the case, and that the case has been remitted for the purposes of being dealt with under this section.
- (5) Where, pursuant to the provisions of section 184, a court other than a children's court hears a charge against a child, the court shall apply all the provisions of this Act as relate to the safeguards to be accorded a child offender.

186. Guarantees to a child accused of an offence Every child accused of having infringed any law shall—

- (a) be informed promptly and directly of the charges against him;

- (b) if he is unable to obtain legal assistance, be provided by the Government with assistance in the preparation and presentation of his defence;
- (c) have the matter determined without delay;
- (d) not be compelled to give testimony or to confess guilt;
- (e) have free assistance of an interpreter if the child cannot understand or speak the language used;
- (f) if found guilty, have the decisions and any measures imposed in consequence thereof reviewed by a higher court;
- (g) have his privacy fully respected at all the proceedings;
- (h) if he is disabled, be given special care and be treated with the same dignity as a child with no disability.

187. Consideration of welfare

- (1) Every court in dealing with a child who is brought before it shall have regard to the best interests of the child and shall, in a proper case, take steps for removing him from undesirable surroundings and for securing that proper provision be made for his maintenance, education and training.
- (2) Every child in remand or custodial care who is ill, or who complains of illness, (physical or mental), shall be examined promptly by a qualified medical practitioner and treated.

188. Friendly setting of Children's Court A Children's Court shall have a setting that is friendly to the child offender.**189. Words "conviction" and "sentence" not to be used of child The words "conviction" and "sentence" shall not be used in relation to a child dealt with by the Children's Court, and any reference in any written law to a person convicted, a conviction or a sentence shall, in the case of a child, be construed as including a reference to a person found guilty of an offence, a finding of guilt or an order upon such a finding, as the case may be.****190. Restriction on punishment**

- (1) No child shall be ordered to imprisonment or to be placed in a detention camp.
- (2) No child shall be sentenced to death.
- (3) No child under the age of ten years shall be ordered by a Children's Court to be sent to a rehabilitation school.

191. Methods of dealing with offenders

- (1) In spite of the provisions of any other law and subject to this Act, where a child is tried for an offence, and the court is satisfied as to his guilt, the court may deal with the case in one or more of the following ways—
 - (a) By discharging the offender under section 35(1) of the Penal Code (Cap. 63);
 - (b) by discharging the offender on his entering into a recognisance, with or without sureties;
 - (c) by making a probation order against the offender under the provisions of the Probation of Offenders Act (Cap. 64);

- (d) by committing the offender to the care of a fit person, whether a relative or not, or a charitable children's institution willing to undertake his care;
- (e) if the offender is above ten years and under fifteen years of age, by ordering him to be sent to a rehabilitation school suitable to his needs and attainments;
- (f) by ordering the offender to pay a fine, compensation or costs, or any or all of them;
- (g) in the case of a child who has attained the age of sixteen years dealing with him, in accordance with any Act which provides for the establishment and regulation of borstal institutions;
- (h) by placing the offender under the care of a qualified counsellor;
- (i) by ordering him to be placed in an educational institution or a vocational training programme;
- (j) by ordering him to be placed in a probation hostel under provisions of the Probation of Offenders Act (Cap. 64);
- (k) by making a community service order; or
- (l) in any other lawful manner.

(2) No child offender shall be subjected to corporal punishment.

192. Mental treatment If it appears to the court on the evidence of a medical practitioner that a child requires or may benefit from mental treatment, the court when making a probation order against him, may require him to undergo mental treatment at the hand or under the direction of a medical practitioner for a period not exceeding twelve months, subject to review by the court, as a condition of the probation order.

193. Power to order parent to pay fines, etc

- (1) Where a child is charged with an offence for which a fine, compensation or costs may be imposed, if the court is of the opinion that the case would best be met by imposition of a fine, compensation or costs, whether with or without any other punishment, the court may in any case order that the fine, compensation or costs imposed or awarded be paid by the child's parent or guardian instead of by the offender, unless the court is satisfied that the parent or guardian cannot be found or that he or she has not induced the commission of the offence, by neglecting to exercise due care of the offender.
- (2) Where a child is charged with an offence, the court may order his parent or guardian to give security for his good behaviour.
- (3) An order under this section may be made against a parent or guardian who having been required to attend before the court, has failed to do so, but, save as aforesaid, no such order shall be made without giving the parent or guardian an opportunity of being heard.
- (4) Any sums imposed and ordered to be paid by a parent or guardian under this section, or forfeiture of any such security as aforesaid, may be recovered from him or her in a like manner as if the order had been made on the conviction of the parent or guardian of the offender.
- (5) A parent or guardian may appeal to the High Court against an order made under this section by a Children's Court.

194. Proceedings in respect of offences committed by a child

- (1) Proceedings in respect of a child accused of having infringed any law shall be conducted in accordance with the rules set out in the Fifth Schedule.

- (2) The Minister may by regulations amend the rules made in accordance with subsection (1).

Part XIV – – MISCELLANEOUS AND GENERAL PROVISIONS

195. Appeals to the Minister

- (1) A person aggrieved by any act of the Director or an authorised officer in exercise of powers conferred by this Act may appeal to the Minister within fourteen days.
- (2) An appeal under subsection (1) shall be made in the prescribed manner.
- (3) The Minister shall make regulations prescribing the procedure of appeal under this section.

196. General penalty A person convicted of an offence under this Act for which no other penalty is prescribed shall be liable to imprisonment for twelve months, or to a fine not exceeding twenty thousand shillings, or to both such imprisonment and such fine.

197. General power to make regulations Subject to the provisions of this Act, the Minister may make regulations—

- (a) for prescribing anything that may be prescribed under this Act; or
- (b) generally for the better carrying out of the provisions of this Act.

197A. Committees The Cabinet Secretary may, from time to time by notice in the *Gazette*, establish and assign functions to such committees or working groups as may be necessary for the better performance of any function required to be performed under this Act.

[Act No. 18 of 2018, Sch.]

198. Exemption The Minister may, from time to time, by order, either retrospectively from the passing of this Act or prospectively, exclude from the operation of all or any of the provisions of this Act the members of any race, tribe, religious group or sect in Kenya, or any part of such race, tribe, religious group or sect, or to whom the Minister may consider it impracticable or inexpedient to apply such provisions, and may also from time to time revoke any such order, but not so that the revocation shall have any retrospective effect.

199. Grants and expenses of the Minister There shall be paid out of moneys provided by Parliament—

- (a) such sums on such conditions as the Minister may prescribe towards
 -
 - (i) the expenses incurred by rehabilitation schools, and children's remand homes;
 - (ii) expenses incurred by the Director in the administration of services to children in need of care and protection;
- (b) such sums as grants or grants in aid to appointed local authorities or charitable children's institutions as may be authorised by the Minister from time to time;
- (c) any other expenses incurred by the Minister and the Director in the administration of this Act.

200. Repeals

- (1) The laws specified in the Sixth Schedule are repealed.
- (2) Without prejudice to the generality of the application of section 3 of the Interpretation and General Provisions Act (Cap. 2), the transitional provisions set out in the Seventh Schedule shall have effect upon the repeal of the Acts specified in the Schedule.

FIRST SCHEDULE

[Section 31(3).]

PROCEEDINGS OF THE NATIONAL

COUNCIL OF CHILDREN'S SERVICES

1. **The Council shall have at least four meetings in one calendar year.**
2. **The Chairman shall preside at every meeting of the Council at which he is present, and in the absence of the Chairman from a meeting the members present shall elect one of their number who shall, with respect to that meeting and the business transacted thereat have all the powers of the Chairman.**
3. **The quorum for a meeting of the Council shall be seven.**
4. **At any meeting of the Council the Chairman shall have a casting as well as a deliberative vote and subject thereto, the decision of the majority of the members present and voting at the meeting of the Council shall be deemed to be the decision of the Council.**
5. **Subject to paragraph (2), no proceedings of the Council shall be invalid by reason of a vacancy among the members thereof.**
6. **The chairman may at any time of his own motion and shall within fourteen days of the receipt by him of a written request signed by at least three members convene a meeting of the Council.**
7. **All instruments made by, and all decisions of the Council shall be signified under the hand of the Chairman or the secretary.**
8. **Except as provided by this Schedule, the Council may regulate its own proceedings.**

SECOND SCHEDULE

[Section 42.]

WELFARE SCHEMES

**Part I – Provisions for the assumption by local
authorities of the care of persons including**

-
- (a) provisions for children who are orphans or have been deserted or are in need of care and protection;

- (b) provisions for children and families already subject or becoming subject to orders of court; and
- (c) provision requiring parents of persons committed to the care of local authorities to maintain contact with such authorities.

Part II – – TREATMENT OF CHILDREN IN CARE OF LOCAL AUTHORITIES

- 1. Furtherance of the best interests of children in their care.**
- 2. Provision for the accommodation and maintenance of children.**
- 3. The establishment and maintenance of institutions or day nurseries.**
- 4. The accommodation of children in voluntary homes including homes set up by voluntary children's institutions.**
- 5. The provision of hostels and youth organisations.**
- 6. The provision of financial assistance towards the expenses of maintenance, education or training of children.**

Part III – – VOLUNTARY CHILDREN'S INSTITUTIONS

- 1. The appointment of voluntary children's institutions to act as agents of local authorities.**
- 2. Provision for the after care of children formerly in the care of local authorities or voluntary children's institutions.**

Part IV – – ADMINISTRATIVE AND FINANCIAL PROVISIONS

- 1. Establishment of a children's Committee.**
- 2. Appointment of children's officers and appropriate staff.**
- 3. Grants for training in child care.**
- 4. Grants to voluntary children's institutions.**

Part V – – MISCELLANEOUS AND GENERAL

- 1. Provision of places of safety.**
- 2. Any other provisions which may be approved by the Minister.**

THIRD SCHEDULE

[Sections 119, 121 and 128.]

OFFENCES AGAINST CHILDREN WITH
RESPECT TO WHICH PART IX APPLIES

1. **Offences under sections 140, 141, 142, 143, 144, 145, 146, 147, 148, 149.**
, 150, 151, 157, 158, 162, 165, 166, 167, 250 and 251 of the Penal Code (Cap. 63).

2. **Offences under this Act.**

3. **Any other offences involving bodily injury.**

FOURTH SCHEDULE

[Section 152.]

FOSTER CARE PLACEMENT RULES

1. **These Rules may be cited as the Foster Care Placement Rules.**

2. **In these Rules—**

"Director" means the Director of Children's Services;

"foster care placement" means the placing of a foster child with a foster parent;

"foster parent" means a person or persons with whom a foster child is for the time being proposed to be placed for fostering.

3. **Application to register as a foster parent A person who wishes to register as a foster parent shall complete the application form specified in Form 1 of the Schedule to these Rules and submit it to the Director directly or through the manager of a rehabilitation school or the manager of a voluntary children's institution who shall forward the application to the Director.**

4. **Procedure before placement**

(1) A child shall not be placed with a foster parent unless—

- (a) a children's officer has interviewed the prospective foster parent and assessed that he or she is a suitable person to foster a child;
- (b) a children's officer has visited the home of the prospective foster parent and has confirmed in writing that the home is likely to meet the requirements of the particular child and that the conditions in it are satisfactory;
- (c) two persons who know the prospective foster parent well will have vouched for his or her good character and suitability to care for the child;
- (d) it has been established by the officer in charge of the police station in the applicant's area of residence that no person in the home has been convicted of a serious offence rendering it undesirable for the child to associate with that person; and
- (e) the wishes of the child so far as can be ascertained have, so far as practicable been taken into account.

- (f) The children's officer has completed and filed in the Director's office a report containing the particulars specified in Form 2 in the Schedule to these Rules.

5. Religion

- (1) Where a child's religion is known, the child shall be placed with a foster parent who either is of the same religious persuasion as the foster child or who gives an undertaking that the child will be brought up in that religious persuasion.

6. Cultural background

- (1) Whenever possible, a child shall be placed with a foster parent who has the same cultural background as the child's parents and who originates from the same area in Kenya as the parents of the child.

7. Registration of foster parent

- (1) If after such inquiry as the Director deems necessary, the Director is satisfied as to the character and fitness of the applicant and the premises proposed to be used by the applicant as a foster home, the Director shall register the applicant as a foster parent.
- (2) A person registered under paragraph (1) shall make an undertaking containing particulars set out in Form 3 and be issued with a certificate of registration as set out in Form 3 in the prescribed form and shall be entitled to receive and maintain on the premises specified in the certificate any child for the purposes of caring and nurturing him.
- (3) Every registration certificate issued under paragraph (2) shall continue in force for a period of twelve months beginning on the day it is issued and shall then expire:

Provided that where an application for the renewal of a certificate is made prior to the expiry of the current certificate, the current certificate shall continue in force until a decision on the application for renewal is made.

- (4) Subject to paragraph (3), the Director may at any time revoke a certificate of registration issued under paragraph (2).
- (5) Where it is intended to revoke a certificate of registration under paragraph (2), the Director shall give notice of the intended revocation to the foster parent.
- (6) Upon the issue of a notice under paragraph (5), the Director shall make such arrangements as may be necessary for the removal of any child residing in the foster home concerned.

8. Medical care

- (1) When foster placement begins the Director shall obtain and submit to the foster parent a list of immunisations carried out in respect of the child and indicate to the foster parent the list of other immunisations required to be effected in respect of the child in accordance with the Ministry of Health schedule of immunisations and the foster parent shall ensure that those immunisations are carried out.
- (2) The foster parent, and the Director's office shall at all times keep a record of the immunisations in respect of the child.
- (3) The Director and the voluntary children's institution which recommends foster care placement shall ensure that a foster child is examined by a medical practitioner within one month after foster placement and thereafter at least once every year, and arrangements shall be made by the Director or voluntary children's institution to obtain from the medical practitioner after each such examination a written report on the physical health and mental condition of the foster child.

- (4) The Director and a voluntary children's institution shall provide adequate facilities for a foster child who is placed for fostering to receive medical and dental attention as required.
- (5) The Director shall require a foster parent to report all cases of serious illness or accident to a foster child and to summon a medical practitioner immediately in all such cases.

9. Power of inspection

- (1) An authorised officer may at any time enter any foster home or any premises in which he has reason to believe a child is being maintained contrary to the provisions of these Rules, and may inspect every part of the foster home or premises and examine the child and condition of the child therein.
- (2) The authorised officer may, if upon inspection under paragraph (1), he is dissatisfied with the quality of care that a child is receiving remove the child from the foster home or other premises and place the child in a place of safety until the wishes of the parent or guardian are known, or until alternative arrangements for the care and maintenance of the child can be made.
- (3) The period during which a child remains in a place of safety under this section shall not exceed three months.

10. Notification where child leaves Where a child leaves the care of any person who has possession of him under these Rules, the person shall, within three days, report to the Director, parent or guardian of the child.

11. Death

- (1) Where a child placed in foster care under this Act dies, the foster parent shall within twenty-four hours of such death, notify the Director in the prescribed form.
- (2) Where the child's parents or guardians are known, the Director shall inform them of the child's death.
- (3) If the foster parent dies, in the case where a child is placed with a single foster parent, the child shall be returned to the home or the children rehabilitation centre or voluntary children institution from which he was received.

12. Records Every District Children's Office shall maintain a register of foster parents, in which shall be set out in respect of each fostering, a record set out in Forms 2 and

5. specified in the Schedule to these Rules.

13. Every District Children's Office shall report within one month after each fostering effected by it, the fact of the fostering and specifying the information in Form 5 specified in the Schedule to these Rules.

FIFTH SCHEDULE

[Section 194.]

CHILD OFFENDERS RULES

1. Citation These Rules may be cited as the Child Offenders' Rules.

2. Interpretation In these Rules "Probation Officer" means a probation officer as defined in the Probation of Offenders Act (Cap. 64)—

"Children's Officer" means a children's officer as appointed to be a children's officer under section 37 of the Children Act;

"Director" means the Director of Children's Services appointed under section 37(1) of the Children Act.

3. Application of Rules These Rules shall apply to the proceedings with respect to a child who is charged with an offence.

4. Arrest and charge of a child

- (1) Where a child is apprehended with or without a warrant on suspicion of having committed a criminal offence he shall be brought before the Court as soon as practicable:

Provided that no child shall be held in custody for a period exceeding twenty- four hours from the time of his apprehension, without the leave of the Court.

- (2) Where a child is held in police custody the officer in charge of the police station shall as soon as practicable inform—
- (a) the parents or guardians of the child; or
 - (b) the Directors of the arrest.
- (3) The police shall ensure that the parent or guardian of the child, or an advocate appointed to represent the child is present at the time of any police interview with the child.
- (4) Where a child's parent or guardian cannot immediately be contacted or cannot be contacted at all, a Children's Officer or an authorised officer shall be informed as soon as possible after the child's arrest so that he can attend the police interview.

5. Bail of arrested child Where a person apparently under the age of eighteen years is apprehended with or without a warrant and cannot be brought forthwith before a court, the police or officer to whom such person is brought shall inquire into the case, and may in any case, and unless—

- (a) the charge is one of murder or manslaughter or other grave crime; or
- (b) it is necessary in the interests of such person to remove him or her from association with any undesirable person; or
- (c) such officer has reason to believe that the release of such person would defeat the ends of justice, release such person on a recognizance being entered into by his parent or guardian or other responsible person, with or without sureties, for such amount as will, in the opinion of such officer, secure the attendance of such person upon the hearing of the charge.

6. Prevention of child associating with adult offenders

- (1) No child while detained in a police station or while being conveyed to any court, or while waiting to attend in or leave any court shall be detained with or be allowed to associate with any adult who is not a relative of the child.
- (2) Arrangements shall be made to detain the child in a separate institution or in a separate part of the police station.
- (3) A female child shall, while detained, conveyed or waiting, as described in paragraph (1) of this Rule be under the care of a woman officer.

7. Power to clear court Where in any proceedings in relation to an offence against, or any conduct contrary to, decency or morality, a person who, in the opinion of the Court is under eighteen years of age is called as a witness, the Court may direct that all or any persons, not being members or officers of the Court, or parties to the case or their advocates, or persons otherwise directly concerned in the case, shall be excluded from the Court during the taking of the evidence of that witness.

8. Power to require attendance of parent Where a child is charged with any offence or is for any other reason brought before a court, his parent or guardian may in any case, and shall, if he can be found and resides within a reasonable distance, be required to attend at the Court before which the case is heard or determined during all stages of the proceedings, unless the Court is satisfied that it would be unreasonable to require such attendance.

9. Bail

- (1) Where a child is brought before a court and charged with an offence, the Court shall inquire into the case and may release the child on bail on such terms as the Court may deem appropriate.
- (2) Where bail is not granted the Court shall record the reasons for such refusal and shall inform the child of his right to apply for bail to the High Court.

10. Remand of child when bail is refused to remand home

- (1) Where a child is not released on bail the Court may make an order remanding the child in custody and shall order him to be detained for the period for which he is remanded to a children's remand homes:

Provided that if there is no children's remand home within a reasonable distance of the Court, the Court shall make such order as to the child's safe custody as it deems fit.
- (2) For the purposes of this section a place of safe custody shall not be a remand home or prison in which adults are detained or remanded.
- (3) A remand to a children's remand home under this section may be revoked and the child, if he is over the age of fifteen years ordered to be remanded in a borstal institution, if the child proves to be so unruly a character that he cannot safely be remanded in a children's remand home or if the child has proved to be of so depraved a character that he is not fit to be so remanded.
- (4) Remand in custody shall not exceed—
 - (a) six months in the case of an offence punishable by death; or
 - (b) three months in the case of any other offence.
- (5) A child who escapes from a remand home or other place of safe custody in which he is detained may be arrested with or without warrant and returned to that place.
- (6) Whenever possible, the Court shall consider alternatives to remand such as close supervision or placement with a counsellor or a fit person determined by the Court on the recommendation of a probation officer or children's officer.

11. Probation and Children's Officer's report

- (1) If the Court, after a charge has been admitted and proved, is considering making a detention or probation order, a written social background report shall be prepared by a probation officer and a Children's Officer and shall be taken into account by the Court before making the order.

- (2) The report shall include among other things, the social and family background, the circumstances in which the child is living and the conditions under which the offence was committed.
- (3) The Court shall ensure that the contents of the report are made known to the child and that a copy of the report is provided for the child or his legal representative.
- (4) In all other cases, the Court may request an oral report.

12. Duration of cases

- (1) Every case involving a child shall be handled expeditiously and without unnecessary delay.
- (2) Where the case of a child appearing before a Children's Court is not completed within 3 months after his plea has been taken, the case shall be dismissed and the child shall not be liable to any further proceedings for the same offence.
- (3) Where, owing to its seriousness, a case is heard by a court superior to the Children's Court, the maximum period of remand for a child shall be six months, after which the child shall be released on bail.
- (4) Where a case to which paragraph (3) of this rule applies is not completed within twelve months after the plea has been taken, the case shall be dismissed and the child shall be discharged and shall not be liable to any further proceedings for the same offence.

SIXTH SCHEDULE

[Section 200(1).]

WRITTEN LAWS TO BE REPEALED

The Children and Young Persons Act (Cap. 141) The Adoption Act (Cap. 143) The Guardianship of Infants Act (Cap. 144) **SEVENTH SCHEDULE**

[Section 200(2).]

TRANSITIONAL PROVISIONS

- 1. The juvenile courts established by section 2 of the Children and Young Persons Act (Cap. 141) hereinafter referred to as "the repealed Children and Young Persons Act" shall be deemed to be the Children's Courts for the purpose the Act.**
- 2. The juvenile remand homes established, and the approved schools approved and established as the case may be, under Part V of the repealed Children and Young Persons Act (Cap. 141) shall be deemed to be the children remand homes and approved schools for the purposes of the Act.**
- 3. A person who immediately before the commencement of this Act is detained in a juvenile remand home or an approved school under the provisions of the repealed Children and Young Persons Act (Cap. 141) shall be deemed to be detained in a children remand home or approved school for the purposes of the Act.**
- 4. Every person in whose care and possession a child is placed under the provisions of Part VI of the repealed Children and Young Persons Act (Cap. 141) shall within 90 days after the commencement of this Act apply for appointment as a foster parent under section 148.**

5. **The Chief Inspector and inspectors of children appointed under section 54 of the repealed Children and Young Persons Act (Cap. 141) shall be deemed to be the Director of Children's Services and Children's Officers, respectively, for the purposes of the Act.**
6. **The local authorities appointed by the Minister under section 58 of the repealed Children and Young Persons Act (Cap. 141) shall continue to be appointed local authority for the purposes of this Act.**
7. **A person who, immediately before the commencement of this Act is an approved officer under section 64 of the repealed Children and Young Persons Act (Cap.**

141.

) should continue to be an approved officer for the purposes of this Act.

8. **The Adopted Children Register maintained by the Registrar-General under section 13 of the Adoption Act (hereinafter referred to as "the repealed Adoption Act") shall continue to be the Adopted Children's Register for the purposes of this Act.**

9.

- (1) An adoption society other than a local authority approved under section

23. **of the repealed Adoption Act shall continue to be an adoption society for the purposes of this Act.**

- (2) The Minister shall, forthwith on the commencement of this Act arrange for the transfer of the functions of any local authority as an adoption society as appropriate adoption society.

EIGHTH SCHEDULE

[Section 68.]

POWERS AND FUNCTIONS OF AN INSPECTION COMMITTEE

- (a) Inspect rehabilitation schools, children's remand homes and charitable children's institutions.
- (b) Visit the institutions or cause them to be visited.
- (c) Interview any child in the premises or institution.
- (d) Interview the manager and any staff member in the premises.
- (e) Inspect the conditions and facilities provided by the institution or manager of the premises.
- (f) Make recommendations on closure, improvement, and remedial requirements and relocation of children housed in the institution inspected.

NINTH SCHEDULE

[Section 155.]

MEMBERS OF THE ADOPTION COMMITTEE

- (a) The Director.
- (b) Four representatives from charitable children's institutions and organizations engaged in child welfare activities, appointed by the Minister.

- (c) One representative from Kenyatta National Hospital.
- (d) One representative from private hospitals dealing primarily with children, appointed by the Kenya Medical Association.
- (e) One representative of the Law Society of Kenya knowledgeable in the rights and welfare of children.
- (f) A representative of the Ministry of Foreign Affairs.
- (g) The Attorney-General.

CHAPTER 50: Orders, Decorations and Medals (continuation)

- (2) To be eligible for the Badge, personnel compliance shall include—
 - (a) meritorious service over a period of ten years; and
 - (b) performance of an exceptionally meritorious act.
- (3) All awards of the National Police Merit Badge shall be accompanied by a certificate signed by the Inspector-General or by a Senior Officer at the Service headquarters on his behalf.
- (4) The Badge shall be worn on the left breast beneath any medal ribbons which the recipient may possess and when medals are worn the Badge shall be worn one inch below the medals and a blue patch inserted beneath the Badge when khaki dress is worn.
- (5) Recommendation for the award of the Badge—
 - (a) under paragraph 11 (2)(a) for meritorious service shall be submitted by County police officers and formation Commanders to the Service Headquarters, as soon as possible after the exceptionally meritorious act; or
 - (b) under paragraph 11(2)(b) for performance of an exceptionally meritorious act shall be submitted by County police officers and formation commanders to service headquarters, as soon as possible after the performance of the exceptionally meritorious act.

11. Wearing of medal and decorations.

- (1) Medals and decorations shall be worn by all ranks on all occasions when full dress or ceremonial order is worn, and on kit inspections.
- (2) Ribbons shall be worn on all other orders of dress except the shirt.

12. Length of the Medal Ribbons when Medals are worn.

The Length of the Medal Ribbons when Medals are worn shall be—

- (a) when medals and decorations are worn, the ribbon shall be $1\frac{1}{4}$ in length and when two or more medals are worn they shall be arranged so that the lower edges (or lower points of stars) are in line;
- (b) medals shall be properly mounted on a separate and special bar and not attached untidily to the bar used when wearing the ribbon only, nor shall medals be stitched or pinned by the ribbon to the jacket, further;
- (c) medals and decorations shall be polished and cleaned before being worn.

13. Miniature medals.

- (1) Gazetted Officers' wearing mess dress shall wear miniatures of orders, medals and decorations on the left lapel of the jacket in one horizontal line one inch below the point of the shoulders, suspended from a bar of which no part is to be seen.
- (2) Collar badges shall be placed $\frac{3}{4}$ in below the medals.

14. Ribbons.

- (1) Ribbons#
 - (a) worn without decorations and medals, shall be $\frac{3}{8}$ in depth and shall be placed centrally over the left breast pocket button of the tunic immediately above the flap of the breast pocket; and
 - (b) shall be worn in the order of precedence contained in paragraph 9.
- (2) The number of ribbons to be worn in one row shall be governed by the physique of the individual and the type of garment and subject to the conditions which include—
 - (a) not to fully obscure ribbons by the lapel of the garment;
 - (b) as many ribbons as convenient shall be accommodated in a row before another row is started; and
 - (c) rows or portions thereof shall be placed centrally above the first or other complete rows.

15. Application on wearing medals.

Where an officer is uncertain as to the proper order in which their medals should be worn, and no provision is made in these instructions to cover their case, an application shall be made, through the usual laid out procedure.

16. Loss of medals.

An officer shall not wear ribbons of decorations and medals which have been lost, unless documentary proof can be produced that they are entitled to such decorations or medals.

17. Medals for Junior officers dying in Service.

- (1) A medal belonging to an officer who dies in the service shall be sent to the legatee or executors when bequeathed by will.
- (2) Where the officer dies interstate, the medals shall be sent to the next-of-kin, as shown in official records.
- (3) Where there is doubt as to the next-of-kin, the heir shall be decided according to custom of that community.
- (4) A medal which is forfeited shall be forwarded to the Inspector-General, under registered cover, for disposal.
- (5) Titles of honour shall be forfeited by person convicted of treason, sedition, murder, rape corruption, terrorism and drug trafficking and such person shall be stripped of the title.
- (6) Paragraph (5) shall also apply to those who are dishonourably discharged from the disciplined services.

18. Wound stripe.

- (1) A Police officer wounded while in the execution of their duty may receive service award in recognition of such wound.
- (2) The wound stripe award—
 - (a) may be awarded to officers of any rank
 - (b) shall be confined to instances where a police officer, while carrying out his duties has been deliberately wounded by an adversary, but accidental injuries shall not be treated as a qualification for the award..
 - (c) shall consists of a red ribbon 1 ¼ x3/8” (Normal ribbon size) sewn on a metal clasp and the number of awards shall be indicated by a perpendicular silver thread bar sewn on the ribbon and—
 - (i) the first bar shall be in the centre of the ribbon;
 - (ii) for the second award two bars will be sewn equidistant from each other and the ends of the ribbon; and
 - (iii) for the third award, another bar will sewn in the centre of the ribbon, all three bars being equidistant from each other and the edge of the ribbon;
 - (d) be worn on the left breast suspended by its riband.
- (3) The County police officers or Formation commanders shall submit detailed recommendations through their respective Deputy Inspectors General and the Director of Criminal Investigations to the Inspector General in respect of officers who are considered eligible for this award.
- (4) On approval of the award by the Inspector General, it shall be published in service administrative orders and an entry on the officers records of service card and in the commendations and rewards column of his service register.
- (5) The award shall be worn above the centre of the right hand breast pocket of all uniforms and in the case of subordinate officers wearing numerals, it shall be worn immediately above the centre of the numeral.
- (6) The award ribbon shall be obtainable from the respective Deputy Inspector General s and D.C.I. stores on indent, quoting the relevant authority as published in the service administration orders.

19. Certificate of commendation.

A certificate, signed by the Inspector General, shall be issued to the recipient of each commendation published in service Administrative orders in the form set out Appendix 50.

APPENDIX 50 (a)

JKUAT IMAGE

This certificate testifies to the

Award of Award of a

BADGE OF MERIT OF

To

.....

Of the National Police Service, notification of which was published in
Service orders No on the day of 20..... in recognition
of

.....

Service Headquarters, Nairobi

Date 20

INSPECTOR GENERAL

IMAGE

APPENDIX 50 (b)

This certificate testifies to the

Award of a COMMENDATION

To

.....

Of the National Police Service, notification of which was published

In Service orders No. on the Day of, 20..... in recognition
of

.....

Service Headquarters, Nairobi.

DATE 20.....

INSPECTOR GENERAL

CHAPTER 51— POLICE ANIMALS

1. Where Police animals are stationed.

A police animal is the property of the Government of Kenya and shall be stationed at each Formations according to the approved Service establishments.

2. Strength, increase and decreases.

- (1) Every formation with police animals shall keep and maintain a record of all animals including any increases, decreases and transfers of police animals.
- (2) The record shall include birth of foals and cameling, shall be taken on ledger charge when the animals are six months old as “Immature Animals” and transferred to the established strength on attaining the age of four years.
- (3) Puppies are taken on strength when nine months old and on the ledger charge when six months.

3. Certificate of soundness.

A police animal shall not be purchased without a certificate of soundness by a veterinary surgeon and without being examined for fitness for police work.

4. Allocation of Service numbers.

A police animal shall be allocated service numbers as listed below—

- (a) each kind of animal on police strength shall be allocated a set of numbers to run consecutively from number one and the number shall be prefixed by the relevant words “Police Horse”, “Donkey”, “Mule”, Camel and Police dog; and
- (b) when an animal is taken on strength, it shall be allocated a number by Service Quartermaster.

5. Branding of animals.

- (1) A police animal, except horses, shall be branded on the left rump with the letter D.O.P and the branding shall be effected as soon as possible after an animal is taken on strength.
- (2) A police dog shall be micro chipped.

6. Animal file.

- (1) A separate file, containing a Veterinary History Sheet Form P. 73, shall be maintained in respect of each individual animal and shall contain all correspondence relating to it.
- (2) A detailed record of all sickness, treatment given and by whom the animal was treated shall be maintained in the file.

7. Responsibility to ensure fitness of animals.

The Officer-in-Charge of a Formation where animals are stationed shall maintain the police animals and ensure that they are fit for duty at all times.

8. Stable routine.

The Officers-in-Charge of a Formation where police animals are stationed shall draw up detailed Standing Orders in respect of daily stable routine and these orders shall cover the following matters as laid down in the care and management of animals pamphlet–

- (a) scale of daily feeds;
- (b) general routine for water and feeding;
- (c) bedding;
- (d) cleanliness; and
- (e) fire order.

9. Exercises.

Police animals shall be exercised as described below–

- (a) all healthy animals which are not performing normal duty shall be exercised for a period of at least two hours daily and fed in accordance with the scales laid down in the pamphlet; and
- (b) if for any reason, it is not possible for an animal to be worked or fully exercised, the scale of feed, not the number of feeds, shall be reduced by one-third.

10. Veterinary pexamination.

- (1) A police animal shall be regularly examined for fitness and if there is any doubt, a veterinary officer shall be called and a report obtained on the animal's health and fitness for police duty.
- (2) A record of these examinations, signed by the veterinary officer, shall be maintained on the animal file.

11. Diet of sick animals.

The diet and exercise of sick animals shall be as prescribed by the Veterinary Officer.

12. Euthanisation

Euthanisation shall be conducted as follows–

- (a) where a police animal is certified by Government veterinary officer to be suffering from a condition which he or she considers to be incurable, the veterinary officer may authorize the immediate euthanisation of the animal;
- (b) where veterinary officer approves and the animal is euthanised, he or she shall forward to Service Headquarters a duly completed and signed copy of the certificate of euthanisation and the veterinary history sheet,

13. Shoeing.

- (1) All police horses and mules which are normally employed on police duty in urban areas shall be properly shod, and arrangements shall be made locally for shoeing.
- (2) A record shall be maintained on a special sheet in the animal file of the dates on which shoeing is carried out.
- (3) All ranks employed on the care of horses shall be proficient in the care of hooves.
- (4) A police donkey and camel shall not be shod.

14. Police animals not to be entered for races and gymkhanas.

A police animal shall not be enrolled for gymkhanas or race meetings without the prior permission of the Inspector-General.

15. Care of saddlery.

- (1) An Officer-in-Charge of Formations shall ensure that all saddlery and equipment is kept clean and in good repair.
- (2) Dubbin shall be applied to the flesh side of leather every month and this, with a daily application of saddle soap to all surfaces, shall preserve the leather in apliable condition.
- (3) Metal work shall be polished to prevent corrosion.
- (4) Saddlery shall be inspected on the rack by the Officer-inCharge of the formation once weekly and stripped saddler inspections shall be held once monthly.
- (5) On stripped saddlery inspection, all items shall be laid out in accordance with national police service police animal handling and management operational manual.
- (6) A police animal's saddlery shall be laid out for inspection as set in the pamphlet on the subject of the animal.
- (7) All repairs and replacements to saddlery shall be effected only on the authority of Service Quartermaster.
- (8) Metal work may be repaired by Armourer Circuit Teams as laid down in Service Armoirers Branch Order in the National Police Service Standing Orders.

17. Animal management.

All formations where animals are stationed are issued with the "Care and Management of Animals" pamphlet and the instructions contained therein shall be generally followed in conjunction with these Orders.

APPENDIX 51 (a)– SCALE OF SADDLERY FOR POLICE ANIMALS

1. Saddlery shall be issued for police animals in the following scale and held on charge at the formation at which the animal is stationed. When an animal's transferred from one formation to another, one set of appropriate saddlery shall be transferred likewise—

(a) Horses-Riding	General Duty	Anti stock theft Unit
Bits snaffle	-	1
Bits, universal reversible and Curb Chain	-	1
Bridles, complete (black for ceremonial)	-	1
Breastplate (black for ceremonial)	-	1
Bucket rifle	-	1

Repealed

Brushes water	2	2
Chain, head stable	1	-
Cloth, saddle, trimmed with Service Colours	1	-
Girth, leather, three folds	1	-
Girth, Web	-	1
Headcollar, stable, prs	1	1
Martingale, running/standing	1	-
Noseband	1	-
Numnah	1	- (small quantity for ASTU Mtd wing)
Numnah cover	1	-
Pouches saddle, prs	-	1
Reins	1	1
Reins bits	1	-
Rope, head dress (with black fittings for ceremonial)	1	-
Rope, headcollar	1	-
Rug, horse	1	-
Saddles, riding, officers pattern (small quantity for ASTU Mtd wing)	1	-
Saddle, Universal	-	1
Stirrup, iron prs (with lance ferrule cup for Cer)	1	1
Stirrup, leather prs	1	1

Repealed

Stirrup lamp	-	2
Straps baggage, sets	-	1
Spurs, prs	-	1
Staves mounted and scarbard	-	1
Surcingle, white (ceremonial)	1	1
Tanning Oil	-	- 1/2 litre per horse per year
Truncheon, long	1	-
Truncheon, case, black	1	-
Truncheon frog and retaining strap black	1	-
Wallet, with straps, pairs	1	-
(b) Mules (pack)		
Collar, head, stable	1	-
Breaching strap pack mule	1	-
Cruppers mule	1	-
Girth, leather	1	-
Panniers mule, prs	1	-
Saddles, mule pack (complete)	1	-
Straps joining breeching	1	-
Surcingles, webbing	1	-
(c) Camels Riding Pack		
Bags, saddle	1	-

Repealed

Bags, water	1	1
Brushes dandy	1	1
Buckets, rifle	1	-
Arm	1	-
Straps Steadying	1	-
Suspension	1	-
Buckets, water, canvas	1	1
Chains, head, stable	1	1
Chains, nose, riding	1	-
Collars, head, riding	1	-
Collar, head, stable	1	1
Combs, curry	1	1
Covers, saddle, cloth	1	-
Numnah pad	1	1
Ropes, hobble	1	1
Ropes, leading	1	1
Rugs, camel	1	1
Saddles, riding	1	-
Saddle, pack	-	1
Stirrups, stainless steel	2	-
Sponges	1	1

(d) Donkeys, Pack

Brushes, dandy	1
Buckets, water, canvas	1
Chains head, stable	1
Collars, head stable	1
Combs, curry	1
Ropes, hobble	1
Ropes, leading	1
Saddle, pack	1
Sponge	1

2. One complete veterinary chest and one pair of horse clippers shall be held on charge at each Police stable.
3. Brushes, saddle soap, dubbin, etc., will be requisitioned from the Quartermaster on the following basis –

	Per annum.
Brushes, body, per animal	2
Brushes, dandy, per animal	2
Soap, saddle, per riding saddle	4 tins
Blanco, white, per head dress rope	2 cakes
Oil, neats foot, per horse	2 1/2 litres
Tar, Stockholm, per animal	as required
Bucket, water, canvas per horse	1

Comb, mane, per Horse	1
Comb, curry, per donkey	1
Bag, nose, per horse	1
Pick hoof, per horse	1
Rubber, stable, per horse	1
Sponge per animal	1

APPENDIX 51 (b)— PLAN FOR SADDLE INSPECTION

ReferenceNo	JKUAT IMAGE
1 Panel	
2 Headrope	
3 Nose Bag	
4 Rifle Bucket	
5 Saddle	
6 Crupper	
7 Girth	
8 Reins	
9 Headstall	
10 Brow Band	
11 Check Pieces	
12 Bit	
13 Curb Chain	

14 Stirrup Irons

15 Throat Lash

16 Nose Band

17 Stirrup Leathers

CHAPTER 52— POLICE ASSOCIATIONS

1. Representation of police officers.

- (1) Police officers may, in accordance with section 83 of the National Police Service Act, 2011 form Associations for consultations in respect of any matter concerning the members of the association.
- (2) The Inspector-General, the Commission and the Cabinet Secretary shall recognize associations formed under sub-paragraph (1).

2. Functions of police associations.

- (1) A police Association formed in accordance with the National Police Service Act, 2011 shall be responsible for—
 - (a) bringing to the notice of the Inspector-General, the Commission and the Cabinet Secretary any of the matters affecting the general welfare and efficiency of the police;
 - (b) negotiating and reporting for action on behalf of the officers in respect of—
 - (i) any grievances;
 - (ii) the terms and conditions of employment; and
 - (iii) any other matters concerning the police officers.

3. Recognized associations to make rules.

- (1) Subject to section 84 of the National Police Service Act 2011, every recognized police association shall make rules providing for the administration of the Association and for carrying out the objects of the Association.
- (2) The rules made under sub-paragraph (1) shall contain provisions in respect of matters prescribed in the Seventh Schedule of the National Police Service Act, 2011.
- (3) A copy of the rules and any amendment thereto shall be issued to each officer who is a member of the Association on demand and on payment of the prescribed fee.
- (4) Subject to the Societies Act, the rules of an Association, including any amendments, shall be filed with the Registrar-General and shall unless a future date is specified therein, have effect from the date of filing.

4. Registration requirements.

- (1) For an Association to qualify for registration under the National Police Service Act 2011, the Association shall be required to—
 - (a) draw its membership from the Service; and
 - (b) comply with the requirements made in accordance with Seventh schedule of the National Police Service Act, 2011.

5. Association to be independent of trade union.

An Association established in accordance with this Part and any branch thereof shall-

- (a) operate and be administered in accordance with the provisions of the National Police Service Act, 2011; and
- (b) be entirely independent of any trade union within the meaning of the Labour Institutions Act, 2007.

6. Matters to be included in the rules of a police association as laid out in the Seventh schedule in the Act.

Matters to be included in the rules of a police Association as laid out in the Seventh schedule in the National Police Service Act 2011 are—

- (a) the name of the Association and the place of meeting for its business;
- (b) the objects for which the Association is to be established, the purposes for which its funds shall be applicable, and the conditions under which any member may become entitled to any benefit assured thereby, and the fines and forfeitures to be imposed on any member of the Association;
- (c) the manner of making, altering, amending and rescinding rules;
- (d) a provision for the appointment and removal of a general committee of management, of a trustee, treasurer and other officers;
- (e) a provision for the investment of the funds, and for an annual or periodical audit of accounts;
- (f) the inspecting of books and names of members of the Association and the general conduct of elections;
- (g) the manner of dissolution;
- (h) the protection of voting rights of members of the Association and the general conduct of elections;
- (i) the powers, duties and functions of the Executive Committee of the Association;
- (j) method to resolve disputes between the members of the Association and the members of the Executive Committee;and
- (k) the prohibition against admission to membership with respect to a police officer who is a member of an appropriate recognized association.

7. Channeling of matters to the Inspector-General, Commission and Cabinet Secretary.

- (1) Any matters affecting the general welfare and efficiency of the police shall be forwarded to the Inspector-General in writing by the Chairman or Secretary of the Association or any other duly elected office holder of the Association.
- (2) The memorandum shall be signed by at least three duly elected officials of the Association.

8. External Communications.

The Association shall not communicate with the media or any other persons or agency on specific matters touching on the National Police Service or on the matters referred on section 83 (b) of the National Police Service Act, 2011 unless with approval of the Inspector- General or Deputy Inspector- Generals, as the case may be.

9. Precedence of duty over association matters.

- (1) Policing duties shall take precedence over Association matters.
- (2) The executive members of the police Association shall be accredited time and opportunity to perform their mandates and responsibilities as they may be required from time to time as the Constitution of the Association may require.
- (3) The officials of the Association shall be allowed time to execute the efficient running of the Association to the benefit of the members and permission shall be granted as is convenient to progress the existence of the associations.

10. Register of members.

Every Association shall keep a register of its members in such a form as shall be specified in the Societies Act or as may be prescribed by the Inspector-General and shall cause to be entered therein the name and address of each member, the date of his admission to membership and the date in which he ceases to be a member and a copy submitted to the Inspector General.

Appendix 52 (a) - The Police Association**Election Procedure****1. Election of representative**

The election of officers of the Senior Branch and members of the Junior Branch to the County boards and the Joint Central Committee of the Association shall be effected in accordance with the procedure set out below.

2. Notice as to the holding of elections

- (1) The County or Formation commander shall publish his or her intention to hold elections in the Senior and Junior Branches of the Association elections in the County or Formation for representatives to serve on the County board.
- (2)) The County or Formation commander shall indicate that the elections will be held during stipulated hours on any seven consecutive days between the 14 March, inclusive of each year, and the notice shall–
 - (a) be promulgated to police stations level fourteen days prior to the commencing date of the elections;
 - (b) inform all officers of the Senior Branch and members of the Junior Branch of their right to select their representatives.

3. Appointment of returning officer

- (1) For the purposes of the elections each County or Formation commander shall detail one gazetted officer to carry out the Officer duties of a returning officer who shall be responsible to the County or Formation commander to ensure that the elections are properly carried out.

- (2) The County or Formation commander shall supply such reasonable assistance as the returning officer may request to efficiently carry out his duties in that capacity.

SENIOR BRANCH**4. Nomination of Candidates**

- (1) During the fourteen clear days referred to in paragraph (2)(a), the returning officer shall provide the County or Formation commander with the names and ranks of candidates from the Senior Branch in the County or Formation who are willing to accept nomination as candidates to serve on the County or Formation board, as follows:-

(a) Gazetted Officers3; and

(b) Inspectorate 6.

- (2) The County or Formation commander shall publish the list of candidates referred to in subparagraph (1) above before the expiration of the required fourteen days.
- (3) Subject to Service exigencies and at the request of the returning Officer, the County or Formation commander shall afford reasonable facilities to the Gazetted Officers and the Inspectorate stationed in his or her county or Formation to meet to discuss the nomination and election of candidates.

5. Electoral Procedure.

- (1) The returning officer shall ensure that a suitable ballot box is provided at each Sub-County or division or formation headquarters during the hours set aside for the elections, subject to the provisions of subparagraph (8).
- (2) The returning officer shall ensure that sufficient blank voting forms as specified in Form No.1 in the Schedule to this Appendix are supplied to each Sub-County, division or formation headquarters for use during the election.
- (3) The returning officer, with the approval of the County or Formation commander, shall ensure that a Presiding Officer not below the rank of Chief Inspector, is appointed at each Sub-County, Divisional or Formation Headquarters for the purpose of the elections.
- (4) The Presiding Officer shall be responsible for the safe custody of the ballot box which shall be under his or her charge until its delivery to the returning officer in accordance with subparagraph (7) and he or she shall also be responsible for the proper recording of votes during the elections.
- (5) Each member of the Senior Branch of the County or Formation entering the office or other place set aside for the purpose of the elections shall be provided with one blank voting form on which shall be entered the names of the candidates, Gazetted Officers and Inspectorate, for whom they have respectively to vote.
- (6) The presiding officer shall strike out from a list of the officers of the Senior Branch in the County or Formation each officer who records his or her vote at the time of voting.
- (7) At the termination of the period set aside for the voting, the presiding officer shall seal the ballot box and deliver it to the returning officer at an assembly point deemed convenient to the returning officer.
- (8) The County or Formation Commander, bearing in mind the, geographical layout of the County or Formation and the Sub-County or Divisional Headquarters in the County or Formation and the location of the Sub-County Headquarters in the County or Formation, may make such arrangements, as he or she deems appropriate for the location of the ballot boxes during the elections.

6. Counting of votes.

- (1) Upon the assembly of the ballot boxes at the pre-arranged central assembly point, the Returning Officer shall then count votes recorded against the names of the officers as entered in voting papers.

- (2) The Gazetted Officer who has the highest number of votes recorded against his or her name and the first two inspectors with the highest number of votes recorded against their names shall be the representatives of the Senior Branch on the County or Formation Board of the County or Formation.

- (3) At the conclusion of the count, the Returning Officer shall complete Part 1 of Form 2.

7. Holding elections

- (1) During the seven, consecutive days set aside for the purpose of the elections referred to in paragraph (2), and subject to the approval of the County or Formation Commander, the Returning Officer shall make suitable arrangements that members of the Junior Branch of the Association serving in the County or Formation shall elect their representatives to the County or Formation Board of the County or Formation.
- (2) The officer for the time being in-charge of a police station shall ensure that one member of the Junior Branch serving in the station shall be elected as a candidate to be sent forward to Divisional or Sub-County level for election to the County or Formation Board of the County or Formation. Elections at police station level shall be by show of hands.
- (3) The officer for the time being in-charge of a police station having carried out the arrangements referred to in paragraph (2), and in accordance with arrangements made for latter in writing the name and rank of the candidate to the presiding officer at Sub-County level.
- (4) The presiding officer shall submit in writing the names and ranks of all candidates elected in the Sub-County area in accordance with subparagraph (2), to the Returning Officer.
- (5) Subject to existing Service exigencies, the Returning Officer shall make adequate arrangements to permit the assembly of all station candidates at the most convenient central point at Sub-County level.
- (6) After assembly in accordance with subparagraph (5), the station candidates shall elect two of their members as candidates for election to the County or Formation Board of the County or Formation.
- (7) The Returning Officer shall maintain a record of the names and ranks of the candidates so elected and Elections shall be by a show of hands.
- (8) The two candidates from each Sub-County elected in accordance with subparagraph (6), shall meet at County level and elect from their number two to serve as representatives of the Junior Branch of the Association on the County or Formation Board of the County or Formation.
- (9) The Returning Officer shall complete part (ii) of Form 2 at the conclusion of the arrangement in paragraph (8).
- (10) For the purpose of this appendix the term "Police Station" and "Divisional" "Sub-County" shall include any other separate police units in a County or Formation including County and Sub-County Headquarters, where applicable.
- (11) The County or Formation Commander, bearing in mind the geographical layout of the County or Formation and the location of the police stations within the County or Formation, may, in carrying out the electoral procedure in sub-paragraph (1), make such arrangements as he or she considers expedient and necessary to carry out that procedure:

Provided that any such arrangement made by him or her shall not depart, in principle, from the arrangements outlined in the subparagraph referred to.

8. Formation of joint central committee

- (1) Upon completion of the action required by paragraph 4 and paragraph 5 of this Appendix, the Returning Officer shall submit Form 2 to the County or Formation Commander.
- (2) Upon receipt of Form 2, the County or Formation Commander shall, as soon as possible convene a meeting of the County or Formation Board for the purpose of electing its representative to serve on the joint Central Committee of the Association.

- (3) The County or Formation Board shall consist of-
 - (a) the Gazetted Officer elected to the County or Formation board who shall serve on the Joint Central Committee;
 - (b) one of the two members of the Inspectorate elected to the County or Formation Board shall serve on the Joint Central Committee;
 - (c) one of the two members of the Junior Branch elected to the County or Formation Board shall serve on the Joint Central Committee.
- (4) Upon completion of the selection in accordance with paragraph (3), the County or Formation Commander shall complete Form 3 and forward it to the Service Headquarters
- (5) At the conclusion of the elections, the County or Formation Commander shall publish the results in the Weekly Orders of the County or Formation.
- (6) After the completion of the elections referred to in paragraph 5 and subject to the Commissioner's approval, the inaugural meeting of the Joint Central Committee shall be held during the month of April.
- (7) The Committee shall elect from its members a chairman, who shall be a Gazetted Officer, a vice chairman and a secretary however, if the committee considers that the business of the Association can be dealt with more efficiently and expeditiously by a person who is not a member of the Committee; the chairman may apply to the Inspector General for permission to appoint a police officer not below the rank of inspector as secretary.
- (8) Where an elected representative of the Senior Branch is by reason of leave, sickness or any other cause, unable to carry out the business of the County or Formation Board, the County or Formation Commander shall appoint a substitute to serve for such period as is necessary or until the return of the absent representative, or until holding of the next elections, whichever is earlier.
- (9) The substitute shall be the candidate who obtained the next highest number of votes in the election.
- (10) The County or Formation Commander shall take action in the case of an elected representative of the Junior Branch expecting that in such case he or she shall select a member of the Junior Branch from the remaining candidates.
- (11) In the event of a member of the County or Formation Board of a County or Formation being promoted to a rank higher than that of the rank he or she represent, or he or she is transferred from one County or Formation to another or leaves the Service, he or she shall automatically cease to be a member of the County or Formation Board to which he or she had been elected.
- (12) By-Elections if it becomes necessary to hold a by-election in connection with representation on a County or Formation Board of either the Senior or Junior Branch of the Association in a County, then such may be held.

SCHEDULE

FORM 1

THE POLICE ASSOCIATION ELECTION 20.....

ELECTION OF THE COUNTY/FORMATION BOARD OF COUNTY/FORMATION.

Part i-Election of Gazetted Officer

Please enter an X against the names of one gazetted officer from the three gazetted officers whose names appear hereunder, whom you select to represent you on the County or Formation Board.

NUMBER	NOMINATIONS	ENTER X BELOW
1		
2		
3		

Part ii- Election of Inspectorate (Members)

Please enter an X against the names of any two members of the Inspectorate whose names appear hereunder, whom you select to represent you on the County or Formation Board.

NUMBER	NOMINATIONS	ENTER X BELOW
1		
2		
3		
4		
5		
6		

NOTES

- (a) . It is not necessary to sign the form. When completed, the form should be folded and placed in the ballot box provided.
- (b) . For convenience of voting, Part (i) and (ii) above may be used as separate forms.
- (c) . Gazetted Officers cannot vote for members of Inspectorate nor a member of Inspectorate vote for Gazetted Officers.

FORM 2

THE POLICE ASSOCIATION ELECTION 20

TO: County or Formation Commander,

..... County or Formation

Date 20

Repealed

- (i) I hereby certify the election to the County/Formation Board of this County/Formation for the year ending 1st March, in the Senior and Junior Branches of the Association have been held in accordance with the Police Regulations and Appendix 52(a) of this Chapter.

Part i-Senior Branch

- (ii) I further certify that I have scrutinized and counted the votes recorded against the names of the respective candidates in the Senior Branch and they are as follows:

Gazetted Officers

Names and Rank of Candidate	No. of votes
1.	
2.	
3.	

Inspectorate:

Names and Rank of Candidate	No. of votes
1.	
2.	
3.	
4.	
5.	
6.	

Returning Officer.

Part II - Junior Branch

- iii). I certify that the members of the Junior Branch of the Association whose names are set out hereunder were elected to the County/Formation Board of the County/Formation:

1.

2.

Returning Officer.

REMARKS

..... Submitted in accordance with paragraph

6(a) Appendix 52(a) of this Chapter.

..... Returning Officer.

REMARKS

.....

FORM3

THE POLICE ASSOCIATION ELECTION

TO: The Inspector General,

National Police Service Headquarters,

P.O. Box 30083,

NAIROBI.

In accordance with Appendix 52 (a) of this Service Standing Orders, elections were held in..... County/ Formation in the Senior and Junior Branches of the Association for the year ending 1st March, the result of the elections were as follows –

ELECTED TO THETO THE COUNTY or FORMATION BOARD

Senior Branch

Gazetted Officer:

(1)

Inspectorate:

(1)

(2)

Junior Branch

(1)

(2)

TO SERVE ON THE JOINT CENTRAL COMMITTEE

Senior Branch

Gazetted Officer:

(1)

(2) Inspectorate:

(3) (1)

Junior Branch REMARKSCounty or Formation Commander.

CROSSHEADING

Chapter 53

POLICE DUTIES DURING ELECTIONS

1. Role of security officers.

- (1) A security officer assigned to the Independent Elections and Boundaries Commission shall operate under the direction of the Independent Electoral and Boundaries Commission.
- (2) The duty of a security officer assigned to the Independent Electoral and Boundaries Commission shall include#
 - (a) providing security at the venue where the election of the candidates is held;
 - (b) safeguarding the polling process at the polling stations;
 - (c) safeguarding the vote counting process ;
 - (d) providing security during transportation of election materials and equipment; and
 - (e) providing security for election officials, election materials and equipment.

2. Role of police commanders.

- (1) Police commanders in the county shall liaise with the Returning Officer in a constituency to ensure there is adequate police coverage at every polling station.
- (2) The respective County Commanders and other Police Commanders in the County shall cooperate with each other and engage in joint security operations with other government departments or security organs in order to ensure the safety and security of the public.
- (3) The Police Commanders shall agree on who amongst them shall coordinate joint security operations preferably on rotational basis, and this shall be captured in the operation.

3. Role of the presiding officers.

- (1) A Presiding Officer is the overall supervisor of a polling station and their duties and responsibilities shall include #
 - (a) laying out and demarcating the polling or counting stations;
 - (b) assign duties to the clerks;
 - (c) opening of polling;
 - (d) presiding over elections at their assigned polling stations;
 - (e) ensuring law and order of elections in the polling station;
 - (f) ensuring security and safety of election materials; and welfare of election officials working under their authority;

- (g) regulating the flow of voters and other authorized persons in the polling or counting stations;
- (h) close of polling;
- (i) layout of polling station for counting;
- (j) tallying, counting and announcement of results;
- (k) transmission and posting of results;
- (l) retrieve, verify and secure electoral materials and equipment and submit;
- (m) polling stations results to the Returning Officer.

4. Deputy presiding officers.

The deputy presiding officer shall deputize the Presiding Officer.

5. Polling or counting clerks.

- (1) For purposes of the voting and counting procedures, the clerks shall be located at different positions and perform different duties that shall include#
 - (a) controlling queues and directing voters to respective polling rooms;
 - (b) identifying voters before allowing them to vote;
 - (c) confirming that voters have not voted at that polling station or elsewhere;
 - (d) issue ballot papers to voters who have duly identified themselves and are in the voters' register;
 - (e) assist the presiding officers with the counting of votes after voting is completed;
 - (f) assist the presiding officers in preparing reports;
 - (g) assisting in laying out the polling and counting room; and
 - (h) performing any other duty as may be assigned by the presiding officer.

6. Admission to the polling station.

- (1) The Presiding Officer shall regulate the flow and number of voters to be admitted into the polling station and once the voter has cast his vote, the voter shall be requested to leave the polling station immediately.
- (2) A person shall not enter the polling station except#
 - (a) the candidates;
 - (b) the party or candidate's agents limited to two per candidate or party;
 - (c) the election officers on duty;
 - (d) a person authorized to assist a voter;
 - (e) the Commissioners and other Commission officials;
 - (f) accredited observers; and
 - (g) the media.

7. Order of events before polling.

- (1) A day before the polling day, the Presiding Officer shall inspect the polling station to confirm if it is suitable and convenient for voting.
- (2) On the polling day, the Presiding Officer shall prepare the polling place for polling and all unnecessary materials from the polling place to ensure #
 - (a) availability and adequacy of polling materials, equipment and transport;.
 - (b) security of the polling station;.
 - (c) demarcation of the polling station;
 - (d) display posters and banners;
 - (e) layout of the polling room;
 - (f) polling booths are mounted and each has necessary materials to mark ballot papers;
 - (g) he or she assign duties and distributes materials to respective polling staff;
 - (h) he or she verifies accreditation of agents and observers;
 - (i) he or she holds consultations with candidates' agents, observers and other stakeholders;
 - (j) he or she displays the ballot box to demonstrate its emptiness;
 - (k) he or she seals the ballot box and records the serial numbers in the polling station diary;
 - (l) he or she declares the polling station opened at 6.00am;
 - (m) he or she counts the number of ballot papers issued to their custody and enter the figures in the respective polling station diary and ask agents present to witness this by appending their signature in the respective form; and
 - (n) he or she send a message through the short message services on the time of opening of polling station.

8. Polling time.

- (1) All voting shall commence at 6 o'clock in the morning and end at 5 o'clock in the afternoon on the polling day and voters who are in the queue by 5.00pm shall be allowed to vote.
- (2) In the event of delayed opening for valid reasons, or disruption of polling process the presiding officer shall extend polling to recover the lost time.

9. Election offences.

Election offences may relate to registration of voters, register of voters, voting and election staff.

10. Offences relating to voting.

- (1) A person commits an offence if the person #
 - (a) forges, counterfeits, defaces or destroys any ballot paper or the official perforation, stamp or mark on any ballot paper;
 - (b) supplies without authority any ballot paper to any person;
 - (c) sells or offers for sale any ballot paper to any person, purchase or offer to purchase any ballot paper from any person;

- (d) has a ballot paper which has been marked with any official perforation, stamp or mark while not being entitled to be in possession of any such ballot paper;
- (e) places into any ballot box anything other than the ballot paper;
- (f) takes out of a polling station any ballot paper or be found in possession of any ballot paper outside a polling station;
- (g) removes election material from a polling station before, during or after an election without authority to do so;
- (h) destroys, takes, opens, disposes or interferes with any election material in use or intended to be used for the purposes of an election without authority;
- (i) prints any ballot paper or what is capable of being used as a ballot paper at an election without authority; or
- (j) manufactures, constructs, imports, possesses, supplies or uses, or causes manufacture, construction, importation, supply or use, any appliance, device or mechanism by which a ballot paper may be extracted, affected or manipulated after having been deposited in a ballot box during the polling at any election for the purposes of an election.

11. Offences by members and staff of the commission.

- (1) A member or staff of the Commission commits an offence if he or she#
 - (a) makes any mark on any ballot paper issued to any person other than to himself without the authority of the presiding officer;
 - (b) votes at any election when they are not entitled to vote;
 - (c) votes more than once in any election;
 - (d) interferes with a voter in the casting of his vote in secret;
 - (e) pretends to be unable to read or write so as to be assisted in voting; or
 - (f) pretends to be visually impaired or suffering from any other disability so as to be assisted in voting;
 - (g) makes, in any record, return or other document which they are required to keep or make under such written law, an entry which they know or have reasonable cause to believe to be false, or do not believe to be true;
 - (h) permits any person whom they know or have reasonable cause to believe to be able to read or write to vote in the manner provided for persons unable to read or write;
 - (i) permits any person whom they know or have reasonable cause to believe not to be visually impaired or a person with disability to vote in the manner provided for persons who are visually impaired or persons with disability, as the case may be;
 - (j) willfully prevents any person from voting at the polling station at which they know or have reasonable cause to believe such person is entitled to vote;
 - (k) willfully rejects or refuses to count any ballot paper which they know or have reasonable cause to believe is validly cast for any candidate in accordance with the provisions of such written law;
 - (l) willfully counts any ballot paper as being cast for any candidate which they know or have reasonable cause to believe was not validly cast for that candidate;
 - (m) interferes with a voter in the casting of his vote in secret;
 - (n) where required to declare the result of an election, fails to declare the results of an election;

- (o) purports to make a formal declaration or formal announcement of an election result except in the case of a member, officer or person authorized to do so;
- (p) does or omits to do anything in breach of official duty without reasonable cause;
- (q) colludes with any political party or candidate for purposes of giving an undue advantage to the political party or candidate;
- (r) willfully contravene the law to give undue advantage to a candidate or a political party on partisan, ethnic, religious, gender or any other unlawful considerations; or
- (s) fails to prevent or report to the Commission and any other relevant authority, the commission of an electoral malpractice or offence.

12. Returning Officer.

A returning officer is appointed by the supervisor of election who is also empowered to appoint deputy returning officer is subject to the general directions of the returning officer, to whom he or she deputizes.

13. Presiding Officers and Deputy Presiding Officers.

- (1) The Presiding Officer and deputy presiding officer are appointed for each polling station by the returning Officer.
- (2) The Presiding Officer and deputy presiding officer is responsible for maintaining order at the polling station.
- (3) The Presiding Officer may direct that any person who misconduct himself at a polling station, or fails to obey his lawful instructions may be removed, or dealt with as a person taken into custody for an offence by a police officer without a warrant.
- (4) A person removed from the polling station under the order of the presiding officer shall not be prevented from casting his vote peaceably there at, provided he is entitled to vote at that station.
- (5) The Presiding Officer is in charge of the polling station and the police shall assist and operate under his direction.
- (6) Where there is a complaint on alleged infringement of the Law, the police officer shall record the complaint in the police note book".

14. Agent.

An agent acting on behalf of a candidate shall present to the presiding officer a letter of appointment signed by the candidate before the agent is allowed to enter the polling station.

15. Polling Stations.

- (1) The Commanders and the Returning Officer shall maintain a close liaison to ensure proper and adequate police coverage at every polling station by#
 - (a) preparing a joint election operation order; and
 - (b) deciding the number of polling station and their location within each constituency, having strict regards to the availability of security personnel.
- (2) A voter at the polling station shall be afforded every facility to cast his vote peaceably and in an orderly manner.

16. Counting of votes.

- (1) The returning officer, in consultation with the both respective County and Sub-County Police Commanders, shall make appropriate arrangements regarding the venue for counting of votes, announcement of results, maintenance of law and order and protection of officers engaged in the counting.
- (2) The arrangements referred to in paragraph (1), may be held and finalized at a meeting of the County or Sub-County Security Committee.

17. Counting agents.

- (1) A candidate may appoint a counting agent to act as an observer at the counting of votes.
- (2) The name and address of the counting agent shall be submitted to the returning officer at least thirty-six hours before the close of poll in that election.

18. Persons present in polling station.

The Presiding Officer shall regulate the number of voter in the polling station at the same time by excluding all other persons except—

- (a) the candidates and their duly appointed agents;
- (b) election officers on duty;
- (c) police officer on duty;
- (d) persons necessarily assisting blind or incapacitated voters;
- (e) members of Independent Election and Boundaries Commission;
- (f) international election monitors; and
- (g) press representatives.

19. Blind or incapacitated voters.

- (1) A blind or incapacitated voter may be accompanied by a companion who may assist him to vote.
- (2) The person assisting a blind or incapacitated voter shall not communicate at any time or to any person any information as to the candidate for whom that voter intends to vote or has voted for.
- (3) At the request or with the assent of the blind, incapacitated voter, the presiding officer may cast a vote on behalf of the vote provided that, if the voter so desires, the presiding officer shall allow one agent of each candidate to witness the marking of the vote.

20. Secrecy at Poll.

A person at a polling station shall—

- (a) maintain and aid in maintaining the secrecy of voting in the station; and
- (b) not communicate, except for some purpose authorized by law, before the poll is closed to any person any information as to—
 - (i) the name of elector who has not or has applied for a ballot paper or voted at a polling station;
 - (ii) the number in the register of voter who has or has not applied for a ballot paper or voted at a polling station; or
 - (iii) the official mark.

21. Interference with vote.

A person shall not#

- (a) interfere with a vote when recording his vote;
- (b) attempt to obtain in a polling station information as to the candidate for whom a voter in such station is about to vote or has voted;
- (c) communicate at any time to any person any information obtained in a polling station as to the candidate for whom a voter in such station has voted or is about to vote, or as to the number of the ballot paper given to a voter at such station; or
- (d) communicate or attempt to communicate with any voter after he or she has received their ballot paper and before he or she has placed the same in the ballot box, except the presiding officer or another person, authorized by him or her, who may be acting for purpose, permitted by any written law relating to election.

22. Canvassing etc. outside polling station.

When a voter enters the polling station, the police officer has a duty to ensure that #

- (a) the voter is not obstructed when entering or leaving the polling station;
- (b) the voters are not interfered with or questioned inside the polling station; and
- (c) there is order.

23. Question by presiding officer.

A presiding officer may only question a voter inside a polling station if #

- (a) the voter is the person registered on the register of voters; and
- (b) the voter has already voted at the election.

24. Political Propaganda.

It is an offence under the Elections Offences Act, 2009 for a person-

- (a) to furnish, supply or use any musical instrument or loudspeaker for the purpose of political propaganda on polling day;
- (b) to print, publish, distribute or post any advertisement, hand bill, placard, or poster referring to any election which does not bear upon its face the names and addresses of the printers or publishers; or
- (c) to let, lend or employ any vehicle vessel or animal of transport of any kind whatsoever knowing that it is intended to be used for the conveyance of electors or voters to and from the poll by persons other than the voters themselves, at their cost, is not permitted.

25. Safe Custody of Ballot Boxes.

After close of poll, a Returning officer shall seek the protection of ballot boxes by the police as the Returning Officer waits for counting of votes#

- (a) the most senior police officer not below the rank of an Inspector at the police station or post shall examine the ballot boxes in the presence of the Returning Officer and the candidates or their agents to ensure they are properly sealed;

- (b) the sealed ballot boxes shall be stored in the police post or station's strong room, armory, or an empty cell secured with two padlocks and the keys for each lock kept by the Returning Officer and the respective Commander;
- (c) the door of the room where the ballot boxes are placed may be sealed by the Returning Officer and the candidate or his agent;
- (d) an entry shall be made in the Occurrence Book stating#
 - (i) the time, number and description of the ballot boxes; and
 - (ii) the names of the returning officer and candidates or agents who witnessed the safeguarding of the boxes;
- (e) the room used for the safe custody of the ballot box shall be checked every four hours by a duty officer of or above the rank of corporal, to ensure that there is no interference, and entry to that effect made in the Occurrence Book;
- (f) the ballot boxes shall be handed over—
 - (i) to the Returning officer or a duly appointed representative with the key to the second padlock;
 - (ii) in the presence of the candidates or their agents after examining the seals and any objection or comments by the candidates or their agents shall be noted; and
- (g) an occurrence book entry to support the hand over shall be made and the returning officer, collecting ballot boxes, asked to acknowledge receipt in the remarks column;
- (h) the candidate or his or her agent who is present at the time of handing over shall be asked if he or she has any complaint and his or her reply entered in the occurrence book and he or she shall be investigated impartially and with utmost dispatch.

26. Police Escort.

- (1) A Presiding Officer may seek adequate police escort when transporting the ballot boxes from the polling station to the place where the vote counting shall take place.
- (2) The Presiding Officer shall remain accountable for the security and safety of the ballot boxes while in transit and up to the time they are handed over to the returning officer.

Chapter 54 NATIONAL POLICE RESERVE

1. Legislative Framework.

The National Police Service Act, 2011 forms the policy and legislative basis for the constitution of the National Police Reserve as an integral part of National Police Service and the establishment of Reserve that may be deployed in Kenya to assist the Kenya Police Service and Administration Police Service in their respective mandates.

2. Recruitment and composition.

- (1) Police reserve officers shall be recruited by the Commission upon recommendation and consultation with the Inspector

General and deployed in such areas as the Inspector General may deem necessary in consultation with National Security Council.

- (2) The Reserve shall consist of persons resident in Kenya (other than serving members of the Kenya disciplined services) as, having attained the age of eighteen years, volunteer for service and are enrolled as Reserve Police Officers.
- (3) The Commission shall –
 - (a) determine the maximum number of Reserve Police Officers; and
 - (b) keep, maintain and update database of all the officers of the Reserve Police Officers.

3. Deployment.

- (1) The Reserve shall be deployed in Counties, SubCounties, Stations, and Posts and Outposts.
- (2) Any officer for the time being in charge of the respective Service in a County may, in writing, require any Reserve Police Officer resident in the County to perform duties of a police officer.
- (3) The Inspector-General may, in consultation with the Cabinet Secretary call out all or any Reserve Police Officers during state of war or state of emergency under Article 58 of the Constitution of Kenya, 2010, and when so called out they shall remain on duty until released by the Inspector-General.
- (4) The Inspector-General shall require any Reserve Police Officer called out for service as above to undergo such training as the Inspector-General may determine.

4. Core Functions of the Reserve.

- (1) The Reserve may be deployed in Kenya to assist the Kenya Police Service or the Administration Police Service in their respective mandates including—
 - (a) maintenance of law and order;
 - (b) preservation of peace;
 - (c) protection of life and property;
 - (d) prevention and detection of crime;
 - (e) apprehension of offenders; and
 - (f) enforcement of laws and regulations with which the service is charged.

5. Training.

- (1) The Inspector General shall in consultation with the Commission undertake the training of police reserve officers to ensure they are conversant with the relevant provisions of the Constitution, National Police Service Act, 2011 and any other relevant law.
- (2) The Reserve Police Officers shall undergo training which includes—
 - (a) general police duties;
 - (b) weapon training, practice shoots and firing of annual range course as laid down;
 - (c) peaceful settlement of conflicts;
 - (d) crowd behavior;
 - (e) methods of persuasion, negotiation and mediation; and
 - (f) care of specific victims and any other relevant area.
- (3) The County or Formation Commander, in consultation with the respective Deputy Inspector General and Inspector General, may exempt any Reserve Police Officer from carrying out training.

- (4) The hours of training performed by officers shall count towards their stipulated duty quota.

6. Discipline.

- (1) A serving Reserve Police Officer shall be deemed to be a Police Officer in the National Police Service when deployed to assist the Kenya Police Service and the Administration Police Service and shall be subject to the same disciplinary code.
- (2) Reserve police officers shall not take part in political meetings in uniform, or in their capacity as officers of the Reserve.
- (3) Offences against discipline shall be inquired into in the same manner as provided in the National Police Service Act, 2011 and this Order.

7. Uniforms.

- (1) The approved scales of uniforms and equipment on issue to personnel of the Reserve shall be laid down in Dress Code Regulations Order in the National Police Service Standing Orders.
- (2) A Reserve Police Officer shall not wear uniform when not on police duties unless specifically authorized by the Inspector-General.

8. Allowances.

- (1) A Reserve Police Officer shall serve voluntarily and shall not be entitled to claim any remuneration for his services save for such allowances as may be prescribed.
- (2) When mobilized for service, a Reserve Police Officer shall receive such pay and allowances as may be prescribed for a police officer of corresponding rank and seniority in such rank.

9. Leave.

- (1) A Reserve Police Officer, irrespective of their ranks, is entitled to leave, subject to appropriate application for leave in accordance with the provisions of the National Police Service.
- (2) A Reserve Police Officer proceeding on leave shall inform their respective Sub-County Commanders prior to departure.

10. Changes of Residence or Transfers.

- (1) A Reserve Police Officer who changes their place of residence or work shall report such change to their respective SubCounty Commander before departure and shall give full particulars of their new address.
- (2) Such officer shall be transferred to and may be taken on strength of the Sub-County to which they have moved, provided they wish to continue serving in the Reserve.

11. Reports and Returns.

Reports and returns of the Reserve shall be compiled in accordance with Reports and Returns Order in these Orders.

12. Enlistments.

- (1) The rules that bind a reserve police officer upon enlistment include—
 - (a) a Reserve Police Officer shall, on enlistment, make the declaration contained in the Fourth schedule to the National Police Service Act, 2011;

- (b) a person shall not be permitted to perform police duties unless his or her enlistment has been finalized, and until—
 - (i) his medical examination has been completed;
 - (ii) it has been ascertained that he or she is eligible for enlistment;
 - (iii) he or she has subject to any exemption granted undergone prescribed training course and passed all relevant examination; and
 - (iv) he has been issued with his or her certificate of appointment.
- (2) Enlistment may be carried out within Counties and SubCounties in accordance with the establishment laid down from time to time by the Commission.

13. Documentation.

The documentation processes shall include#

- (a) personal file in duplicate or triplicate as the case may be, shall be opened for each Reserve Police Officer on enlistment and kept at the Sub-County Headquarters, County or Formation Headquarters and respective Service Headquarters and shall each contain Forms N.P.R 1 and 2;
- (b) the declaration contained in Form N.P.R. 11 shall be made before a Gazetted Officer of the Service or of the Reserve, who shall also sign the Form in the appropriate place, further, Form N.P.R. 2 shall also be signed;
- (c) all particulars of a Reserve Police Officer's service shall be recorded on page 3 of Form N.P.R.1;
- (d) all Reserve Police Officers shall be issued with a certificate of appointment as provided in the section 111(1) of National Police Act, 2011.

14. Promotion.

All promotions of the National Police Reserve shall be made by the National Police Service Commission.

15. Accounts.

- (1) All accounts, except travelling allowances, shall be submitted through the Officer-In-Charge of the Sub-County to County or Formation Headquarters for onward transmission to respective Service Headquarters for payment.
- (2) No expenditure, other than travelling allowance, shall be incurred without prior authority from Service Headquarters.

16. Arms and ammunition.

- (1) Guidelines on the use of firearms and ammunition by the reserve police officers shall provide—
 - (a) reserve police officers, when necessary, be armed with the same type of arms and ammunition as are issued to and used by the Service;
 - (b) arms and ammunition for use by the Reserve shall be issued from Sub-County establishment although they may be held at police station level;
 - (c) Officers-in-Charge of Sub-County or Counties shall be responsible for the administration, maintenance and safe custody of such arms and ammunition;
 - (d) issuance of arms to Reserve Police Officers shall be at the discretion of the Sub-County Commander subject to the approval of the County Commander, where practicable;

- (e) all Reserve Police Officers to whom arms are issued shall be personally responsible for their safe custody and serviceability.

17. Communication with the Public or Press.

- (1) The Reserve Police Officers shall, in their relations with the Press, be guided by the provisions of Public Information Order which are applicable to them when they are on duty.
- (2) An officer shall not make any communication or write any letter to the Press in his capacity as a Reserve Officer except as laid down in these Orders.
- (3) A Reserve Police Officer shall not divulge to any person any information received by him or her during the course of his or her service as a Reserve police officer.

18. Release and Discharge.

The Deputy Inspector-General or a County or Formation Commander having charge of a County or Formation may, for good cause release or discharge from the Reserve any Reserve Police Officer –

- (a) at his or her own request;
- (b) if their conduct is unsatisfactory ;
- (c) not likely to be, or having ceased to be, an efficient Reserve Police Officer;
- (d) for disobedience of orders;
- (e) whose services are no longer required;
- (f) having made a false declaration on enlistment;
- (g) having been irregularly enlisted;
- (h) medically unfit; or
- (i) having been convicted of a criminal offence.

19. Change of Command.

On change of command of the Reserve, the officer handing over shall prepare for his successor, comprehensive handing over notes relating to the command in accordance with Change of Command Order in the Service Standing Orders.

20. Duties associated with reserve rank.

- (1) Members holding a rank in the Police Reserve shall do so in accordance with direction provided to regular National Police Service officers of a similar rank.
- (2) Reserve rank shall be displayed and exercised for purposes of administering Reserve business.
- (3) If a reserve officer is unable to fulfill his or her duties and responsibilities because of time constraints, he or she may be subject to non-disciplinary reduction in rank.

21. On-duty assignments.

The police reserve shall, when on regular duty with the respective police officers, be under the supervision of the police chain of command at all times and the reserve officer's name shall appear on all reports.

22. Minimum qualifications and requirements For Police Reserve membership.

The minimum qualifications and requirements for police reserve membership shall be determined by the Commission from time to time.

23. Equipment and Kitting.

A reserve officer shall#

- (a) be issued uniforms and all designated attire and safety equipment; and
- (b) return all property issued to them upon termination or resignation.

Chapter 55

POLICE DOGS

1. General Purpose.

- (1) A Police Service Dog shall be continuously trained and assessed.
- (2) When deploying a Police Service Dog, the commandant shall consider #
 - (a) the nature of the crime;
 - (b) the operation or circumstances present;
 - (c) the immediate threat posed to the safety of officers and others; and
 - (d) whether a suspect is actively resisting arrest or attempting to evade arrest at the time.
- (3) The functions of a Police Service Dog shall include—
 - (a) track and search for suspects;
 - (b) search and rescue of missing or vulnerable persons;
 - (c) search for unauthorized or illegal materials;
 - (d) search for property or other evidential material;
 - (e) control or contain spontaneous and sporadic disorder;
 - (f) protect vulnerable areas, buildings, police stations, police posts and outpost;
 - (g) use of force - chase and detain, chase and stand off, chase and recall, weapon attack or attack on handler;
 - (h) pursue and detain a fleeing suspect and assist in their arrest;
 - (i) detain an armed or violent offender or suspect;
 - (j) provide support and security for the operational officers; and
 - (k) attending shows, presentations and competitions.

2. Search and Apprehensions.

- (1) A Police Service Dog shall not lead the search for a suspect unless the handler believes it is reasonably and necessary.
- (2) A Police Service Dog Handler shall not allow their dog to engage a suspect that has voluntarily submitted to arrest or is in physical custody.

- (3) Verbal warnings shall be issued prior to the deployment of the National Police Service dog, unless circumstances exist that makes such warnings impractical or unsafe.
- (4) Searches of populated areas shall be done on lead until the dog locates a suspect, the dog may then be deployed off lead in accordance with this order.

3. Injury caused by a National Police Service Dog.

- (1) Subject to section 61(2) of the National Police Service Act, where a person is injured by a Police Dog, the police officer shall #
 - (a) examine the injured person for injury and ensure that they receive prompt and appropriate medical attention;
 - (b) record the incident in the Occurrence Book of the Police Station;
 - (c) submit a report of the incident to the respective headquarters;
 - (d) obtain photographs of the injury; and
 - (e) obtain witness statements.
- (2) The National Police Service Dog Handler shall document the use of force in a Case Report and through the use of Force report.
- (3) The National Police Service Dog activity shall be tracked in a computerized database and entry of data shall be the responsibility of the Dog Handler.

4. National Police Service Dog Carrier.

- (1) A team shall be assigned a Police Dog carrier.
- (2) A Police Dog carrier shall not be used for private purposes.
- (3) A Police Service Dog Officer shall be allowed to keep his or her squad at their residence , and to use them as follows—
 - (a) driving to and from work;
 - (b) during the Police Service Dog Team's normal hours for duty;
 - (c) transportation for Police Service Dog to a veterinarian;
 - (d) transportation of Police Service Dog related equipment;
 - (e) transportation to Police Service Dog related training;
 - (f) if the Police Service Dog Handler is required to be away from their vehicle and the dog is in the vehicle, the vehicle shall be locked and appropriate ventilation shall be provided;
 - (g) Police Service Dog Handlers shall carry an exposed bite sleeve available in the trunk of their vehicle at all times; and
 - (h) when operating a dog carrier, duty handlers shall be armed with their duty weapon, shall have handcuffs and shall possess a Certificate of Appointment, including a badge.

5. Police Service Dog Training.

- (1) A newly posted Police Dog Handler shall undergo preliminary training before the handler is certified for active duty.
- (2) A Police Service Dog Team shall obtain certification, prior to active duty, in—
 - (a) patrol and tracking of narcotics, explosives, firearms and ammunition; and

- (b) search, rescue and demining use.
- (3) A Police Service Dog team shall regularly engage in maintenance, training and periodic certification.
- (4) A Police Service Dog Unit personnel shall not keep or train their dogs or dogs for private individuals without the express consent of the Commandant of the Police Service Dog Unit.
- (5) The Police Service Dog Unit shall develop safety and control measures within the Unit standing Orders that provide for #
 - (a) training;
 - (b) kenneling;
 - (c) transportation;
 - (d) noise;
 - (e) clothing and equipment; and
 - (f) operational deployment.
- (2) The Commandant of the Police Service Dog Unit may authorize any breed to be trained to perform any other duty relevant to police work.

6. Records.

- (1) A National Police Service Dog Handler shall maintain a record of all the activities of the National Police Service Dog including the medical records, training material, certificates and calls for service.
- (2) The records of National Police Service Dog may be inspected by the supervisor at any time.

7. Drug used for Training.

- (1) The Officer In Charge of Narcotics shall be responsible for every narcotic used in training of Police Service Dogs.
- (2) A narcotic used in training shall be stored in the drug-training storage locker in separate storage container designated for each substance.
- (3) A log on the movement of narcotics in and out of the locker shall be kept inside a locked drug-training locker with details of #
 - (a) the officer receiving the training narcotics;
 - (b) the date and time the handler took the narcotics from the drug-training storage locker; and
 - (c) the date and time the handler returned the narcotics to the drug-training storage locker.
- (4) The key to the drug-training storage locker shall be kept by the Police Service Dog Handler and a copy kept in the Administration Sergeant's key storage.

8. Allocation of numbers.

- (1) The Commandant of the Police Service Dog Unit shall allocate a number to every Police Service Dog taken on strength.
- (2) The Dogs shall be numbered consecutively in chronological order on being taken on strength the number being prefixed "POLDOG" .

- (3) A register of all dogs shall be kept at the respective Unit headquarters with the following details of every dog—
- (a) the serial number;
 - (b) the number allocated;
 - (c) name;
 - (d) sex of the dog;
 - (e) date of birth;
 - (f) type of breed;
 - (g) date the dog training started;
 - (h) date the dog's training completed;
 - (i) nature of training;
 - (j) name of the trainer or Dog master;
 - (k) manner of disposal; and
 - (l) the record of arrests made during its lifetime.

9. Records on Police dog strength.

The Police Dog Unit shall keep a file on #

- (a) Police Dog History Sheet (P.73);
- (b) the strength of every Police Service Dog;
- (c) correspondences relating to the Police Dog; and
- (d) a detailed record of sicknesses and treatment issued to the Police Service Dog.

10. Approved Police dog breeds.

- (1) The breed of dogs approved for police duty include #
- (a) Alsatian or German Shepherd;
 - (b) Rottweiler;
 - (c) Labrador;
 - (d) Border Collie;
 - (e) Belgian Shepherd or Malinois; and
 - (f) Spaniel.
- (2) The Commandant of the Police Service Dog Unit may approve any other breed suitable for police work.
- (3) An Alsatian dog shall be trained in general detection, tracking and patrol work.
- (4) A Labrador Dog—
- (a) shall be trained to detect drugs or sniff of explosives; and
 - (b) for accuracy in scent discrimination, no Labrador dog shall be trained to sniff both drugs and explosives.

- (5) A Sussex Spaniel dog shall be trained to detect explosives and narcotic drugs.
- (6) A Border collie dog and Belgian Shepherd (Malinois) dog shall be trained to detect drugs.
- (7) A Rottweiler dog shall be trained to patrol and to guard
- (8) The Commandant may authorize any breed to be trained to perform any other duties relevant to police work.

11. Request for services of police tracker dogs.

- (1) A police tracker dog may be used to assist in investigation.
- (2) A requisition to use a Police Service tracker Dog shall be made to the Police Dog Unit with the following details #
 - (a) the date and time of the crime;
 - (b) the nature of crime;
 - (c) the reasons and manner in which a tracker dog could be usefully employed; and
 - (d) definite information that footprints or other signs of scent exist, which are believed to be that of the criminal.
- (3) The Commandant of the National Police Dog Service may seek, where necessary, the support and services of other agencies.

12. Requisition.

- (1) A requisition for an explosive search dog shall be made to the Dog master containing the details#
 - (a) who the Dog handler shall report to on arrival;
 - (b) situation report;
 - (c) clarify if the officer requesting the assistance of the explosive search dog has ever used it before;
 - (d) number, sizes and type of areas to be searched,
 - (e) whether there is a time limit;
 - (f) whether the area has been cleared of all booby traps;
 - (g) whether the area had been searched before. If so, when and what was the outcome; and
 - (h) whether there is a cordon.
- (2) A requisition for narcotic drugs sniffer dogs shall be made to the Dog master containing the details of where the place shall occur and the narcotic drug being searched for.

13. Types of Police Dogs.

- (1) The types of police service dogs include #
 - (a) protection dogs trained for patrol, tracking and guarding duties;
 - (b) explosives detector dogs trained to detect explosive substances;
 - (c) narcotics detector dogs trained to detect narcotic substances;
 - (d) firearms and ammunition detector dogs trained to detect firearms and ammunition;
 - (e) search and rescue dogs trained to assist in search and rescue during disaster;

- (f) demining dogs trained to detect mines;
- (g) show and competition dogs trained for social events and field trial competition; and
- (h) any other type of dog that the nature of duty may demand.

(2) A Police Service Dog shall not be used in a school except when authorized by a County Commander.

14. Conditions for employment of National police dogs.

- (1) A person requesting for a National police dog shall study the conditions favorable for employing National police dogs and handicaps to avoid wastage by reason of the dogs being requisitioned to work in cases with insufficient, mixed or no scent.
- (2) The notes on scent and handicaps contained in Appendix 55 (a) of these Orders are given as a guide.

15. Guidance on Preservation of spoor and scent bearing articles.

- (1) To preserve spoor and scent-bearing articles found at the scene of an incident from interference –
 - (a) the articles should be covered immediately with a box or piece of board and carefully guarded;
 - (b) the articles used for covering should not have a strong smell and should be handled as little as possible to avoid the mixing scents;
 - (c) the covering should not come into contact with the spoor or scent-bearing articles;
 - (d) the area where the incident occurred shall be properly guarded and, when practicable, kept clear of persons, animals and all traffic; and
 - (e) articles on the premises, which is likely to afford a scent to the dogs shall not be interfered with and where there is interference the Dog handler shall be informed.

16. Operations at the scene.

- (1) When the dog handler of a tracker dog arrives at the scene of an incident he shall be receive a brief on the particulars of the case.
- (2) The Officer-in-Charge of the case shall not interfere with the functions Dog Handler while on the trail.

17. Police Dog Escorts.

- (1) A dog handler and a Police Service Dog shall receive a police escort when tracking or patrolling, and both the handler and the escort shall be armed when working.
- (2) In a centre where police dogs are used regularly, a number of escort personnel shall undergo a training course with the local Dog Unit on#
 - (a) the manner in which Dog handlers and dogs' work, so that they can assist the handler when necessary, or take over the dog in an emergency; and
 - (b) the handling and firing of revolvers or pistols.
- (3) The duty of the police escort is to—
 - (a) protect the handler and the dog from injury by criminals, for this purpose the escort shall remain as close as possible to the handler without impeding the work of the handler or dog; and
 - (b) arrest, disarm and search any criminally disposed person encountered by the patrol.

- (4) A Dog handler and escort employed on tracking and patrol shall carry pistols secured in a holster and assault rifles, respectively, which shall be fully loaded and sufficient rounds of ammunition carried in a pouch.
- (5) The Service instructions regarding the use of firearms as laid down in Appendix 58 (a) of Service Standing Orders shall be complied with.

18. National Police Dogs as a form of force.

A police dog is a means of effecting arrest by force and shall be used in accordance with Chapter 47 Section G of this Order, the instructions in the Dog handling manual and the provisions of the Sixth Schedule Part A and C of the National Police Service Act.

19. Dog Patrols.

- (1) A Dog patrol may be established at a Police Stations with permanent kennels under the directions of the Commandant of the Police Service Dog Unit or respective Dog Unit.
- (2) The personnel and dogs on dog patrol shall not remain away from their parent dog units for more than one month.
- (3) Station Commanders with dog patrols shall ensure that each handler and the dog receive one night off per week and that dogs are bathed against infection every ten days.
- (4) The station commander shall ensure that kennels under their command are well groomed, fed and exercised properly.
- (5) Dog handlers shall ensure that dogs attached to them are taken care of as per the conditions given by the veterinary officer and the local Officer –in-charge Dog Unit.

20. Sick or Injured Dogs.

A sick or injured dog shall be taken immediately to the nearest Veterinary Officer for treatment by the dog handler, and the local Officer-in-Charge Dog Unit shall be informed promptly.

21. Disclosure of Evidence.

Any admissible evidence disclosed as a result of the use of dogs shall be given by the Dog handler concerned.

22. Occurrence Book.

- (1) There shall be an Occurrence Book kept at each Dog Unit with details of#
 - (a) the departure and arrivals of all dog patrols;
 - (b) requests received and action taken on all special calls; and
 - (c) report of any incident arising from the use of police dogs.
- (2) The Dog master in-Charge of the Section shall inspect the Occurrence Book and record in the Occurrence Book the result of such inspection.

23. Maintenance of Police dog Kennels.

The Kennel of a police service dog shall be cleaned with a weak solution of disinfectant at least three times a week and inspected frequently by the officer-in-Charge of the Section concerned.

24. Inspection of County Dog Section.

The County Dog Section shall be inspected on quarterly basis by the Commandant of the Police Service Dog Unit, the Directorate of Criminal Investigation and the Directorate responsible for Inspections, and a record of such inspections entered in the Officers' visiting book held at the section concerned.

25. Inspection of dogs by government veterinary doctor.

- (1) The Police Service dogs in sections outside Nairobi shall be inspected on quarterly basis by a government veterinary officer and a report obtained on the health, condition and general fitness for duty of each dog.
- (2) A record of these inspections showing the date and signed remarks of the Veterinary officer shall be maintained in the file of each dog.

26. Death and mercy killing of police dogs.

- (1) The Commandant of the Police Service Dog Unit may authorize the mercy killing of a police dog where a Veterinary Officer certifies that the dog is suffering from an incurable disease or any injury which shall permanently incapacitate the dog for further police duty.
- (2) The County Dog Master, may authorize the mercy killing of a police dog where a delay in obtaining the Commandant's permission would cause unnecessary suffering to the dog.
- (3) When the authority to kill the dog is obtained, the dog shall be euthanized and a death certificate issued by the administering veterinary officer.
- (4) The death certificate shall be forwarded to the Commandant of the Service Quartermaster through the Commandant of the Police Service Dog Unit.
- (5) Where a police dog dies, a post mortem shall be performed by a Veterinary Officer to ascertain the cause of death and the certificate, together with a detailed report on the circumstances of death and the completed History Sheet, forwarded to the Service Quarter Master through the Commandant of the Police Service Dog Unit.

27. Police Dogs Daily Ration.

- (1) The scale of daily ration for police dogs shall be determined by the following factors—
 - (a) size of the dog;
 - (b) breed;
 - (c) age;
 - (d) nature of duties; and
 - (e) health status.
- (2) The quality of dog food shall be as provided the Kenya Police and Administration Police Standard of Complete dog food approved by Kenya Bureau of Standards.
- (3) The Officer in charge of the Dog Unit for the respective Service shall, in consultation with a dog expert, form the police standard complete dog foods specification.

28. Veterinary care of dogs.

- (1) All dogs owned by the Police Service shall be vaccinated, de-wormed and treated for fleas in line with current best advice and practice.

- (2) No unnecessary suffering shall occur as a result of injury or illness, with appropriate veterinary care and treatment being sought as required.
- (3) Where a qualified Veterinary Surgeon advises that as a result of an injury or illness, that the most humane treatment to prevent suffering is euthanasia of the animal then this advice shall be considered.

29. Retirement of Police Dogs.

- (1) A Police Dog may be retired when—
 - (a) the dog fails to achieve license standard due to age, illness or skill level; or
 - (b) the dog is of an age or physical condition that it is decided to withdraw its license to prevent injury or harm.
- (2) A Nominated Officer shall decide on how the animal is retired.

APPENDIX 55(a)— FAVOURABLE CONDITIONS AND THE HANDICAPS TO THE EMPLOYMENT OF TRACKING DOGS AND DAILY ROUTINE TO BE OBSERVED AT POLICE KENNELS.

1. Favourable conditions and the handicaps to the employment of tracking dogs

- (1) Scent is an effluvium which is constantly issuing from the pores of all humanbeings and animals. It consists of minute particles which, driven by the wind, comes in contact with the dog and enable it to discover the proximity of the object of pursuit. It also clings to the ground whereon one walks, and on one's special belongings or to any object one handles. It shall be appreciated how easily scent is intermixed by two or more persons traversing the same ground, or by a stir of movement in the air, e.g. vehicles being driven in opposite directions.
- (2) Experience has shown that unless a person has made contact with something, in other words walking on the ground, handled an article, or his or her wearing apparel, his or her scent does not remain or "lie" very long. This is illustrated by the culprit who leaves the scene of crime on a bicycle. Although his or her body or feet are very close to the ground as he or she rides along, he or she makes no actual contact, and scent is consequently very soon absorbed by the heat or blown away.
- (3) It is an important point to decide whether there is sufficient scent left for the dogs to work on. With regard to this point, the weather and ground conditions play an important part. It should also be borne in mind that some dogs sniff better than others.
- (4) Despite the hard nature of iron bars, picks, shovels, sticks, glass and similar objects, sufficient scent is left thereon to enable a dog to work successfully.

2. The chief handicaps

The following are the chief handicaps met with in so far as scent is concerned-

- (a) *Mixed Scent*:- Dogs may not be able to follow a specific scent in a crowded city street due to mixed scent;
- (b) *Wind*:- Wind blows scent away. The stronger and hotter the wind, the sooner the scent dissipates;
- (c) *Heat*:- Heat absorbs the scent. The higher the temperature, the sooner the scent is absorbed;
- (d) *Ground Conditions*:- Scent "lies" best on soft, rich, damp ground. The harder and drier the surface the less scent there shall be, and the sooner it shall be absorbed and blown away. It is always necessary to consider weather and ground conditions supervening since the criminal left the scene of the crime;

- (e) *Carcasses, Fish and Skins*:- Meat, fish, skins and hides smell stronger than scent, so that, no matter how much they are handled, the dog shall be unable to pick up the scent of the person who handled them;
- (f) *Lime, Pepper, Petrol, Cattle Dip, Tobacco and Disinfectants*:- The smell of these is so strong that the olfactory nerves of the dog are irritated to such an extent that it is impossible for it to pick up the scent;
- (g) *Garages, Oily or Highly Polished Floors*:- The smell of these makes it very difficult, and in many cases impossible, for the dog to take up scent. In such cases the strength of the smell is the deciding factor;
- (h) *Blood*:- The smell of blood is stronger than scent, so that in the event of the scent-bearing article being covered with blood, or the impression of the foot being made in blood, the dog shall be unable to pick up the scent;
- (i) *Rain Water*:- Should floods or water run over the footprint or the scentbearing articles, all scent is washed away and the dog cannot pick it up, but should it be a soft rain and the water does not run, the dog should be able to work such a trail, provided it is not very old;
- (j) *Asphalt or Macadamized Surfaces*:- Owing to the hard and dry nature of the surfaces, very little scent is left thereon and owing to the heavy traffic usually found on such roads, scent is very soon destroyed. There is also a strong smell of the tar on the road or street which makes it more difficult and in most cases impossible for the dog to follow a trail thereon;
- (k) *Animals*:- The scent of cattle, sheep, goats and most other animals' is much stronger than that of humans. It is therefore difficult for a dog to track a cattle thief who has driven stolen stock in front of him or her, due to the animals scent obliterating that of the thief. Dogs can be used however to track thieves who have slaughtered an animal and have carried the meat away.

3. Daily routine at kennel

Daily routine to be carried out in respect of each dog shall be as follows-

- (a) grooming and exercising- in order to reduce the risk of diseases of the bladder, bowels and skin dogs shall be groomed once and exercised at least twice daily, obedience exercise;
- (b) manwork training- including circling, tackling and escorting, tracking, windscenting,
- (c) night training- shall be given at least twice a week and shall cover all the training duties mentioned under subparagraphs (a) and (b); and
- (d) attack training including self defence, tackling and escorting.

4. Hours of training

- (1) Having regard to the locality and the season of the year, the hours during which training shall be carried out shall be laid down by the Dog Handler in-charge of the Section.
- (2) Training shall be arranged to avoid working dogs during the heat of the day.

5. Standards required

- (1) It is to be understood that the routine given above is only a guide. Dog masters shall be responsible for their dogs being up to the high standard required.
- (2) Older animals or dogs with physical defects shall not be worked hard or made to perform tasks which could in any way affect their well being.

6. Dog Handling Training

- (1) All man work training shall be planned and supervised by the Dog master.

- (2) Training shall include practice in dealing with one, two and three unarmed or armed criminals.
- (3) All work shall be made as realistic as possible, patrol dogs and handlers shall be trained to deal with sudden incidents involving chases, of suspects on foot, riding bicycles or who attempt to board vehicles.
- (4) Times and areas of training shall be varied so that dogs become accustomed to working under all conditions.
- (5) Training shall be given in releasing dogs from police vehicle after fleeing suspects. Patrol training shall ensure that all dogs are reliable and that they shall not attack innocent person(s) while working in populated areas.

7. Interest in other animals

Dogs shall be discouraged from showing keen interest in other animals while on duty as this distracts them from alert patrolling.

8. Dogs not used for tracking

Patrol dogs not normally used on tracking duties shall be given windscenting training. This shall include searching of open areas and premises such as warehouses. While performing this task, dogs shall be kept on a long lead and the area searched under the direct control of the handler.

9. Laying of practice trails

- (1) Dogmaster shall personally supervise the laying of practice trails. The seven fundamental trails for tracking are as follows, and the dogs shall be practiced on all of these to provide a variety of experiences-
 - (a) Straight;
 - (b) half-circle;
 - (c) straight. across a road or footpath;
 - (d) straight with one right-angle;
 - (e) straight with two right-angles;
 - (f) three-quarter circle; and
 - (g) in the shape of an "S", with points at least 200M apart.
- (2) Whilst practising the trails, under paragraph (1) obstacles such as rivers, railway line and roads should be included.

10. Locality

Dogs are not to be worked on practice trails of which the exact locality is not well known to the Dogmaster. Such trails should be so laid that, while they do not provide an indication for the dog and its handler, they nevertheless furnish means whereby the Dogmaster shall know immediately the dog has definitely left the trail and has lost the scent.

11. Variety of experience

As much of the efficiency of police dogs depends upon the variety of experience they are given, the Dogmaster shall use his or her initiative to obtain different casual trail layers to lay trials and thus provide strange scent. He or she shall also provide a variety of articles for the trail-layers to use on trails. These should include wood, cloth, leather, paper and other similar materials but no glass or anything which may injure the dog's mouth. The number of articles dropped and the distance between them shall be varied so that the dog cannot anticipate where they are to be found. The trail layer shall be prevented from habitually leaving the articles or concealing himself near object or

bushes. This procedure creates a tendency in the dog to run to every object in sight to look for the articles instead of seeking them out with its nose.

12. Freedom to work the trail

When working in trail, the handler shall not move close to the dog. The animal shall work at full length of the line which shall always be slack, so that the dog shall have absolute freedom to work the trail and to keep up any direction his sense of smell tells it to be correct. In no circumstances shall the dog handler guide the dog with the line or chastise the animal with it.

13. Giving scent

The dog should not always be given scent from the mark made by the foot of the trail-layer; this, on occasions, should be varied by a hat, stick or other articles handled by the trail-layer so as to accustom the dog to conditions likely to be encountered on criminal trials.

14. Working a practice trail

Dogs should work a practice trail calmly and without looking back. There is no objection to the dog 'coming back' or 'circling' in front of the Dog master when it has lost scent in an endeavour to take up the trail again. Dog handlers should, on practice trails, use every endeavour to induce the dog to pick up scent again. They should not be hasty to rebuke the dog when it has apparently lost scent. An appreciable length of time should be allowed to permit the dog to take up the trail or uttering censure, as the effect of the latter might cause the dog to go ahead, its fear of censure overcoming the intention of picking up the trail.

15. Chastising the dog

It would be extremely detrimental to the dog if it is chastised when it might be on the correct trail unknown to the handler or on the other hand allowed to "walk" on aimlessly when off the trail without being checked. The handler shall not interrupt the dog by unnecessary talking and repetition of commands.

16. Trails to be worked at different hours

Trails should neither be worked at the same hour each day nor over the same ground. When dogs are proficient at tracking on fresh trails, practice should be given on working older trails to accustom the dog to conditions met with on older criminal trials.

17. Changing venue of trails

The venue of trails should be changed as often as possible so that the dog shall not be able to anticipate the direction of trail-layers.

18. Transporting dogs to venue of trails

Dogs should be transported to the venue of trails to ensure that they are fresh and ready for tracking.

19. Swimming exercise

Swimming exercises should be given where facilities exist.

**APPENDIX 55(b)— RESPONSIBILITIES OF OFFICER IN CHARGE
OF A STATION ON POLDOGS DETACHED TO THEIR STATIONS.**

- (1) An officer in charge of a station having a police dog on detachment under his/her command, shall-
 - (a) have a report daily on dog performance while on patrol or tracking, and where the performance is below the expected, to communicate that to the County dog Master, this is important in order to monitor dog performance for prompt action where necessary;
 - (b) visit the kennel premises for inspection daily. A good, well kept dog is appealing to everyone's eye, not the handler alone. This is to make sure that the dog handler observes his

Repealed

or her responsibilities daily and that the dog is well maintained and kennel compound kept clean;

- (c) make immediate repairs to kennel where found with cracks or roof leaking;
 - (d) return the dog to Unit after thirty days on detachmen, this is necessary for routine medical check-up and regular training of the dog;
 - (e) arrange for immediate return to the Unit or visit nearest Veterinary officer if the dog is noticed to be sick;
 - (f) ensure that dogs work within the stipulated hours-
 - (i) Night Patrol - 6 hours;
 - (ii) Mobile Patrol - 8 hours;
 - (g) not deploy any dog handler for any duties other than dog patrols and tracking cases;
 - (h) deal with the dog handler accordingly where the handler acts or conducts himself or herself contrary to Discipline Order in these Service Standing orders.
- (2) Any loss of police dog or fall of its standard of performance as a result of unnecessary delay to take action shall be taken to be negligence on the part of the officer in charge of a station and therefore held responsible for the loss or poor performance of the dog. The commandant may order withdrawal of dog services from such stations or recall the dog handler to the Unit for redeployment.

APPENDIX 55(c)– POLICE DOG HISTORY SHEET

NAME

			DESCRIPTION	
Breed	Colour	Sex	Date of Birth	Distinguish Marks

	TRAINING DETAILS		
Type of Training	Date Commenced	Date Completed	Trained by

	VETERINARY HISTORY		
Date	Illness Date admitted to Sick Bay	Treatment	Date released from Sick Bay

	IMMUNIZATION DATES		
Anti- Rabbies	Hepatitis	Leptospirosis	Parvo Virus

Date of Death/Casting.....

Cause Death or Authority for casting.....

Date of Death/Casting

Cause Death or Authority for Casting

APPENDIX 55(d)— POLICE DOG UNIT: COMMANDANT CIRCULAR NO.1/99.

DUTIES OF DOG HANDLER ON DETACHMENT.

- (1) A dog handler while on detachment shall-
 - (a) report to Officer in Charge of a Station, every morning and brief him or her on-
 - (i) Dog performance during patrols or tracking cases; and
 - (ii) Dog health.
 - (b) clean kennels daily every morning to maintain, high standard of hygiene;
 - (c) groom the dog daily to remove ticks and dead or loose hair;
 - (d) make sure that the dog has fed by 4.00 p.m. every day;
 - (e) bath the dog every 10 days with dip pesticides to prevent parasites infestation especially the ticks which transmit fatal tick fever;
 - (f) exercises the dog daily to maintain the alimentary tract tone;
 - (g) keep kennel surrounding clean with grass cut short always to prevent pests infestations' like rodents which transmit serious dog diseases. Clean surrounding shall prevent ticks crawling into the kennel also;
 - (h) notify the Officer in Charge of a Station of his or her movements around so that he or she can be easily contacted if need be;
 - (i) report immediately to Officer in Charge of a Station any sick dog so that necessary arrangements are made either to visit nearest Vet or transport the dog back to the Unit;
 - (j) explain to the Officer in Charge of a Station, the type of dog he or she is having at the station. This is important especially where there is one dog to ensure working hours for the dog are well balanced in case the dog is to be used for both patrol and tracking;
 - (k) not attend duties assigned to him or her which are not related to dog handling. This is noted where station Commanders deploy handlers to guard duties, roadblocks and the likes.

Any poor performance of the dog both in health and training as a result of irresponsible care and maintenance by the handler shall be deemed as wilful negligence on the part of the handler. Such a dog handler shall be dealt with accordingly by the commandant Police Dog Unit.

Chapter 56

POLICE STATION MANAGEMENT

1. Designated Police station.

The Inspector-General shall, by notice in the Gazette, designate an area to be a police station.

2. Officer in- charge of a police station.

- (1) The term Officer in-Charge of a police station means—
 - (a) an officer designated to superintend on all affairs of a police station;
 - (b) any officer superior in rank to a station commander;
 - (c) the police officer present at the station who is above the rank of constable and is next in rank to the designated officer in-charge when such officer is absent from the station house or unable to perform his or her duties; or
 - (d) any officer designated by the Inspector-General to be an officer in charge.

3. Functions of a police station.

- (1) A police station shall be the unit of police service delivery and shall—
 - (a) be the center for the administrative and command function of all police services under the Service in a particular station; and
 - (b) provide room for operational creativity amongst police officers from all the Formations or Units under the Service.
- (2) The Inspector-General shall ensure the development of procedures which facilitate uniform keeping of records at all police stations.
- (3) A police station shall register the victims of crime and violence within their area of jurisdiction and establish support schemes for the victims.
- (4) A police station shall establish a mechanism for receiving, recording and reporting of complaints against misconduct by any police officer.
- (5) The Inspector-General may establish out-posts and other units in accordance with the principles of the Constitution and the existing laws.

4. Centre for the administrative and command functions.

- (1) All active law enforcement police operations shall be recorded in a police station or in police post, out post, and camp records in a given police station area that the operations are being carried out.
- (2) A police operational service shall, at any given time, be offered, processed and launched under the auspices of a specified police station, police post or outpost area, in accordance with the geographical or functional boundaries.
- (3) A unit, formation or other detachments of police officers undertaking active law enforcement operations shall be undertaken or operated from a specified police station.
- (4) A police station, which is established for a special function, shall be guided by the geographical reach of their functions in determining its boundaries and may extend into several other police stations' situated in other geographical jurisdiction areas such as port and railway police stations.

- (5) All the police officers in charge of police posts, outposts and unit camps that fall under a given police station area shall undertake fortnightly policing operations analysis meetings at the police station to share information on the challenges within their areas and deliberate on creative approaches of addressing the challenges.
- (6) All police posts, outposts, camps and other police offices under a police station area shall, for the purpose of uniform record keeping and data capturing, submit the relevant reports and returns to the area police station for processing and other actions.
- (7) For service delivery, a police station both in its functional and geographical jurisdiction, together with the other police offices operating within the station area shall be points where a person seeking services of the police shall be served in entirety without being referred to any further place.

5. Providing room for operational creativity.

For purposes of allowing operational creativity, a police station shall be a place that offers a platform for police officers to undertake crime mapping, analysis of crime statistics and trends, deployment of resources, brainstorm on counter-crime interventions, sharing of intelligence, implementation of community policing initiatives, mustering police networks and contacts and any other initiatives promoting harmony, effectiveness and efficiency in police operations including mutual support.

6. Centre for command functions.

- (1) The Officer-in-Charge of a police station shall convene meetings in order to plan joint operations whenever intelligence or information indicates necessity for joint operation response or upon the request of an officer on a matter within the police station's jurisdiction.
- (2) As a centre for command functions and a place that offers room for operational creativity, the Service and the Directorate of Criminal Investigations shall plan joint operations and deployments from the police station and participate in the development of the Station Standing Orders, plans, orders, budgets, deployments and strategies.

7. Functions of officer-in-charge of a police station.

The functions of the officer-in-charge of a police station shall be to ensure the—

- (a) effective and efficient day-to-day administration and operation of the police station;
- (b) implementation of policies and directions of the Service at the station;
- (c) recording of all reports or complaints from members of the public and that appropriate action is undertaken;
- (d) supervision, coordination and training of police officers in the police station;
- (e) establishing and maintaining of a relationship between the station, outposts, patrol bases, unit bases, the community and other government agencies;
- (f) transparency and accountability in the police station;
- (g) engagement in joint security operations between the Service and other government agencies or other security organs in order to ensure the safety and security of the public; and
- (h) performance of such other duties, as may be assigned, by the Sub-County Commander.

8. Responsibilities of the officer-incharge of a police station.

In addition to the day-to-day administration of a police station, a Station Commander shall be responsible for—

- (a) ensuring that all complaints received are properly recorded and investigated;
- (b) personally visiting the scene of every serious crime;
- (c) taking necessary steps to deal with any outbreak of crime, and for organising special police operations;
- (d) keeping sub-county commanders fully informed on matters affecting crime and security in his or her area;
- (e) ensuring close co-operation with representatives of all government departments in his or her area;
- (f) carrying out two nightly inspections of the station each week, one before and one after midnight;
- (g) ensuring that members of staff who do not normally perform night duties perform “night round” each week one before and one after midnight”;
- (h) ensuring that all police officers in a police station have a thorough knowledge of the station area including the full particulars of known criminals and suspected and wanted persons.

9. Police station organization.

- (1) In order to ensure the efficient and effective management of a police station, the Officer-In Charge shall organize police officers in the station he or she is in charge of, into the following sections —
 - (a) a planning, research and logistics section that has staff drawn from the members of the Services and Directorate of Criminal Investigations and deals with—
 - (i) development and implementation of operational strategies and objectives;
 - (ii) crime, data analysis and research;
 - (iii) organizing and processing the collection of intelligence;
 - (iv) victims support service;
 - (v) oversight role, inspections and audit;
 - (vi) monitoring and evaluations;
 - (b) an administration section that shall be personally supervised by the Officer-In-Charge of the police station with some duties delegated to the deputy in a police station, and shall be divided into the following units—
 - (i) general administration and training unit which deals with correspondence, reports and returns, kit inspection and clothing exchange; and
 - (ii) a training unit which deals with, riot drill, foot and arms drill, parades, lectures, range practice and courses general;
 - (c) a welfare and discipline section which shall deal with—
 - (i) inquiring into disciplinary offences;
 - (ii) fatigues and inspection in the lines;
 - (iii) games and sports organization;
 - (iv) provisions of canteen;

- (v) cinema shows, distribution of books, magazines and periodicals;
- (vi) teaching of hygiene and home crafts; and
- (vii) visits to sick officers either in quarters or in hospitals.

10. Operation section.

- (1) The operation section shall have the following units#
 - (a) the Crime Branch Unit which shall be headed by a Chief Inspector or an officer of the rank of Inspector to be known as Officer-In-Charge Crime and the police officers in the operation section may operate in both uniform and civilian clothes and shall deal with—
 - (i) investigation of serious crimes;
 - (ii) detection of crimes;
 - (iii) apprehension of offenders;
 - (iv) receiving of information from informers;
 - (v) investigation of fire reports and sudden deaths;
 - (vi) organization of raids and ambushes;
 - (vii) taking prisoners and case files to court; and
 - (viii) maintenance of crime branch records;
 - (b) the Petty Crime Units which shall be headed by an Inspector in large station, or an non-commissioned officer or constable in small stations and support the crime branch in—
 - (i) detection of petty crimes;
 - (ii) apprehension of criminals;
 - (iii) receiving of all persons arrested for petty offences;
 - (iv) investigation of petty offences;
 - (v) maintenance of petty crime records; and
 - (vi) taking of persons charged with petty offences and case files to court.
 - (c) the Beat and Patrol Units, which may be headed by an inspector or an non commissioned officers to perform the following functions#
 - (i) prevention of crime;
 - (ii) apprehension of offenders;
 - (iii) safeguarding of property;
 - (iv) maintenance of law and order;
 - (v) preservation of peace;
 - (vi) assists members of the public in need; and
 - (vii) collection of intelligence;
 - (d) the Traffic Units which shall be headed by an Inspector or Senior non- commissioned officers and shall deal with#
 - (i) the prevention of accidents;

- (ii) the free flow of traffic; and
- (iii) the proper enforcement of all laws relating to traffic matters;
- (e) the Report and Inquiry Office Units shall constitute the reception office in which two police constables shall be deployed, one as a report office officer and the other as a stations entry, and whose main functions shall be to#
 - (i) receive and record reports in the occurrence book;
 - (ii) direct reporters to the appropriate section of a police station;
 - (iii) maintain the police station records at report office which records may include the occurrence book, cell register, requisition for meals receipt book and prisoners' property book;
 - (iv) cleanliness of the station block;
 - (v) caring of prisoners in cells;
 - (vi) lowering and hoisting of flags; and
 - (vii) caring of prisoner's properties.
- (2) In addition to the duties performed by the sections provided under sub paragraph (1) the police officers in a police station may perform other duties such as court orderlies, guards to the very important persons and bank escort.

11. Prohibition against torture or cruel treatment.

- (1) It shall be unlawful for a police officer to subject any person to torture or other cruel, inhumane or degrading treatment.
- (2) A police officer who subjects a person to torture commits a criminal offence and shall be liable, on conviction, to imprisonment for a term not exceeding twenty five years.
- (3) A police officer who subjects a person to cruel, inhumane or degrading treatment commits a criminal offence and is liable, on conviction, to imprisonment for a term not exceeding fifteen years.

12. Arrest and detention rules

- (1) In the performance of the functions and exercise of the powers of arrest and detention set out in the Constitution, these Orders or any other law, a police officer shall carry out arrest and detention only as provided for in law.
- (2) A police officer shall accord an arrested or detained person all the rights set out under Articles 49, 50 and 51 of the Constitution.
- (3) A police officer shall use force, in accordance with the provisions of the Constitution and any other written law.
- (4) A police station shall have a lock-up facility for detaining arrested persons which shall —
 - (a) have hygienic conditions conducive for human habitation;
 - (b) have adequate light, toilets and washing facilities and outdoor area;
 - (c) have separate places for men and women;
 - (d) separate juveniles and children from adults;
 - (e) separate police detainees from convicted prisoners.

- (f) ensure that women cells are secured with two padlocks and the keys to each padlock shall be kept by different officers and that a male police officer shall only visit a female cell when accompanied by another police officer; and
 - (g) feed prisoners or detainees in accordance with to their customs or beliefs as much as practicable.
- (5) A police officer shall carry a firearm into a lock-up in accordance with the law.
- (6) A detained person shall be entitled to enjoy all the rights that do not relate to the restriction of liberty.
- (7) A police officer in charge of a police station or other place of detention shall maintain a register in which the followin particulars in respect of detained person shall be entered—
 - (a) name, sex and age;
 - (b) reasons for the arrest and detention;
 - (c) date and time of the arrest and detention;
 - (d) date and time of first appearance before a court;
 - (e) identity of the arresting officer;
 - (f) date and time for interrogations and identity of the interrogators; and
 - (g) date and time of any transfer of the detainee to another place of detention.
- (8) A police officer in charge of a police station shall appoint an officer who shall be responsible for the detainees' welfare and for updating the register .
- (9) A person who has been detained shall have the right to—
 - (a) communicate with and receive visitors or members of his or her family subject to reasonable conditions and restrictions necessary for the realization of exceptional needs of the subject investigation which shall be provided in the standing orders;
 - (b) inform family members of the arrest, detention and place of detention where possible;
 - (c) access medical assistance when required; and
 - (d) file a complaint against ill-treatment, which shall be investigated by the Independent Police Oversight Authority.
- (10) A person who has been detained shall not be held in any other place except a designated and Gazetted lock-up facility.
- (11) A lock-up facility shall be open for inspection, including unannounced visits by both the Independent Policing Oversight Authority and the Cabinet Secretary responsible for matters related to security, or their representatives and in cases of unannounced visits—
 - (a) officers responsible for the facility shall cooperate fully with the persons making the visit;
 - (b) recommendations may be made for improvement of the lock up facility, which shall be binding upon the police; and
 - (c) the detained person shall be entitled to communicate freely with persons making the visit and as far as practicable shall ensure their conversation is not overheard by anyone.
- (12) Where a detained person dies in custody, the officer in charge shall notify the Independent Oversight Authority and any other body required by law to be so notified for the purpose of investigations.
- (13) A police officer who contravenes the provision of this Part or the Standing Order shall be personally guilty of a disciplinary offence and may be tried for a criminal offence.

- (14) A police officer who fails to comply with the requirements set out in sub paragraph (1) commits an offence.

13. Daily crime and incidents reports.

- (1) The officers in-charge of a police station shall dispatch to their Sub County Commanders not later than at 0830hrs, on a daily basis, comprehensive reports on offences—
- (a) under the Penal Code;
 - (b) under the Anti-corruption and Economic Crime Act;
 - (c) under the Sexual Offences Act;
 - (d) under Psychotropic Substance Control Act; or
 - (e) where firearms have been used and serious incidents including fatal or serious road accidents reported to their stations during the preceding twenty-four hours occurring in their police station jurisdiction.
- (2) The report under sub paragraph (1) shall be comprehensive and shall contain all the essential details including details on the —
- (a) station;
 - (b) division;
 - (c) criminal number or occurrence book number;
 - (d) date, time and place where offence occurred, and shall provide the map reference of the place or township, road or street, where the offence occurred;
 - (e) date and time that the crime was reported to the police;
 - (f) name of complainant;
 - (g) brief circumstance under which the offence was committed while providing the details on how the offence was committed;
 - (h) name, age and tribe of the accused;
 - (i) status of the case;
 - (j) any previous report; and
 - (k) name and rank of investigating officer.
- (3) Where practicable to do so, the daily crime and incident report on security and economic grounds shall be sent through the police radio network or other technologically secure means.

14. Returns.

- (1) All returns shall be submitted regularly and correctly when they become due for submission.
- (2) Where delay occurs in submission of returns, a report giving reasons for such delay shall accompany the returns.
- (3) The returns shall be checked and signed by the Officer-inCharge and shall be submitted as follows—
- (a) daily returns that shall comprise of#
 - (i) crime and incidents; and
 - (ii) radio situation reports;

- (b) weekly returns that shall comprise of#
 - (i) casualty return;
 - (ii) dead bodies; and
 - (iii) statistics;
- (c) fortnightly returns that shall provide for details on law and order;
- (d) monthly returns that shall provide for-
 - (i) monthly intelligence;
 - (ii) public meeting and processions;
 - (iii) crime graph summary;
 - (iv) motor vehicle returns;
 - (v) dangerous drug offences;
 - (vi) traffic offences;
 - (vii) stationary plants;
 - (viii) nominal roll establishment or strength;
 - (ix) recovery of disciplinary fines;
 - (x) livestock returns;
 - (xi) prisoners meals;
 - (xii) canteen cess;
 - (xiii) expenditure of ammunition; and
 - (xiv) warrants summons.
- (e) quarterly returns shall provide for details on#
 - (i) intelligence;
 - (ii) crime prevention strategies;
 - (iii) arms returns;
 - (iv) accident summary; and
 - (v) transfers.
- (f) annual returns shall provide for#
 - (i) human trafficking;
 - (ii) annual crime returns or penal-petty offences;
 - (iii) annual reports;
 - (iv) police cipher;
 - (v) ammunitions;
 - (vi) type writers such as duplicators, computers, laptops, photocopiers and other information, communication and technology items;
 - (vii) safes or cash boxes;

- (viii) traffic in drugs;
- (ix) accountable documents;
- (x) lockers or cabinets; and
- (xi) acts of terrorism.

15. Obedience to orders, warrants and detection of crimes.

- (1) A police officer shall—
 - (a) obey and execute all lawful orders in respect of the execution of the duties of office which he or she may, from time to time receive from his or her superiors in the Service;
 - (b) obey and execute all orders and warrants lawfully issued;
 - (c) provide assistance to members of the public when required to do so;
 - (d) maintain law and order;
 - (e) protect life and property;
 - (f) preserve and maintain public peace and safety;
 - (g) collect and communicate intelligence affecting law and order;
 - (h) take all steps necessary to prevent the commission of offences and public nuisance;
 - (i) identify offenders and bring the offenders to justice;
 - (j) investigate crime; and
 - (k) apprehend all persons whom he or she is legally authorized to apprehend and for whose apprehension sufficient ground exists.
- (2) A police officer who fails to comply with an unlawful order shall not be subjected to disciplinary proceedings.

16. Power to compel attendance of witnesses at police station.

The following procedures shall be observed in procuring attendance by witnesses—

- (a) a police officer may, in writing, require any person whom the police officer has reason to believe has information which may assist in the investigation of an alleged offence to attend a police station or police office in the County in which that person resides or is present at the material time;
- (b) a person who, without reasonable excuse, fails to comply with a request issued under sub paragraph (a) or who, having complied, refuses or fails to give correct name and address and to answer truthfully all questions that may be lawfully put to him or her, commits an offence;
- (c) a person shall not be required to answer any question under this Chapter if the question tends to expose the person to a criminal charge, penalty or forfeiture;
- (d) a police officer shall record any statements made to him or her by any such person, whether the person is suspected have committed an offence or not, but, before recording any statement from a person to whom a charge is to be preferred or who has been charged with committing an offence, the police officer shall warn the person that any statement which may be recorded may be used in evidence;
- (e) any statement taken in accordance with this Chapter shall be recorded and signed by the person making it after it has been read out to him or her in a language which the person understands and the person has been invited to make any correction he or she may wish.

- (f) notwithstanding the provision of this paragraph, the powers conferred by this Chapter shall be exercised in accordance with Criminal Procedure Code, the Witness Protection Act or any other written law;
- (g) the failure by the police officer to comply with a requirement of this paragraph in relation to the making of a statement shall render the statement inadmissible in any proceedings in which it is sought to have the statement admitted in evidence.

17. Power to search without warrant in special circumstances.

- (1) When a police Officer in-Charge of a police station, or a police officer investigating an alleged offence, has reasonable grounds to believe that something was used in the commission of a crime and is likely to be found in any place and that the delay occasioned by obtaining a search warrant under section 118 of Criminal Procedure Code shall substantially prejudice such investigation, the police officer may, after recording in writing the grounds of such belief and such description as is available of the thing for which search is to be made, without search warrant, enter any premises in or on which the thing is suspected to be and search or cause search to be made for and take possession of such thing.
- (2) For purposes of conducting search under this paragraph—
 - (a) the officer shall carry the certificate of appointment and produce to the occupier of the premises on request;
 - (b) if anything is seized under sub paragraph (1), the police officer shall immediately make a record describing anything so seized and without undue delay take or cause it to be taken before a magistrate within whose jurisdiction the thing was found, to be dealt with in accordance with the law.

18. Custody of unclaimed property.

- (1) A police officer shall—
 - (a) take charge of all unclaimed property presented by any person or found to be unclaimed; and
 - (b) deliver the unclaimed property without delay to the nearest police station.
- (2) Where any property has come into the possession of a police, the police officer shall furnish an inventory or description of the property within forty eight hours, to a magistrate having jurisdiction in the area in which the property is found by, or handed to the magistrate, and the magistrate shall —
 - (a) give orders for the detention of the property;
 - (b) cause a notice to be posted in a conspicuous place in the magistrates' court and at such police station as the magistrate may consider necessary; and
 - (c) if the property is a motor vehicle, check with the registrar of motor vehicles or the insurance companies.
- (3) The notice under sub paragraph (2)(b) shall describe the property and require any person who may have a claim thereto, to appear before the magistrate or other persons specified therein and establish their claim within twelve months from the dates of the notice.
- (4) Despite subsection (3), if the unclaimed property is—
 - (a) liable to deterioration, the magistrate shall deal with it in such a manner as may be appropriate; or
 - (b) a firearm or ammunition, the magistrate may order that the property be disposed of in such manner as the InspectorGeneral may prescribe in Regulations.

- (5) If no owner establishes claim to the property within twelve months from the date of the notice, the property may be sold as shall be directed by the magistrate.
- (6) Where the unclaimed property has been sold in accordance with sub paragraph (5), the proceeds of sale shall be paid to the person who establishes lawful claim, or if no lawful claim to the property has been established, the proceeds shall be paid into the governments' revenue.
- (7) If the property is a dead person, the same shall be disposed at the lawful discretion of the relevant county government authorities.

19. Responsibilities of the police post commander.

- (1) In addition to the day-to-day administration of a police post, a post Commander shall be answerable to the immediate superior in the subject area of jurisdiction for—
 - (a) the efficient administration of the post;
 - (b) the prevention and detection of crime and the apprehension of offenders in his or her area;
 - (c) ensuring that all complaints received are properly recorded and investigated;
 - (d) personally visiting the scene of every serious crime;
 - (e) taking necessary steps to deal with any outbreak of crime and for organising special police operations;
 - (f) keeping his or her direct superior fully informed on matters affecting crime and security in his area;
 - (g) ensuring close co-operation with representatives of all Government departments in his or her area;
 - (h) carrying out two night inspections of his or her post each week, one before and one after midnight;
 - (i) ensuring that members of his or her staff do regularly perform night duties perform "night round" each week once before and once after midnight"; and
 - (j) ensuring that the police officers in the police station in which he or she is in charge of have a thorough knowledge of his or her area including the full particulars of known criminals, suspected and wanted persons.

20. Procedure on arrest.

- (1) A person who has been arrested by a police officer without a warrant under the powers conferred by sections 29, 30 and 37 of the Criminal Procedure Code, and all persons who have been arrested on a warrant of arrest shall be searched and placed in cells and relevant entries made in the relevant Occurrence Book at the respective posts, out-post and police station and the Cells Register.
- (2) All articles, including cash, taken by a police officer from an arrested person shall be entered in the prisoners' property register which shall be kept in a safe or cash box provided for that purpose.
- (3) The Officer- in-Charge of a police station, posts, out-posts or bases shall have the cases investigated and referred to the relevant police station for recording and escort to Court.
- (4) A suspect may be detained in a designated police station post, out-post or unit base until such time as he shall be taken before a court of law:

Provided that a suspect who has been detained shall be brought before a Magistrate within twenty-four hours after arrest or as soon as is practicable.

- (5) Where the detainee is a woman who is to be kept overnight, a female police officer or at least two male police officers shall be assigned to be in attendance while the woman is in detention or custody.
- (6) When the arrested person is required in another station, the investigating officer shall produce the person before a magistrate and apply for the remand of the suspect and conveyance to the police station where the person is required.
- (7) As soon as a suspect has been arrested and interrogated by the post investigation officers the suspect shall be brought into custody in the station if the post is not a designated place of custody.
- (8) The custody station shall be notified of the need to collect the suspect under paragraph (7) from the post if the post has no means of transport and asked to provide an immediate escort for the suspect, on arrival the handing over post shall complete a suspect handing over register.
- (9) When a person has been taken into custody without a warrant, the Officer in Charge of the police station to which the person has been brought shall bring that person before a subordinate court as soon as is practicable.
- (10) If it does not appear practicable to bring an arrested person before the appropriate subordinate court within twenty four hours after he or she has been taken into custody, the Officer in Charge of a police station shall—
 - (a) inquire into the case and, unless the offence appears to the officer to be of serious nature, release the person on his or her executing a bond with or without sureties, for a reasonable amount to appear before a subordinate court at a time and a place to be named in the bond; and
 - (b) release the person when, after due police inquiry, no sufficient evidence is disclosed on which to proceed with the charge.

21. Requests to Subcounty commanders.

Where any request is made to a Sub-County Commander of the respective Service, the Commander shall, in conformity with the National Police Service Regulations and the Standing Orders, provide adequate police officers to a police station within a reasonable time.

22. Disobedience of lawful orders.

- (1) A member of the Service who disobeys or fails to comply with lawful orders or who contravenes the station standing orders, Service Standing Orders, any relevant Regulations and any written law, shall be reported to the officer's immediate supervisor or officer who is above the rank of an inspector without delay, for inquiry and necessary disciplinary action.
- (2) A decision or action resulting from provisions of this paragraph shall be made known to the officer who raised the complaint and all complaints shall be acted upon.

23. Requests for assistance.

- (1) A police officer shall, where necessary, notify his or her immediate commander when the officer finds it necessary to get assistance regarding the criminal justice processes.
- (2) Where assistance is requested as provided under sub paragraph (1), it shall be promptly provided in the interest of justice and law enforcement.

24. Responsibility of officers.

- (1) A police officer at a police station shall be answerable to his or her superiors and to the law in the execution of his or her functions and the mandate of the Service.

- (2) The decisions on the suspects and exhibits held at the police station shall lie with the station commander, subject to lawful direction from his or her superiors and to written laws, orders, directions and relevant regulations.

25. Commencement of criminal process at police posts.

- (1) Where criminal processes are commenced at a police post, outpost and other police offices, the police station shall provide the criminal register number (C.R) to the responsible post commander.
- (2) The post commander shall nominate the investigating officer to investigate the case if it is to be investigated at the post.
- (3) A case which has special complexity at the post shall be referred to the police station.

26. Assistance by the directorate of criminal investigations.

- (1) The Directorate of Criminal Investigations shall provide support to the station crime branch at first instance before taking over cases as provided for in Chapter four, paragraph four of these Standing Orders.
- (2) In the event of a takeover, the investigating officer who dealt with the case in first instance shall remain a core investigator in the case to its final conclusion.
- (3) A case under investigation at the police station or police post shall be taken over by the Directorate of Criminal Investigations as provided under Chapter four paragraph four of these Standing Orders at the initiation of the Police Station Commander.

27. Identification records of arrested persons.

- (1) Where a person is arrested, full particulars, including the name and number shown on the suspect's identity documents, if any, shall be entered in all relevant police post and station records and on the fingerprint form (Form p.20).
- (2) Identity documents are the personal property of a prisoner and shall be treated in the same way as other prisoner's property and shall be entered in the relevant prisoners handing over register.

28. Cash bail.

- (1) The Station Commander shall issue the cash bail receipt in his or her hand.
- (2) In issuing the cash bail, the amount thereof shall take into consideration—
 - (a) the gravity of the offence;
 - (b) recommendation of the investigating officer; and
 - (c) the circumstances under which the arrest was made
- (3) Only one cash bail receipt book shall be maintained at the police station and in use at any one time at any police station.
- (4) When not in use, the cash bail receipt book shall be under lock and key and all unused books shall be kept in a separate place, under lock and key and the release of detained persons or prisoners shall comply with section 123 and 124 of the Criminal Procedure Code.
- (5) An officer at the station, other than the officer in charge of the police station, may not release, on the security of cash bail any suspects arrested by officers of another Service or the Directorate

unless authorized by Deputy Station Commander, the APS Station officer or the Directorate of Criminal Investigations officer in charge at the station.

- (6) A police officer releasing a suspect on bail or bond shall satisfy himself or herself that the suspect shall honour the bail or that there exists no sufficient ground to continue detaining such an arrested persons.

29. Access and cooperation.

- (1) A police officer deployed in the Service and the Directorate of Criminal Investigation shall have access to the police station physical space for service delivery, access to records, facilities, services and documents necessary for execution of their duties.
- (2) A police officer in a particular police station shall#
 - (a) undertake his or her duties in consultation and cooperation with other police officers;
 - (b) cooperate in the interest of service delivery for the achievement of the mandate of the Service; and
 - (c) assist other police officers, to the fullest extent possible, and shall share information accordingly.
- (3) Where a dispute arises between the officers at the station level, the matter shall be referred to the Station Commander for direction.
- (4) Officers with supervisory and command responsibility shall assist and mentor other officers in the Service at the police station in order to enable them carry out their duties efficiently.

30. Cooperation with other entities.

- (1) The police commanders within the jurisdiction of a police station shall corporate with each other and engage in joint security operations with other government departments and other security organs in order to ensure the safety and security of the public.
- (2) The police commanders specified under paragraph (1) shall develop operation orders, deployment schedules, plans, budgets and any other relevant document in respect to joint operations and shall coordinate such joint security operations where applicable on rotational basis.
- (3) The station commander shall retain superintendence over such operations.

31. Handing-over procedures.

Where a police officer from the post, out-post, camps or other police office is handing over suspects, property or exhibit at the station, the officer concerned shall enter details of the suspects, property or exhibit received in the handing over or taking over register and shall counter sign it and record such transactions in person at the Station Occurrence Book.

32. Services at police stations.

- (1) The officer-in-charge at the station, posts, outposts and such other police premises where there are designated places of custody shall maintain cells and ensure that suspects in custody are fed accordingly.
- (2) Meals shall be ordered from an appointed contractor, but in exceptional cases may be obtained from a local hotel or restaurant.
- (3) A prisoner's meal requisition form for each such order shall be made out and the number recorded against the relevant Occurrence Book entry.
- (4) A bill for the supply of prisoner's meals shall be verified against the duplicate meal requisition and certified correct by the officers in charge of the police premise before payment is made.

- (5) The Officer-in-Charge shall ensure that prisoners' blankets are aired daily and washed when necessary and care of the prisoner is accorded importance.

33. The National Police Service crest.

For the purpose of section 40 of the National Police Service Act, 2011, all documents commonly used at the police station shall bear the National Police Service crest.

34. Station Commanders to decide.

The station commander's decisions on all issues pertaining to the care, custody and maintenance of suspects and the general maintenance of the cells shall always prevail.

35. Protection of information.

- (1) A police officer shall not disclose information in his or her possession to a third party.
- (2) The station commander shall handle all media interviews.
- (3) Under the provisions of paragraph (1), the circumstances under which information shall be protected are as follows—
 - (a) for security purposes, no information regarding a subject which is classified as secret or officially withheld from publication by any service or any information given which is likely, if published to prejudice, demean, distort the image, threaten the safety of officers of another service or prejudice the success of their operations at the police station, may be disclosed;
 - (b) for confidential purposes no information may be given from official police records at the police station and a statement made to the officers of any Service by a third party may not be disclosed;
 - (c) for general reasons, no information may be given which may affect either a specific or possible concerned service, police investigations or may interfere with the execution of the function of respective Services at police station or the prosecution of an offender; and
 - (d) no information may be given to members of the public which may sabotage actions of another service or officer.

36. Establishment of police station joint operation committee.

There is established a police station joint operation committee under each designated police station comprising of the following officers—

- (a) the Station commander;
- (b) the Administration Police Ward Commander; and
- (c) a police officer from the Directorate of Criminal Investigations nominated by Director of Criminal Investigation Subcounty Officer.

37. Functions of the Police Station Joint Operation Committee.

- (1) The functions of the Police Station Joint Operation Committee shall be—
 - (a) to monitor and evaluate performance at the police station;
 - (b) to evaluate a police station strategy in response to a particular area challenges;
 - (c) to resolve conflicting issues at the police station;
 - (d) to provide assistance to members of the public when in need;

- (e) to address the police station stakeholders' concerns;
- (f) to prepare security briefing reports and forwards them to the relevant security committee;
- (g) to prepare and plan operation orders when in need;
- (h) to document police station standing orders; and
- (i) to perform any other role as may be assigned, from time to time, by the County or District Security Committee.

38. Victim support schemes.

- (1) The duty of a police officer of the Service and the Directorate of Criminal Investigations at the police station shall be to jointly administer a facility that registers the victims of crimes and violence within their areas of jurisdiction and establish support schemes for such victims.
- (2) A victim support schemes shall include contacts for reference and special facilities in the police station where police and other stakeholders may provide specialized support by qualified and certified professionals to help victims of crime.

39. Police post or outpost.

- (1) The primary function of any police out-post, patrol base or unit base is the prevention of crime and all officers-in-charge of out-post or patrol base and police post shall organize and maintain an efficient system of patrols, beats and ambushes, both by day and night, throughout their areas.
- (2) Under the provisions of paragraph 38, patrolling shall be a duty for which interest; initiative and sense of responsibility are maintained at a high level.
- (3) The Officer-In-Charge of an out-post or patrol base shall exercise close supervision of the patrols and take keen interest in the work that the officers are performing and the Officer-In-Charge shall also employ intelligence and initiative in providing variation in the objects of the patrols.
- (4) Each police out-post or patrol base and post shall establish a system for receiving, recording and reporting complaints by members of public in their areas of jurisdiction.
- (5) A police officer-in-Charge of a police post shall perform the following duties—
 - (a) undertake police operations in consultation with officers in charge of police station from both services in his or her area of jurisdiction;
 - (b) provide assistance to officers in charge of police station when in need;
 - (c) assign investigation officers to all cases booked at the post;
 - (d) supervise activities of the post and out-post or patrol base in the case of administration police service and Kenya Police Service respectively;
 - (e) submit daily, weekly and any other report or returns to the police station and other relevant authority;
 - (f) take part in station community policing forums;
 - (g) issue relevant police documents to members of public when in need on behalf of police station;
 - (h) summon witnesses to appear before him/her in cases reported at the post;
 - (i) document post, out-post or patrol base standing orders;
 - (j) coordinate the activities of the members of the national police reserve;
 - (k) coordinate area community policing activities;

- (l) assist officers in charge of police station from the respective service in crime mapping and identifying crime hot spots;
- (m) lodge complaints to their respective sub-county commanders in respect to cases mishandled in court;
- (n) implement decisions of the police station joint operation committee; and
- (o) perform any other duty as may be assigned to him by the Officer-in-Charge of the police station or the Sub-County Commander of the concerned service.

40. Unit and formation camps.

- (1) A unit base shall be established under the provisions of the section 23(d) of the National Police Service Act, 2011.
- (2) The unit base shall serve as the Headquarters of the Units and Formations.
- (3) Where a unit operates a camp within the jurisdiction of a police station, a camp commander shall attend station joint operation meetings.
- (4) A unit camp commanders shall take part in planning operation orders, and where necessary unit camp commanders shall take charge of any operation that has a bearing on their specialized mandate and no division of authority shall exist in this instance.
- (5) Where a unit camp has a designated lock up facility or a place of custody, a suspect shall not be detained for more than fifteen hours and efforts to escort the detainee to the nearest police station shall be made by the unit camp commander.
- (6) In the event that during joint operations an arrest has been made by a police officer from a specialized unit, general duty officers shall receive the suspect and record the particulars of the suspect in all relevant records.

41. Deployment of the Administration Police Service in the police station.

The officer in charge of the police station and the Ward Commander Administration Police Service shall work in consultation and coordination as may be appropriate in the circumstances, in the management of criminal cases and of arrested, detained or accused persons in custody at the police station.

Chapter 57 PRIVATE USE OF POLICE

1. Authority to deploy police officer for private purposes.

- (1) Subject to section 104 of the National Police Service Act, 2011, the Inspector- General may, on application by any person, station an officer for duty on such place and for such period as the Inspector General may approve.
- (2) Subject to sub-paragraph (3), the Inspector-General may delegate the powers to—
 - (a) a county commander; or
 - (b) the county formation or unit commanders, where private use of a police officer is sought for a period not exceeding three months.
- (3) Notwithstanding sub- paragraph (2), where a person who intends to engage the services of a police officer for a definite period exceeding three months, he or she shall make an application to the respective Service Headquarters:

Provided that where the person desires to discontinue the services of a police officer deployed for private purposes, he shall give the respective Deputy Inspector-General a one month's notice.

- (4) Any deployment for private purposes shall be for the protection of the public good or interest.
- (5) A police officer shall not be deployed for any private purposes other than in accordance with the provisions of this Standing Order and the relevant laws.
- (6) The Inspector-General shall have the discretion to determine the number of police officers to be deployed, the purpose and the period for such deployment and may accept or decline to authorize such deployment where he considers it appropriate.

2. Procedures for making an application.

A person making an application for private police use of a police officer shall—

- (a) apply in the form and manner prescribed by the Inspector-General; and
- (b) pay the prescribed charges.

3. Review of rates.

- (1) The Inspector-General shall appoint a committee that shall sit annually to review charges for the hire of police for private purposes.
- (2) The charges reviewed under sub paragraph (1) as determined by the Inspector-General shall be published from time to time in the *Kenya Gazette* and in the Service Orders as appropriate:

Provided that monies shall be paid to the Treasury as appropriations-in-aid.

4. Register to be maintained at county headquarters.

- (1) A register for recording the applications for private use of police under paragraph 1 of this Chapter shall be maintained at the County Headquarters.
- (2) A police officer responsible for maintaining register under sub paragraph (1) shall record the —
 - (a) names of the applicant;
 - (b) nature of the function or entertainment;
 - (c) nature of duty;
 - (d) numbers, ranks and names of the police officers;
 - (e) date and hours or days of employment;
 - (f) amount of charges received; and
 - (g) number and date of receipt issued

5. Conditions of hire.

- (1) The agreement for private use of police officers shall be made and the charges paid by the applicant before the deployed officer is released to the private premises or in a public place where entry is temporarily regulated by the charging of a fee, such as race meetings and football matches.
- (2) A charge shall not be made for police officers employed outside such places, where the police officers are responsible for the prevention and detection of crime or the regulation of traffic on public roads.
- (3) Where any doubt arises as to whether charges should be levied, such issue should be referred to respective Service Headquarters for determination.

Chapter 58

PUBLIC ORDER MANAGEMENT

1. Obligation of the Service in promotion of human rights.

- (1) The Service shall ensure the protection of the rights and fundamental freedoms of expression, association and assembly demonstration, picketing and petition.
- (2) A police officer shall conduct himself or herself in a manner that respects the rights and fundamental freedoms of people in all circumstances.
- (3) It shall be the duty of the police commander to ensure that a police officer under his or her command behaves in accordance with the standards set out in these Orders.
- (4) A person organizing a public event shall give an advance notice of the public event to the police officer in charge of the area in which the event is to be held and liaise with police officer with regards to the behavior, conduct of the event and any lawful conditions necessary particularly if there is a possibility of disorder arising from the threat of disruption from others.
- (5) A police officer shall always consider the rights and fundamental freedoms of members of any opposing group and ensure that there is fair treatment.
- (6) Where there is a reasonable belief that there are no other means of preventing a breach of the peace the limitations to rights and fundamental freedoms may be employed.
- (7) A police officer shall do everything possible to ensure that all demonstrations are conducted peacefully.

2. Severe disorder and riots.

In cases of severe disorder and riots reference should be made to the operational manuals on guidance on these matters.

3. Use of force and firearms.

- (1) Every police officer shall discharge the functions and the powers conferred under the law by use of non-violent means.
- (2) A police officer may only use force and firearm in accordance with the rules laid down in the Sixth Schedule to the National Police Service Act, 2011.

4. Debriefing.

The Service shall organize a debriefing exercise after every public event to identify any deficiency in planning and the lessons learnt .

APPENDIX 58— USE OF FIREARMS BY POLICE

1. The use of a firearm against any person places a legal and moral responsibility on a police officer
- (1) and there should be no doubt in his or her mind of the circumstances in which he or she is justified in using his or her firearm or in which his or her duty compels him or her to use it.
- (2) legal provision for the use of firearms by police officers is laid down in the Sixth Schedule of the National Police Service Act, 2011.
2. Firearms may only be used when less extreme means are inadequate and for the following purposes —
 - (a) saving or protecting the life of the officer or other person; or

- (b) in self-defense or in defense of other person against imminent threat of life or serious injury.
- 3. An officer intending to use firearms shall identify themselves and give clear warning of their intention to use firearms, with sufficient time for the warning to be observed, except where doing so would place the officer or other person at risk of death or serious harm or if it would be clearly inappropriate or pointless in the circumstances.
- 4. A police officer shall make every effort to avoid the use of firearms, especially against children.
- 5. Any use of firearm, even if there's no injury, shall immediately be reported to the officer's superior.
- 6. Any use of fire arms that leads to death, serious injury and other grave consequences shall be reported by the officer in charge or another direct superior of the person who caused the death or injury, to the Independent Police Oversight Authority who shall investigate the case.
- 7. The Inspector-General is not precluded by virtue of paragraph (5) from conducting investigations into the matter.
- 8. A police officer who makes a report to the Independent Police Oversight Authority in accordance with paragraph (6) shall—
 - (a) secure the scene of the act for purposes of investigations; and
 - (b) notify the next of kin, their relative or friend of the death or injury as soon as reasonably practical.

Chapter 59

NATIONAL POLICE SERVICE RECORDS

1. List of police records.

The books and records listed in Appendix 59 (a) shall be kept at County, Formations, Sub-County divisions stations and posts as provided thereof.

2. Instructions for keeping police records.

- (1) Police records shall be kept in accordance with the relevant appendices to this Chapter or such other instructions as are indicated in Appendix 59 (a).
- (2) All records shall have the instructions for keeping them printed on the inside covers.

3. Destruction of records.

- (1) During the first quarter of each year, every officer-in-charge of a Sub-County or similar formation shall examine the records maintained in his or her Headquarters, the police station and SubCounty under his or her command to determine the destruction or disposal of records which are no longer in use.
- (2) When records maintained under sub paragraph (1) are to be destroyed, the documents shall be shredded or burnt under the supervision of the officer concerned.
- (3) The period for which records should be preserved and the methods of disposal are indicated in the fourth and fifth columns of Appendix 59(a).
- (4) The records of a police post and outpost shall be returned to the parent police station and Sub-County headquarter after completion and shall be disposed of according to the instructions in sub paragraph (3).

- (5) On the fifteenth of April of each year, the Sub-County Commanders shall forward a certificate to County Headquarters certifying that records have been checked and destroyed in accordance with this Order.

4. Notebooks.

- (1) A police officer shall possess a Service standard-type notebook and pen, supplied by the respective Service Quartermaster wherein the police officer shall record details of an incident or other material of evidential value.
- (2) The following instructions shall apply in respect of the notebook under sub-paragraph (1)—
 - (a) the note books shall be kept neatly and be always ready for use;
 - (b) a margin for recording dates, times and place of an entry shall be ruled at the left side of each page;
 - (c) incorrect entries shall be crossed out and initialled;
 - (d) pages shall be numbered and shall not be removed from the notebook;
 - (e) all entries shall be in the handwriting of the police officer in possession of the notebook and the names of people and places shall be recorded in capital letters;
 - (f) all entries shall be accurate and shall be made at the time of the inquiry or soon thereafter and shall be signed by the officer concerned;
 - (g) all particulars shall be transferred to the relevant case file;
 - (h) a notebook may be produced in court and may be examined by the court;
 - (i) notebooks shall be inspected frequently and displayed at kit inspections; and
 - (j) when filled up, the notebooks shall be retained until their destruction is ordered by the Formation Commander.
- (3) A police officer shall carry a copy of the Accident Report Form, P.41 in his or her notebook for ease of reference and for the purpose ensuring that all necessary data in respect of road accidents are recorded by investigating officers.
- (4) The general instructions relating to all police records shall include #
 - (a) records shall be maintained neatly and legibly;
 - (b) except where otherwise stated in the instructions for keeping any particular record, all entries shall be in blue, blue-black, or black ink; and
 - (c) except where otherwise stated, all entries in police records shall commence with the number one on the 1st January of any particular year and shall be consecutive throughout the year and a new series of numbers shall be commenced each 1st January of every year.

5. Briefing file.

- (1) A loose-leaf "Briefing file" shall be maintained in the report office of all police establishments.
- (2) The Briefing file under sub paragraph (1) shall contain details of—
 - (a) wanted persons;
 - (b) stolen property;
 - (c) current crime;
 - (d) lost property;

- (e) authorized processions; and
 - (f) all other matters of local general police interest.
- (3) The members of staff of a police station and sub-county shall provide the Officer-in- Charge with items for inclusion in the Briefing file which shall be brought up to date as items are provided and the Officer-in-Charge of the police station shall be responsible for keeping the file.
 - (4) Items from the Briefing file shall be read over to members of staff of a police station and sub-county at the daily tamaam parade and when parading to go on duty and the officer reading out the items shall initial and date the file after the reading.
 - (5) When items become redundant, the items shall be deleted from the Briefing file.
 - (6) All items in the Briefing file shall be kept for a period of seven days before being destroyed.

6. Cell register.

- (1) Where a prisoner is placed in a cell in a police station or other designated places of custody, all the particulars contained in columns 1 to 4 of the Register shall be completed and temporary removals shall be recorded in column 5 and final removals shall be recorded in column 6.
- (2) A cell register shall #
 - (a) be opened each day, at midnight;
 - (b) consist of the names of prisoners in the cell at the time, for the first entry and shall be in red ink and the entry shall be cross- referenced with the original entry when the prisoner was placed in the cell;
 - (c) in respect of a new prisoner, the entry in the register shall be in black ink and shall be made when the prisoner is placed in the cell;
 - (d) be closed at midnight on the following day and the balance of prisoners carried forward to the new day in the manner prescribed.
- (3) The serial numbering in the Register shall commence with the number one from midnight and shall be numbered consecutively throughout the day to the following midnight.
- (4) Where a prisoner is re-arrested on the same charge, after the prisoner had previously been arrested and then released or discharged, the serial numbers for both entries in the Register shall be crossreferenced and the entry concerning the re-arrest shall be boldly endorsed in red ink with the word "re-arrest" and the entry shall be supported by a red-ink entry in the Occurrence Book giving full reasons for the re-arrest of the prisoner.

7. Charge register (penal code cases and cases under local and special laws).

- (1) All charges under the Penal code, under section 10 of the Stock and Produce Theft Act and under sections 3, 4 and 6 of the Prevention of Corruption Act, shall be entered in the Charge Register for Penal Code Cases.
- (2) All charges under local laws shall be entered in the Charge Register for those cases, except traffic cases taken up by traffic branches which shall be entered in a traffic Charge Register.
- (3) Offences under section 9 of the Stock and Produce Theft Act shall be entered in the Charge Register for Local Laws.
- (4) An entry of information of an offence shall be made in the Charge Register immediately the information has been reduced in writing.

- (5) Entries under sub-paragraph (4) shall be entered and numbered consecutively according to the time of the receipt of the report, and the case file relevant to the information shall be given the same number as that entered in the Charge Register.
- (6) The following entries may be made in red ink—
 - (a) in the “Offence, Section and Law” column for non-cognizable offences;
 - (b) in the “Result of Case” column when the case has been expunged or closed, undetected or when an accused person has been dismissed, discharged or acquitted or has died before the completion of the trial;
 - (c) in the remarks column of the Register whenever a case file is transferred one police station to another; and
 - (d) in respect of the value of property stolen and recovered when that property is cash.
- (7) A pencil shall be used for the entry in the “Result of Case” column when an accused is known and the record of action to trace him or her has been transferred to the Register of Wanted Persons.
- (8) A Complaint which discloses a cognizable offence, except where the investigation reveals that no offences has been committed, shall be entered in the Occurrence Book and Charge register and in due course shall be expunged as “No Offence Disclosed” or “Found False”.
- (9) A case should not be closed as “Found False” unless enquiry shows beyond reasonable doubt that the case is false and consideration shall invariably be given to the question of preferring a charge of giving false information to a person employed in the public service and such cases shall be ruled through with a single diagonal red ink line.
- (10) The authority to close a case undetected lies with the Officer-in-Charge of the Sub-County concerned in liaison with the respective deputy station commander, who shall not close a case until he or she is satisfied that all possible diligence has been used to trace the offender.
- (11) A case which has been expunged or in which the accused has been dismissed, discharged, acquitted or has died before completion of trial shall not be closed until it is reviewed by the SubCounty Officer, who shall satisfy himself or herself that all possible actions have been taken and no case shall be finally closed until all columns of the Charge Register have been completed.
- (12) Where a case has been closed pending the arrest of a known accused person, the serial number of the relevant entry in the Register of Wanted Persons shall be entered in the remarks column of the Charge Register in red ink, and an entry made in pencil shall be made in the result of case column as provided under paragraphs 4, 5, 6, and 7.
- (13) Where a case has been reported at one police station and it becomes apparent that the offence took place in another police station area, the case file shall be transferred to the correct police station and the Charge Register entry shall be ruled through with a single diagonal red ink line and a note made in the remarks column to the effect that the matter has been transferred to the other police station.
- (14) The type of property stolen in theft cases shall invariably be included in the offence column of the Charge Register, for example, when clothing is stolen the relevant entry should be “Theft of Clothing” followed by the section of law.

8. Traffic charge register.

- (1) Traffic Charge Registers shall be maintained at—
 - (a) all traffic branches; and
 - (b) all police stations where a traffic officer is stationed.

- (2) All charges under the Traffic Act and Rules, the National Transport Safety and Authority Act, the Motor Vehicles Insurance (Third Party Risks) Act, and other local By-laws concerned with traffic matters shall be entered in Traffic Charge Registers.
- (3) An entry of every information of an offence shall be made in the Charge Register immediately the information has been reduced to writing and all entries shall be entered and numbered consecutively according to the time of the receipt of the report, and the case file or charge sheet relevant to the information shall be given the same number as that in the Charge Register.
- (4) The following entries shall be made in red ink—
 - (a) in the “result of case” column where the case has been expunged or when an accused person has been dismissed, discharged or acquitted or has died before completion of trial; and
 - (b) in the remarks column whenever a charge sheet or case file is transferred from one police station to another.
- (5) A complaint disclosing an offence, except where the investigation reveals that no offence has been committed, shall be entered in the Occurrence Book and Charge Register and in due course shall be expunged as “No Offence Disclosed.”
- (6) Where a case has been reported at one police station and it becomes apparent that the offence took place in another police station area, the charge sheet and case file shall be transferred to the correct police station and charge register entry shall be ruled through with a single diagonal red ink line and a note made in the remarks column to the effect that the matter has been transferred to the other police station.

9. Civil process register.

- (1) Civil warrants of every description such as civil summonses or decrees, notices to show cause, distress warrants in criminal cases, among others shall be entered in the Civil Process Register.
- (2) Immediately any warrant is received at a police station, it shall be stamped with the police station stamp in the top right-hand corner and the Civil Process Register number shall be endorsed thereon within the mark of the police station stamp.
- (3) Civil warrants of arrest shall not be transferred to the Register of Wanted Persons.
- (4) Under the terms of section 40 of the Civil Procedure Act, a civil warrant of arrest or warrant of attachment may be executed at any time, provided that no dwelling house shall be entered for the purpose of making an arrest between sunset and sunrise.
- (5) Sections 40, 44 and 45 of the Civil Procedure Act lay down certain provisions which shall be adhered to in respect of the execution of civil warrants of arrest or attachment.
- (6) Sections 30 and 31 of the Civil Procedure Act provide that civil process can only be executed in the area of jurisdiction of the court which issued it, but also provides that when process from one court has been endorsed by a court holding jurisdiction in any other area, such process shall be valid in that area, therefore, shall only be transferred from one police station to another through a court having jurisdiction in the area where the process is to be executed.
- (7) The provisions under sub paragraph (6) shall not apply when the police stations concerned lie within the same area of jurisdiction.
- (8) Property seized shall, whenever practicable, not be removed from the place of attachment, but shall in such instances be adequately sealed and secured by the attaching officer so as to prevent interference, use or removal.
- (9) Where property is seized on an attachment or a distress warrant, the duties of the police cease when the property is handed over to the court issuing or endorsing the warrant and the court shall be immediately informed when the property has been attached or seized.

- (10) A police officer shall not act as an auctioneer or seller of attached or seized property, nor shall the officer handle the proceeds of such sale.
- (11) Special expenditure shall not be incurred by police, such as the use of police vehicles in the execution of civil process, unless specifically sanctioned by the court.
- (12) Where a civil warrant has been forwarded to the police for execution, the attaching creditor or the creditor's advocate is at liberty to go to the police and endorse the warrant to the effect that he does not wish it to be executed and the warrant shall be returned to the court unexecuted for the reasons endorsed thereon, and a receipt shall be obtained from the court and posted in the Register.
- (13) The National Police Service shall charge fees for any civil process in accordance with the scales, as the Attorney General may, from time to time, determine.
- (14) The fees chargeable by the police under paragraph (13) shall be—
 - (a) service of civil process;
 - (b) minimum service fee prescribed when the distance does not exceed two miles;
 - (c) fees under sub paragraph (15), where applicable; or
 - (d) execution of civil warrants of arrest.
- (15) When the execution of a warrant necessitates the absence of an officer from his or her station for more than six hours, the fee for the first six hours and for each day or part of a day thereafter shall be as set out in Appendix 59 (b).
- (16) In addition to the fees charged under sub paragraph (15), the expenses laid out in Appendix 59 (c) may be charged at the rates laid down, from time to time in Section J of the Code of Regulations.
- (17) The following charges shall be raised in respect of unsuccessful service—
 - (a) Minimum service fee, sh. _____
 - (b) hire of police transport Ksh._ per Km;
 - (c) rail fares;
 - (d) bus fares;
 - (e) private car mileage; and
 - (e) subsistence.
- (18) On completion of the service or execution, the Officer-inCharge of the police station shall complete both copies of the proforma and forward them to Sub-County Headquarters, together with the warrant.
- (19) The details on the proforma forwarded under sub paragraph (18) shall be checked at Sub-County Headquarters and a serial number shall entered on the top left- hand corner.
- (20) The warrant, where it has been presented, shall be returned to the Court, and the original proforma shall be dispatched to Service Headquarters at the end of the month in which the warrant was served.
- (21) A duplicate of the profoma dispatched under sub paragraph(20) shall be retained at the Sub-County Headquarters in a special file maintained for that purpose, on the inside of which a register of serial numbers shall be maintained.
- (22) All out of pocket expenses such as meals or travelling by private motor vehicle shall be paid by the court, police officers are not permitted to receive these expenses from any person other than the court.

- (23) When a police officer receive cash against a judgment debt such cash shall be handed to the court immediately, the amount received shall be entered in the Register and a formal acknowledgement shall be issued by the court and shall be filed in a special file maintained for the purpose.
- (24) In every instance in which a distress warrant is issued by a court for non-payment of a fine in a criminal case, a fee, as prescribed by the Inspector-General shall be collected by the police officer executing the warrant in addition to the amount of fine collected.
- (25) The amount of the fee prescribed under sub paragraph (24) shall be endorsed on the warrant, and the fee itself shall be forwarded to the court, together with the amount received under distraint, and the particulars of amounts collected shall be entered in the Remarks column of the Register.
- (26) No fee is chargeable when no cash or property is distrained.
- (27) A warrant which is unexecuted for any reason shall be returned to the issuing court with an endorsement as to the reason for non- execution and a receipt shall be obtained and posted in the Register.
- (28) At the end of each year an abstract in the form provided under Appendix 59(d) shall be entered after the last entry.

10. Civilian Firearms Register.

- (1) Every deposit of a firearm or ammunition at a police station shall be entered in the Civilian Firearms Register. in.
- (2) The Civilian Firearms Register shall have columns containing the following details—
 - (a) column one— the annual serial number and the receipt number;
 - (b) column two—the date the arms or ammunition were received;
 - (c) column three—the name and address of the depositor, the firearms certificate and date of expiry;
 - (d) column four— details of make, type, calibre and identity number and remarks as to the condition of the firearms such as “rusty barrel” ‘ broken stock’ ;
 - (e) column five—ammunition fitting a firearm which is being deposited at the same time shall be entered in line with the respective firearm, If no ammunition is deposited the word “nil” shall be inserted;
 - (f) column six—shall indicate the reason for the deposit, example “temporary safe custody”, “for transfer to police arms stores”, or “destruction”;
 - (g) column seven—shall indicate the method of disposal, example “returned to owner”, “sent to police arms stores” etcetera.etcetera. Columnmn 9 The written receipt of the owner shall be entered in the lower part of this column, or if the firearms or ammunition have been forwarded to the Police Arms Stores, the receipt number shall be quoted
- (3) Where any entry has been completed in accordance with the above instructions, it shall be ruled through with a single diagonal red line.
- (4) Where more than one firearm or type of ammunition is deposited and less than the total number withdrawn, the entry shall be completed and the remaining firearms or ammunition shall be carried forward to a completely new entry and the original entry shall be closed.
- (5) Under no circumstances shall a civilian firearm be retained in a police station or Sub-County Headquarters for more than one month.
- (6) Any firearms remaining after the period under sub paragraph(5) shall be sent to the Police Arms Store.

- (7) Where firearms belonging to a rifle club are held at a police station in a container which only a club official holds the key, the only record of deposits and withdrawals that is required is an Occurrence Book entry describing purpose of visit and countersigned by the official.
- (8) When firearms or ammunition are accepted for onward transmission to a police arms store, the Station Officer shall notify Central Firearms Bureau of the details of the owner, firearms and ammunition.

11. Defaulters Register.

- (1) A Defaulter's Register shall be kept at County, SubCounty and Police Station levels.
- (2) The following entries shall be made in the defaulters register—
 - (a) at County level, all publication in County Weekly Orders or Part one - orders;
 - (b) all offences against discipline in respect of which—
 - (i) proceedings have been remitted to County Headquarters or are to be remitted to Service Headquarters for award of punishment;
 - (ii) proceedings have been remitted to the respective County Headquarters or which are to be remitted to the respective Service Headquarters by way of appeal;
 - (iii) proceedings have been called for by way of revision; or
 - (iv) proceedings conducted by the respective County Headquarters staff,
 - (c) at Sub-County level, all offences against discipline in respect of which —publication in County Weekly Orders or part one orders is required;
 - (i) proceedings have been remitted to the respective SubCounty Headquarters or are to be remitted to higher authority for award of punishment;
 - (ii) proceedings have been remitted to the respective SubCounty Headquarter or are to be remitted to higher authority by way of appeal;
 - (iii) proceedings have been called for by way of revision; or
 - (iv) proceedings conducted by the respective Sub-County Headquarter staff;
 - (d) At Police Station level for all offences against discipline tried, whether the offender is convicted or acquitted except that when any punishment is suspended under the provisions of National Police Service Act, 2011 no entry shall be made in any record unless or until the punishment is carried into execution
- (3) Proceedings in inquiries in which the punishment is suspended shall be retained on a separate file, if at the end of the period of suspension the sentence is remitted the proceedings shall be destroyed, and if the punishment is confirmed or reduced particulars shall be entered in Defaulters Registers and Service Registers.
- (4) A Defaulters Sheet shall be prepared in all inquiries conducted formally.
- (5) When proceedings are to be submitted to the respective Service Headquarters, four copies shall be prepared to the respective County Headquarters, three copies shall be prepared and to Sub-County Headquarters two copies At each level one copy shall be extracted for record purposes and the proceedings shall be returned to the formation of origin.
- (6) When a police officer is charged with being drunk, while on duty, the word 'drunk' shall be underlined in red ink.
- (7) No entries of a punishment awarded shall be made in the Service Register unless or until it has been published in the Service Standing Orders or County Weekly Orders.

- (8) When inquiries are held summarily, the words “dealt with summarily” shall be entered in the last column of the Register in red ink, however, punishments awarded in Summary Inquiries shall not be entered in Service Registers under any circumstances.
- (9) A Defaulters Registers shall have a column which shall be divided into two, for entering the Miscellaneous Receipt number in respect of fines and Service Orders or County Weekly Orders reference number to the punishment.

12. Duty Roster.

- (1) A duty roster shall be maintained at all Sub-counties, stations, posts, outposts and traffic offices.
- (2) The particulars to be recorded in the duty roster shall be prepared a week in advance for the period 00.01 hrs Sunday to 24.00 hrs Saturday, by the Officer-in-Charge of the police establishment or his or her deputy, who shall personally assign to all personnel, on the strength of the establishment, the duties they shall be required to perform during the week.
- (3) Duties shall alternate weekly, except those performed by personnel specially employed, and shall be varied so that personnel may acquire a wide experience of work done by the unit.
- (4) The Officer Commanding Station, Crime Branch and any other specially employed personnel shall perform two night duties each week, one before midnight and one after midnight, of not less than two hours’ duration.
- (5) Each weekly record shall commence with particulars of establishment and strength as laid out in Appendix 59 (e).
- (6) Establishment figures shall be entered in black ink and strength figures in red ink immediately below the expressions ‘D’ and ‘N’ for each day of the week and the date shall be recorded in red ink.
- (7) The names appearing at the beginning of the first page of each weekly record shall be those of personnel specifically employed on duties which do not vary, such as Crime Branch staff, and shall be followed by those assigned set duties, such as report Office, beats and patrols, court-orderlies, etcetera.
- (8) The record shall conclude with the names of personnel who have not been assigned any specific duties and against these the word ‘available’ shall be entered to indicate that the men are available to undertake miscellaneous duties as required.
- (9) The index letters in Appendix 59 (f) shall be inserted in the ‘Day’ and ‘Night’ columns to indicate the disposition of the strength of the formation.
- (10) Personnel not performing an assigned duty, but who are present at the Sub-county station post or outpost attending a parade or lecture, shall not be shown in the duty roster as performing a duty.
- (11) The duty roster shall be kept in the office of the Officer-inCharge of the respective Sub-Counties, station, post or outposts and be kept up to date by the Officer-in-Charge or his or her deputy.
- (12) The duty roster shall be available for inspection at all times and the inspecting officers, when initialling it, shall do so immediately above the date of their visit.

13. Exhibit Roster.

- (1) An Exhibit Register shall be maintained at all Sub-county, police stations, posts, outposts, prosecutions branches, Directorate of Public Prosecutions formations and traffic branches.
- (2) The receipt of all exhibits, except photographs, sketches, plans and other documentary exhibits normally retained in the investigation file, relative to any case whether Penal Code, local or special law inquest, accident, fire etcetera, investigated or dealt with by a police station or other formation mentioned in sub paragraph (1) above shall be entered in the Exhibit Register in accordance with the columns provided in the Register.

- (3) Each entry in the Exhibit Register shall be given an annual serial number.
- (4) An entry in the description column shall be sufficient to enable an exhibit to be readily identified and where the exhibit bears a serial number the serial number shall be quoted.
- (5) Whenever an exhibit is temporarily removed from the exhibit store or other place of safe custody, an entry shall be made in the column headed 'Temporary Removals' giving the reason for and the date of the removal.
- (6) When the exhibit is finally disposed of, the signature of the person receiving it shall normally be placed in the column headed 'Final disposal, Signature of Recipient and Date' and in instances where this is impracticable, the recipient's signature shall be obtained on a separate receipt which should be pasted in the register in the appropriate column.
- (7) Immediately an exhibit is received and entered in the Exhibit Register, the exhibit shall be labelled with an exhibit label which can be either a paste on or a tie on, or if it is impracticable to affix either of these official labels, marked with the register annual serial number and case number.
- (8) All exhibits shall be placed in safe custody to prevent access to or interference by any unauthorized person.
- (9) Small exhibits and valuables such as jewellery and cash shall be placed in suitable sized envelopes which shall be marked as instructed in this paragraph.
- (10) Valuables shall be locked in safes or cash boxes and not placed in exhibit stores with bulky and relatively valueless articles.
- (11) Arms and ammunition shall be locked in armouries.

14. Fire Inquiry Register.

- (1) Pursuant to section 2 of the Fire Inquiry Act, a police officer shall be required to attend at the scene of a fire which causes an injury to person or property, to perform such services as may be required and to make inquiry into the origin or cause of the fire.
- (2) Having attended at the scene of a fire, the police officer shall enter the particulars of the fire in the Fire Register as provided in the relative columns.
- (3) Particulars of the fire shall be forwarded to a Magistrate having jurisdiction in the area on the form prescribed in the Schedule to the Fire Enquiry Act and provided on the Fire Report form, Police 39.
- (4) Particulars of grass fires need not be entered in the Fire Register nor reported to the Magistrate unless injury to property or person occurs as a result of such fires.
- (5) Nothing in this paragraph precludes a police officer from acting in accordance with his or her duty in endeavouring to prevent injury to property or person at the scene of a grass fire, as provided in section 12 of the Grass Fires (Control) Act.

15. Leave Register.

- (1) A special leave roster shall be maintained at all SubCounty Headquarters showing the names of all inspectors and subordinate officers in the Sub-County who are due for leave during the ensuing six months, together with the dates such leave is due.
- (2) Generally, not more than one inspector or subordinate officer in ten should be on leave, either vacation or local, at any one time.

16. Lost and Found Property Register.

- (1) Reports of lost and found property shall be entered in the Lost and Found Register.

- (2) Lost property shall be entered in black ink and Found property in red ink, and all entries in respect of each article shall be made in the same coloured ink.
- (3) Care shall be taken to ensure that a correct description of property is entered.
- (4) Items of stolen property shall not be entered in this Register.
- (5) When property is returned to an owner, an entry to that effect shall be made in the "Final Order for Disposal" column and the signature of the owner shall be endorsed in the Remarks Column and shall be witnessed.
- (6) Where acknowledgement of returned property is made by letter, such letter shall be filed in a separate annual file maintained for the purpose and cross references shall be made in the appropriate column of the Register.
- (7) Pursuant to section 63 of The National Police Service Act, 2011, police officers shall take charge of unclaimed property, and an inventory of such property shall be furnished to the local Magistrate.
- (8) The inventory under sub paragraph (7) shall be made out in Form P.8, and when the form has been approved and signed by the Magistrate, shall be posted in a conspicuous place in the Court and at police stations.
- (9) The date on which the Form under sub paragraph (8) is posted shall be entered in the remarks column of the Register against the relevant entry.
- (10) Under no circumstances shall unclaimed property be returned to the finder, but shall be dealt with in accordance with the Magistrate's instructions, a finder may, however, receive such portion of the proceeds of the sale of such property as the Magistrate may direct in writing.
- (11) Where property has been unclaimed for six months after the date of posting of the notice referred to in sub paragraph (8), permission shall be obtained from the Magistrate for the sale of such property by public auction.
- (12) When the Magistrate has ordered that the unclaimed property be sold by public auction in accordance with the provisions of sub paragraph (11), a letter in the form set out in Appendix 59 (g) should be addressed to the auctioneer in triplicate.
- (13) A copy of the letter under sub paragraph 12 shall also be forwarded by the police station concerned to the Accounts Section at Service Headquarters in respect of property found in the Nairobi County, or to the County Paymaster concerned if the property was found in any other County.
- (14) Where the Magistrate has ordered that a proportion of the proceeds of the sale of unclaimed property be paid to the finder a signed copy of the Magistrate's order shall be attached.
- (15) When the auctioneer's cheque is received at Service Headquarters or by the Regional Paymaster, as the case may be, an advice of its receipt shall be sent to the police formation disposing of the property.
- (16) Unclaimed property liable to rapid decay shall be dealt with in accordance with section 63 of the National Police Service Act, 2011.
- (17) Any unclaimed livestock should be sent to the local pound and a receipt obtained. Thereafter it shall be treated in the same manner as other unclaimed property.
- (18) In the case of unclaimed firearms and ammunition the provisions of sub paragraphs (10) and (11) do not apply, the Magistrate may order that such firearms and ammunition to be disposed of in such manner as the Inspector General may direct.
- (19) The description of identifiable lost and found property shall be notified to the Director of Criminal Investigations and the neighbouring formations for circulation in the *Police Gazette*.
- (20) When the description has been circulated in the *Police Gazette* the *Gazette* reference shall be entered in the Remarks column of the Register.

- (21) Care shall be taken to ensure that, when applicable, *Police Gazette* notices are cancelled.
- (22) When each entry has been finally dealt with, it shall be ruled through with a single diagonal red ink line.

17. Pound Book.

- (1) A Pound Book shall be maintained at each Police Station Stock Theft Unit or specialized Anti Stock Theft Unit, to which a pound is attached.
- (2) Stock of all type whether stolen, unclaimed, seized or otherwise impounded through due process of law shall be entered in the Book and care shall be taken to ensure that an accurate description of the animals is recorded.
- (3) The following particulars shall be entered in a Pound Book—
 - (a) serial number entries to be given an annual serial number;
 - (b) full details of the area or location where the cattle were found to be given including map reference where applicable;
 - (c) number, description and type of stock, sufficient details to enable an easy identification of each animal;
 - (d) brand mark and its location if available shall to be quoted;
 - (e) name and address of the owner or other person in whose possession the animal were found; including the postal and physical address, name of the Chief and Sub-Chief, Location and Sub-Location;
 - (f) Reference Number — P.C.R., C.R. or L & F number;
 - (g) result, Court Case file number, if any Magistrate's order and instructions for the disposal of the animals;
 - (h) final disposal where the animals are returned to the lawful owner, or any other persons on the orders of the Court, signature of the person receiving them duly witnessed, by an independent person to be obtained in this column, however, if it is impracticable to do so, then the recipient and the witness's signature should be obtained on a separate receipt and posted in the Book and cross referenced with the case file or L&F entry.
- (4) No animal, which has been seized, found or otherwise impounded, shall be sold without a written court Order.
- (5) When the Magistrate authorizes the sale of any animal which has been seized, found or otherwise impounded, the animal shall be sold by public auction by an authorized and licensed auctioneer.
- (6) The proceeds of the sale under sub paragraph (5) shall be disposed of as directed by the Court;
- (7) The letter shall be addressed to the auctioneer in triplicate and one copy of the letter shall be retained in the station or units file and two copies sent to the Sub-County Commander who shall forward one copy to the Deputy Inspector General of the respective services, in whose County the pound is situated.
- (8) The copy of the letter referred to in sub-paragraph (7) duly signed and endorsed by the auctioneer shall be retained in the Book as evidence of disposal and pasted in the appropriate column.
- (9) When the auctioneer's cheque is received it shall be, paid into the Appropriations in Aid or the proceeds disposed off as directed by the Magistrate.
- (10) A police officer shall not undertake the sale of any cattle.

- (11) Where no licensed auctioneer is available, the matter shall be referred to the respective Sub-County commander who shall arrange, if necessary, in consultation with the County commander County, for an outside auctioneer to be contacted for that purpose.
- (12) The station or Unit Commander, or in his or her absence most senior officer in the command, shall carry out physical checks of all animals held in the pound twice every day, one in the morning and one in evening.
- (13) Upon completion of the inspection under sub paragraph (12) the station or Unit Commander shall personally record in the Occurrence Book the result of his or her inspection.
- (14) The County and Sub-County Commanders during their visits to a station, in which a pound is attached, shall check and verify the number of animals held against the pound book and details of such checks shall be recorded in the remarks column of the Book.
- (15) Every loss, theft, injury, illness or death of an animal held in a Police Pound shall be subject to an immediate and thorough enquiry by the most senior officer in the station.
- (16) Fees, as published from time to time in Service Orders, shall be levied in respect of all animals, which are held in the pound.

18. Occurrence Book.

- (1) Pursuant to the provisions of National Police Service Act, 2011, a certified true copy of an entry in the Occurrence Book (or record) is admissible in evidence in all legal proceedings and police officers shall ensure all entries in the Occurrence Book are accurate.
- (2) Pursuant to the National Police Service Act, 2011, a police officers shall ensure that all complaints and charges preferred, the names of all persons arrested and the offences with which such persons are charged shall be entered in the Occurrence Book.
- (3) In addition to what has been provided under sub paragraphs (1) and (2), entries shall clearly show the entire day's work performed by all ranks attached to a police station outposts, bases and unit bases.
- (4) All entries shall be as concise as possible, lengthy details are to be avoided.
- (5) The following entries shall be made in red ink—
 - (a) reports of non-cognizable offences when the reporter is referred to a Magistrate; and
 - (b) entries recording the re-arrest of a prisoner.
- (6) All entries shall be in the handwriting of the officer concerned.
- (7) Each day shall be calculated from 12.00 midnight to the next following 12.00 midnight.
- (8) Entries shall commence with number one each midnight and shall be consecutive throughout the twenty four hours to the next following night.
- (9) The first entry of the day shall state that the Occurrence Book is open for the new day with the number of prisoners in cells as per the opening of Cell Register for the new day
- (10) Other entries to be made in the Occurrence Book—
 - (a) complaints by prisoners;
 - (b) arrivals and departures of all police officers from any station shall be entered, together with a brief note as to the nature of the duty being performed;
 - (c) visits of inspecting officers; and
 - (d) all parades, drills, lectures, visits to beats, guards and patrols.

- (11) The station commander shall certify, on his or her arrival at the station each morning, that he has scrutinized the entries for the previous twenty four hours, has found them correct and true, or otherwise, and that the necessary action has been taken.
- (12) The last entry of the day shall briefly report on weather and visibility conditions during the previous twenty four hours.
- (13) Reference to the appropriate record, such as Charge Register, Accident or Inquest Register or Process Register shall be entered in the appropriate column.
- (14) When an entry bears any relation to another entry, for example, where a return to the station bears relation to the earlier departure, the two entries shall be cross referenced with each other in the appropriate column.
- (15) When two entries occur on the same day, the entries shall be entered and cross referenced as follows—
 - (a) “O.B. 1st Inspector ‘A’ leaves on inquiries;
 - (b) O.B. 20 Inspector ‘A’ returns from enquiries;
 - (c) cross-referenced 20/D and 10/D.”
- (16) When the two entries under sub paragraph (15) occur on different days, the letter “D” would be replaced by the date and the month.
- (17) When the two entries under sub paragraph (15) occur in different months and years, the same method as in sub paragraph (16) would be followed but the figure for the year would follow the figure for the month.
- (18) When a person makes a complaint as to having been injured in a road accident but his or her name was not recorded during the initial reporting of the accident, a fresh entry shall be made and crossreferenced to the initial report and no names shall be added to the initial accident report.

19. Patrol books and patrol registers.

- (1) Patrol Books and Patrol Registers shall be maintained at all Sub-Counties, police stations, posts and out-posts.
- (2) Before a patrol is dispatched from the police station, posts and outposts the name of all farms or chief’s or village elders’ posts to be visited by the patrol shall be entered in the relevant column of the Patrol book and a complementary entry shall be made in the Briefing column of the Patrol Register.
- (3) Maintenance of Patrol Books — Patrol Books shall be kept clean and neat and canvas covers could be obtained from the Quartermaster and shall invariably be used for protecting Books whether on patrol or in the police station.
- (4) Where any remark is entered in a Patrol Book it shall be acknowledged and the police action taken and brief details of the action taken shall be entered in the column provided.
- (5) The particulars to be entered in the Patrol Register include—
 - (a) the briefing column shall contain particulars of all places to be visited by and all instructions given to the patrol; and
 - (b) the debriefing column shall indicate whether all points required to have been visited have been so visited, all briefing instructions, complied with and brief details of any reports made in patrol books and of any matter reported by patrolmen.
- (6) Examination of Patrol Registers — Officers-in-charge of police stations, posts, outposts and patrol bases are responsible for ensuring that patrol registers are correctly and fully maintained and respective Officers-in-Charge of Sub-Counties shall examine Patrol Books and Registers to ensure

that remarks made in the former are being dealt with and that the area of jurisdiction is being adequately patrolled.

20. Register of wanted persons.

- (1) If, as a result of the investigation of a case, the identity of an accused person or suspect is disclosed but the suspect cannot immediately be traced, the case file shall be closed and particulars of the wanted person shall be entered in the Register of Wanted Persons and all further action to effect his or her arrest shall be recorded in that Register.
- (2) Particulars of the wanted person shall be entered in the manner set out in Appendix 59 (i) and on the right-hand side of the page. Serial Numbers — entries in this Register shall be numbered serially irrespective of the year.
- (3) An index of Wanted Persons shall be maintained in the front of the Register.
- (4) A separate correspondence file, numbered with the serial number of the relevant entry in the Register, shall be maintained in respect of each wanted person.
- (5) After the arrest of a wanted person, the correspondence file under sub paragraph (4) shall be incorporated in the case file.
- (6) Where warrants of arrest in respect of wanted persons are extant, the warrants shall be attached to the left-hand side of the page in an easily detachable form, for example in an envelope pasted on the opposite the page containing the particulars required under sub paragraph (2).
- (7) Full particulars of wanted persons, as detailed in sub paragraph (2), shall be sent to the Criminal Records Office for circulation in the Police Gazette.
- (8) When a wanted person is arrested or is known to have died the Officer-in- Charge of the Sub-County, police station, posts and outposts shall communicate with the Criminal Records Office and the Police *Gazette* notice shall be cancelled.
- (9) The Criminal Records Office shall automatically supply details of wanted persons to the Central Registration Office.
- (10) Frequent reminders shall be sent to the police station or SubCounty Commanders office of the area in which the wanted person is believed to be living.
- (12) Where the procedure under sub paragraph (10) is ineffective, especially in serious cases, police station personnel may be dispatched to the area to make inquiries and the police officers shall be given the fullest possible co-operation.
- (13) When the wanted person is an immigrant, his or her full particulars shall be sent to the Principal Immigration Officer, Nairobi, in case he or she has left, or tries to leave the Country.
- (14) When a person, who is wanted for an offence of a minor nature, has remained untraced for a reasonable period of time, which shall not in any case be less than one year, the Officer-in-Charge of the Sub-County may, after taking into consideration the seriousness of the offence, the measures already taken to effect the arrest, the availability of the witnesses, etcetera, order that action to effect the arrest of the Wanted Person may cease.
- (15) The decision under sub paragraph (14) shall not warrant the close of the Register of Wanted Persons.

21. Summons Book.

- (1) All summonses requiring attendance of witnesses and witness summonses issued by the Criminal Courts shall be entered in the Summons Book.

- (2) Immediately any summons is received, it shall be stamped with the police station stamp in the top right-hand corner and the "Summons Book" number shall be endorsed thereon within the mark of the police station stamp.
- (3) Summons shall be served as promptly as possible in order to afford the person summoned adequate time to make any arrangements he or she may wish.
- (4) Any summonses received too late to afford sufficient time for service shall be returned to the issuing court with an explanatory note on the reverse of the original copy and a request that the date of attendance be amended.
- (5) Any summons which is unserved for any reason other than as provided in sub paragraph (4) shall be returned to court with the reason for non-service endorsed thereon and a receipt shall be obtained therefore and be pasted in the Register.
- (6) At the end of each year an abstract in the form set out in Appendix 59 (j) shall be entered after the last entry.

22. Warrant book.

- (1) Every arrest or search warrant issued by a criminal court shall be entered in the Warrant Book, and its description shall be entered in the appropriate column.
- (2) When a warrant is received from court it shall be checked to ensure that the particulars required therein, namely the seal of the court the signature of the magistrate, the name of the accused, have been duly entered.
- (3) Each warrant shall be stamped with the police station stamp and the serial number shall be endorsed within the stamp mark.
- (4) Criminal warrants can only be executed in the area of jurisdiction of the issuing court.
- (5) When it is necessary for a warrant to be transferred from one police station area to another police station area outside the area of jurisdiction of the issuing court, it shall be endorsed by a magistrate having jurisdiction in that area.
- (6) When the warrant under sub paragraph (5) has been so endorsed, it shall be treated in the manner prescribed in sub paragraphs (7) A warrant shall not be transferred except on definite information that the accused has been located and arrested elsewhere.
- (8) When a warrant is transferred the transferring and receiving police officer shall enter in the remarks column in red ink the words, "Transferred to, or from, as the case may be, Police Station."
- (9) Criminal warrants remain in service until executed or until cancelled by the issuing court.
- (10) A person who has been arrested on a warrant of arrest shall not be released on bail unless the warrant has been endorsed accordingly.
- (11) Whenever a warrant is transferred to another area or is cancelled and returned to a court, a receipt shall be obtained and pasted in the Warrant Book.
- (12) An offence that falls within the provisions section 219 of the Criminal Procedure Code which requires that an offence for which the punishment does not exceed six months' imprisonment or a fine of one thousand shillings shall not be tried by a subordinate court unless the charge is laid within twelve months, shall require that warrants in respect of persons wanted for such offences to be applied for within twelve months of the commission of the offence.
- (13) When a criminal warrant of arrest has remained unexecuted for a period of one month, it shall be transferred to the Register of Wanted Persons, the serial number of which shall be endorsed in the remarks column of the Warrant Book.

- (14) At the end of the year an abstract in the form set out in Appendix 59 (k) shall be entered after the last entry.

Appendix 59(a): Books and records to be kept at county formations, sub county divisions stations and posts

Record	To be kept at all stations posts outposts unit and unit bases and Traffic Sections	Instructions for keeping	Period to be kept after date of last entry	Methods of disposal
Accident register	-do-	Chapter 59	5 years	Destroy
Accident files	-do-	-do-	-do-	-do-
Arms movement register	County /Sub-County/ Formation, Stations and post outposts, bases and unit bases including border posts	Cap 14	One year	-do-
Bank pay-in books	Where applicable		1 ½ years	Destroy after obtaining County/Formation commanders authority
Bicycle/Motorbike history sheet	Where bicycles/motorbikes are on charge	Cap 76	Permanent during life of the bicycle	
Briefing file	All police establishments and 999 control rooms	Chapter 59		Destroy when redundant
Canteen subscription register	All establishments	Cap 70.	2 years	Destroy after audit
Cash bail receipt	All stations and traffic sections	Cap 15	1 year subject to having been audited	Destroy after obtaining authority of chief Accountant
Cells register	Stations and posts/ outposts, bases and unit bases including border control posts	Chapter 59	5 years	Destroy

Repealed

Charge register	Stations and D.C.I	-do-	5 years	Destroy
Penal code	Formations	-do-	-	-
Petty	Stations	-do-	5 years	Destroy
Traffic	All traffic Formations		5 years	Destroy
Case files and completed				
Penal code file other Pending Arrest of Known Accused	Stations and D.C.I and Formation -do-	-do-	5 years with as per Permanent	Destroy. PAKA to be dealt with as per Appendix 65 or paragraph (b)
Murder manslaughter treason, rape and causing death under the Traffic Act cases not yet tried.	Stations or traffic sections - Stations	-do- -do-	2 years 5 years	Destroy Destroy
Traffic including notification to attend Court, books Petty				
Civil process register	All Police Stations/outposts, bases and unit bases	-do- Chapter 59	5 years	Destroy
Civilians firearms register	Stations/ Posts	-do- Chapter 59	5 years	Destroy
Civilian firearms receipt books	All police establishments	-do-	1 year	Destroy
Cheque counterfoil	Where applicable		2 years subject to having been audited	Destroy after obtaining authority from County/Formati on commander
Correspondence files	All police establishments	Cap 24	Cap 24	Destroy

Repealed

Criminal intelligence	All County and Sub-county Headquarters	Chapter 59	Need Basis	Destroy
Defaulter register	All county and sub-county Headquarters	Chapter 59	2 years	Destroy
Sub-county standing orders	Sub-counties, stations, posts, outposts and control bases in the county	Cap 64	Permanent	
Escapes from police custody	County/Formation, Sub-county Hq and stations/ outposts, bases and unit bases	Cap 15	5 years	Destroy
Exhibit Register	All stations, Traffic D.C.I , Formations prosecution branches, unit bases, posts and outposts	Chapter 59	5 years	Destroy
Firearms Register	County, Sub-county/ Formations, stations and posts and outposts/ outposts, bases and unit bases	Cap. 14	Permanent	
Fire inquiry register	All police establishments	Cap 59	5 years	Destroy
Forage Book	Where animals are on charge	-Cap 51 Cap 55	2 years	Destroy
Service order	All formations (by year)	Cap. 64	Permanent	
General information register	All stations/ outposts, bases and unit bases	-Cap 24	Permanent	
Imprest cash book	County/Formations and Sub-county	Cap.39	1 year	Destroy after obtaining authority from county/Formation Commander
Inquest register	Traffic Stations and sub-counties	Cap 59	5 years	Destroy

Repealed

Inquest files	Stations and sub-counties	-do-	5 years	Destroy
Inventory books	All police establishments	-do-	Permanent	
Inward cheque and cash register	County/Formation and sub-county headquarters	Appendix 39	1 year subject to having been audited	Destroy after obtaining authority from County/Formation Commander
Inquiry register	Station & sub-county/ formations and DCI	-	5 years	Destroy
Leave Register	County Sub-county/ Formation headquarter and station, posts and out posts unit and unit bases	Cap 59	2years	Destroy
Leave pass book	Sub-county/Formation headquarter and station, posts and out posts, unit and unit bases	Cap 59	5 years	Destroy
Lost and found property book	County, sub-county Stations and traffic Formations	Cap 59	5 years	Destroy
Local Purchase order books	County/Formation, sub-county (station as may be authorized by the county/ formation commander	-Cap 39	2 years subject to having been audited	Destroy after obtaining authority from county/ Formation commander
Delivery book	Where applicable	-	1 year	Destroy
Official receipt book	County/Formation Sub-county and police stations	Cap. 39	1 year subject being audited	Destroy after obtaining authority from Chief/county accountant
Motor vehicle/ power plant log books	Where applicable/power plant to take charge	Cap.36	Permanent during life of the vehicle or power plant	
Medical treatment	Where applicable		1 year	Destroy

Repealed

Occurrence book	All Police establishments	Cap 59	10 years	Destroy
Officers visiting books	All police Establishments	Cap 59	5 years	Destroy
Patrol register books	All police Establishments	Cap 59	2 years	Destroy
Paid cheques	Where applicable	Cap 59	6 years	Destroy after obtaining authority from county commander
Payment Voucher (copies)	-do-	-do-	3 years	-do-
Petrol, oil and diesel registers	-do-	Cap. 36	5 years	Destroy
Police Gazettes	All police establishments	Cap 59	2 years	Destroy but retain the wanted persons folder
Postage imprest register	Where applicable	Accounting instructions	1 year subject to having been audited	Destroy after obtaining authority from County/form commander
Pound book	Where applicable	Cap 59	2years	Destroy
Detainees meal book	Stations, sub-county, outposts and posts including boarder control posts	Cap 15	2years	Destroy
Detainees cash register	Stations	Accounting instructions	2 years subject to have been audited	-do-
Detainees property book	Stations and posts, outposts including boarder control posts	Cap 15	1 year subject top have been audited	Destroy after obtaining approval from County/chief accountant

Repealed

County standing orders	Headquarters of the county/ formation concerned and all sub-counties, stations, posts, outposts and formation within the command	Cap 64	Permanent	
County weekly order/part one order	All counties, formations, sub-counties, stations, posts, within the county / formation	Cap 69	5 years	Destroy
Register of registered correspondents	Where applicable-	-	5 years	Destroy
Register of counterfoil receipt books	Where applicable	Cap 39	5 years subject to a certificate signed by the Exchequer and auditor that the entries are correct	Destroy after obtaining approval from County/ formation commander
Register of outgoing Trunk calls	Where a post office telephone is installed	Cap 56	Until audited	Destroy
Telephone charges register	County/ Formation, sub-county headquarters	Accounting instructions	3 years	Destroy after obtaining authority of County/ Formation commander
Traffic ticket book	Traffic section, stations and sub county	-	2 years	-do-
Traffic Charge Register	-do-	Cap 59	5 years	Destroy
Register of wanted persons	Stations and sub-counties	Cap 59	Permanent	-do-
Register of hire police	Sub-County, stations	Cap 57	2 years subject to having been audited	-do-

Repealed

Sick register	Sub-county, Stations/posts, outposts including boarder control posts	-Cap 68	1 year	Destroy
Stations standing order	Sub-county, stations posts, and outposts	Cap 64	Permanent	
Stores ledger	Where applicable	Cap.70	3 years subject to having been audited	Destroy
Receipt/ issues voucher etc	Where applicable	Cap.70	3 years subject to having been audited	Destroy
Summon books	Station and established process sections	Cap 59	3 years	Destroy
Vote ledger	Where applicable	Cap.39	1 year	Destroy after obtaining authority from county/ formation commander
Water charges register	County, Sub-county/ Formations	Cap.39	1 year subject to having been audited	Destroy after obtaining authority from county/ formation commander
Warrant book	Stations and established process sections	Cap 59	3 years	Destroy
Workshop (communication) job sheet	Communication workshop	Cap 36	1 years	Destroy after auditing

Appendix 59(b): Execution of Civil Warrants of Arrest

Sh.

For a gazetted officer

For a member of the Inspectorate.....

For a subordinate officer

Appendix 59(c): Additional expenses

- (1) cost of Railway Warrants;

- (2) actual bus fares;
- (3) private car mileage,
- (4) subsistence or meals allowance;
- (5) hire of Police transport at Ksh — per Km
- (6) Procedure for Raising Charges —

Appendix 59(d): Annual abstract form

	Pending from previous year	Received during year	Served or executed during year	Returned to court unserved	Pending at end of the year
Summons, Notices, Decrees, Warrant of Arrest, Distress, Warrants, Attachments e.t.c					

Appendix 59(e): Weekly record of performance of night duty

	C.I	I.P	S.I	S/SGT	CPL	CONST
Establishment						
Strength						

Appendix 59(f): Index letters

P	Performing duty, or present for such duty. This entry shall be made in black ink in respect of personnel performing duty by day, and in red ink in respect of personnel performing duty by Night
O	Off duty but available in the formation area.
A	Absent without leave
L	Absent on leave

Repealed

NR	Night rounds performed by day duty personnel. This entry shall be made in red ink and against it, also in red ink, shall appear in the Remarks column the date and relevant OB entry serial number
D	Detached; undergoing a course of instruction at the Police Training School or other training centre, absent from the formation on escort duty or attending course in another Sub-County An explanatory note shall be recorded in the "Remarks" column.
I	Interdicted
S	Sick.

Appendix 59(g): Letter to the auctioneer on sale by public auction

To Messrs,

.....

FOUND PROPERTY

The under mentioned articles are forwarded for sale by public auction. Please acknowledge receipt on one copy of this letter:

L.F. No. DESCRIPTION SALE PRICE

Please indicate on the remaining copy of this letter the amounts received from the auction of the goods and send the list together with your cheque, to the

(The auctioneer shall be asked to forward his cheque and completed list to the regional Paymaster if the property was found in a Region, and to the Inspector General, Service Headquarters, P. O. Box 30083, NAIROBI, in respect of property found in the Nairobi area

Appendix 59(h): Particulars of wanted person

R.W.P

Name ID/Other Identification No.

Aliases Supervisee No. (if any)

Tribal Particulars:

Tribe Sub-County

Location Sub-location

Chief Village Elder

Warrant Book No

Crime Complaint No

C.R.O. Docket No

Other particulars (physical description, associates, habits, etc)

.....

Wanted for the offence of

Contra Section

Case File No

RECORD OF ACTION TAKEN TO EFFECT ARREST

Date Detail of Action Initials

Serial Numbers — entries in this Register shall be numbered serially irrespective of the year.

Index — An index of Wanted Persons shall be maintained in the front of the Register.

Chapter - RECRUITMENT, APPOINTMENT AND ENLISTMENT

1. Object and purpose.

The object and purpose of this Chapter is to ensure that the Service conforms with the principles of public service contained in Article 232 - of the Constitution and in particular—

- (a) accountability;
- (b) transparency and provision to the public of timely, accurate information;
- (c) fair competition and merit as the basis of appointments and promotions;
- (d) affording adequate and equal opportunities for appointment, training and advancement, at all levels of—
 - (i) men and women;
 - (ii) the members of all ethnic groups; and
 - (iii) persons with disabilities.

2.

This Chapter including the National Police Service Commission regulations and manuals creates a framework for members of the Service to comply with the requirements of the constitution of Kenya 2010 and—

- (a) the National Police Service Act, 2011;
- (b) the National Police Service Commission Act, 2011;
- (c) Leadership and Integrity Act; and any other relevant law.

3. Entry into the Service.

- (1) A person may be recruited to serve in the National Police Service in any of the following categories —
 - (a) as a police constable;
 - (b) on higher ranks through a cadet entry scheme;
 - (c) as a specialist; or
 - (d) as a civilian staff
- (2) All recruitments shall be carried out by the Commission at the request of the Inspector-General.

4. Recruitment of civilians in the Service.

- (1) The Commission shall be responsible for the recruitment for all positions within the National Police service, including recruitment for —
 - (a) vacancies for specific specialist positions; and
 - (b) civilian functions within the National Police Service.
- (2) Candidates to be appointed to these positions shall include those from —
 - (a) within the National Police Service; and
 - (b) outside the National Police Service for services that do not require a police service background.
- (3) All recruitments shall be carried out at the request of the Inspector- General.
- (4) The recruitment process shall include the following steps—
 - (a) adherence to the procedure outlined in regulation 12 of the National Police Service Commission (Recruitment and Appointment) Regulations with necessary modifications;
 - (b) the commission shall invite the shortlisted applicants for personal interviews, and where relevant carry additional tests;
 - (c) all appointments shall be communicated to the successful applicants by the commission.
- (5) The Commission shall, while undertaking recruitment into the Service, give due regard and opportunity to persons with disabilities where appropriate and practicable to do so.

5. Entry requirements.

All candidates shall be required to meet the following minimum requirements—

- (a) be a citizen of Kenya;

- (b) hold a Kenya National Identity Card or Passport;
- (c) possess the required academic qualifications as shall, from time to time, be determined by the Commission for purposes of recruitment;
- (d) be aged between eighteen years and twenty-eight years for holders of Kenya Certificate of Secondary Education or its equivalent and up to thirty years for university graduates;
- (e) be physically and medically fit; and
- (f) have no criminal record or pending criminal charges.

6. Recruitment procedure.

- (1) Where there is a vacancy, the Commission shall in collaboration with the Service, advertise using internal mechanisms.
- (2) The advertisement under sub paragraph (1) shall include information on the—
 - (a) application procedure;
 - (b) criteria for the recruitment;
 - (c) closing date of the application; and
 - (d) any other information which the Commission may from time to time consider necessary.
- (3) The closing date shall be at least seven days from the date of publication of the advertisement.
- (4) The applications to the Commission shall include—
 - (a) completed application form in the format specified by the Commission;
 - (b) copy of the applicant's identification card or passport;
 - (c) copies of the applicant's academic qualifications;
 - (d) letter of recommendation in the prescribed format;
 - (e) police certificate of good conduct; and
 - (f) any other document as may be required by the Commission.
- (5) Upon receipt of the applications, the Commission shall shortlist applicants to be invited for the physical, aptitude and medical assessment as well as verification of the documents submitted.
- (6) In preparing the shortlist, due regard shall be given to ensure ethnic, gender and regional balance.
- (7) The Commission shall shortlist at least three times the number of candidates required for the vacancies available in a particular recruitment centre.
- (8) The Commission shall publish the names of the shortlisted applicants and invite the public to send their complaints and comments, if any concerning the suitability of the applicants.
- (9) The Commission shall notify the shortlisted applicants to attend the physical, aptitude and medical assessment and verification of documents of recruitment process.